



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

**SYLLABUS FOR
MASTER OF LEGISLATIVE LAW (LL.M.)
(TWO YEARS COURSE)**

(w.e.f. Year 2023-24)

LL.M. Syllabus

Compulsory Paper

First Sem:-

1. LLM 101- Paper I : Indian Constitutional Law-The New Challenges
2. LLM 102- Paper II : Law and Social Transformation in India

Second Sem:-

3. LLM 201- Paper I : Judicial Process

Third Sem:-

4. LLM 301- Paper I : Research Methodology

Fourth Sem:-

5. LLM 401- Paper I : Dissertation & Viva-Voce



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PROGRAM OUTCOMES (POs)

Program Outcome

PO1 Legal Knowledge: To acquire & apply legal knowledge to the complex Socio-legal problems.

PO2 Professional Practice: to make students eligible to practice in Courts, Industries, Companies as legal practitioner.

PO3 Professional Skills: To possess professional skills required for legal practice such as Argument, Pleading, drafting, convincing etc.

PO4 Professional Ethics: To understand and apply principles of professional ethics of legal profession.

PO5 Legal research & legal reasoning: to develop legal research skills & legal reasoning and apply it during programme & in Legal practice.

PO6 Self-reflection & lifelong learning : To develop an attitude of self-reflection while learning & Recognize the need for, and have the preparation and ability to engage in independent and life-long learning in the broadest context of changing legal contexts.

PO7 Self-employability: To provide a platform of self-employability by developing professional skills in legal industry.

PO8 Leadership skills: To develop leadership qualities amongst students.

PO9 Lifelong Learning: To make awareness about Constitutional legislative & societal transformation in society & to develop clinical abilities.

PO10 Lawyering skills: Every POST graduate will become skilled in legal research, written and oral communication, teamwork, advocacy, and problem-solving.

PO11 Academic skills: all the post graduates can pursue a career in teaching law.



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PROGRAM SPECIFIC OUTCOMES (PSOs)

PSO1 Should be able to demonstrate understanding of substantive and procedural law sufficient to enter the legal profession and professions in which legal knowledge is an advantage.

PSO2 Should be able to associate the learning from the courses related to Law and Management.

PSO3 Should be able to Gather and interpret relevant facts and conduct legal research.

PSO4 Should have the capability to understand the laws at national and global level and to solve the client's problem.

PSO5 Should possess the skills to communicate in both oral and written forms and ability to formulate legal problems and using appropriate concepts and methods to solve them.

PSO6 Should use skills in specific areas (e.g. Criminal, industrial-organizational, clinical, counselling, social, community).

PSO7 Should analysing social problems and understanding social dynamics.





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GROUP A - Criminal and Security Law

SEMESTER-I

PAPER-I

LLM-101 Indian Constitutional Law: The New Challenges

Unit-1: Constitution and Federalism

- a. Concept of Constitution
- b. Meaning and idea of Constitution, Nature, Scope and Goal
- c. Constitution as Supreme law
- d. Making of Constitution: UK, U.S.A. and India
- e. Forms of Government: Unitary and Federal-salient features of both
- f. Nature of Indian Federalism

Unit-2: Separation of Powers: Stresses and strain

- a. Theory of Separation of Powers
 - i. Separation of Powers under the Indian Constitution
 - ii. Interrelationship among the three organs of the state
- b. Distribution of Legislative Powers: The Scheme of the distribution of legislative powers in India the judicial approach and the present position. Recommendation of Sarkaria Commission & Venkatachaliah Commission.
- c. Allocation and Share of Resources - distribution of grants in aid, inter-state disputes on resources
- d. Centre's responsibility and internal disturbance within states
- e. Directions of the center to the state under Articles 356 and 365

Unit-3: Emerging regime of new rights and remedies

- a. Fundamental Rights
- b. Freedom of speech and right to broadcast and telecast
- c. Right to education; Commercialization of education and its impact; and Brain drain by foreign education market
- d. Right to strikes, hartal, and bandh
- e. Directive Principles of State Policy and Fundamental Duties

Unit-4: Democratic Process

- a. Nexus of politics with criminals and the business
- b. Election: Status of election commission, electoral reforms
- c. Coalition government: “stability, durability, and corrupt practice”
- d. Grass root democracy

Unit-5: Constitutional Remedies, Emergency and Amendment of the Constitution

- a. Right to Constitutional Remedies - Features of Writ Jurisdiction under Art. 32
- b. Concept of locus standi - Dynamic approach of Supreme Court on Public Interest Litigation – Judicial Activism - Comparison between Art. 32 and 226
- c. Freedom of trade and Commerce
- d. Types of Emergencies and their impact on Federal structure
- e. Amendment

Text Books

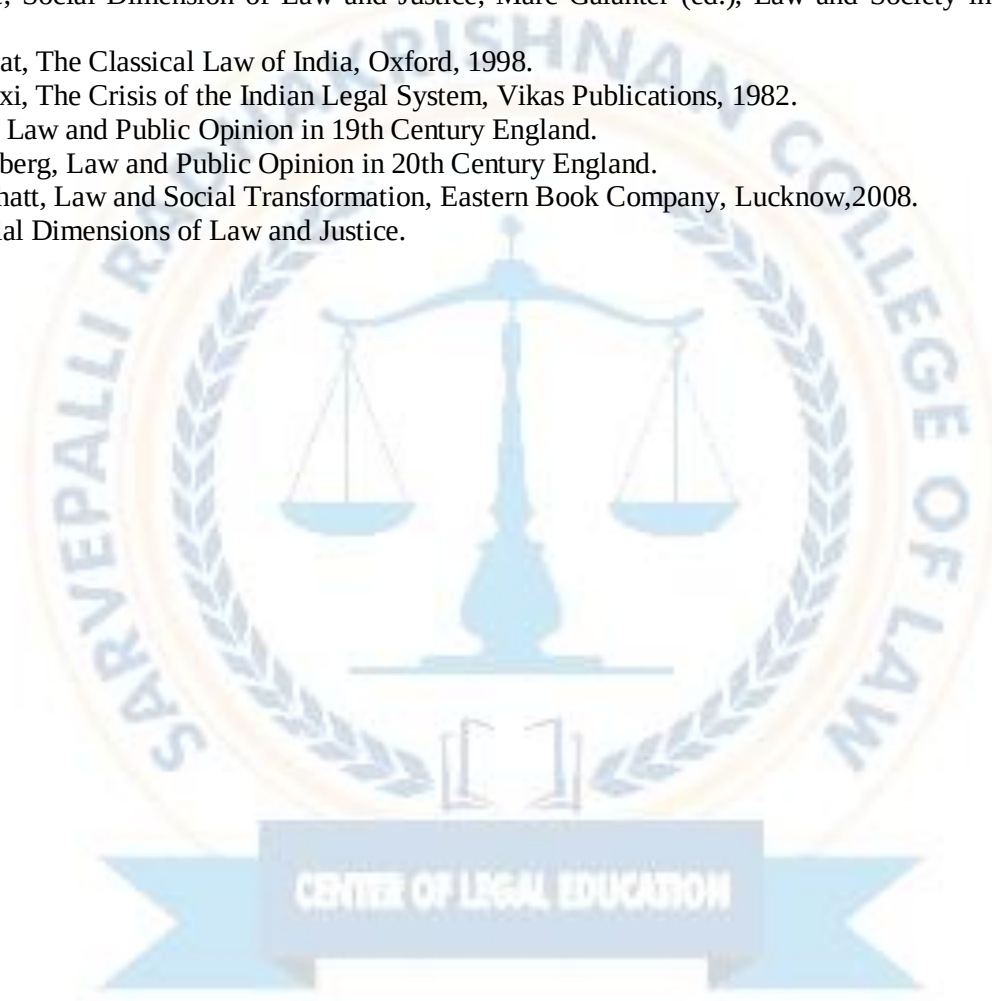


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1. D.D. Basu, Constitution of India, Prentice-Hall of India (P) Ltd., 1996.
2. Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
3. The Constitutional Law of India by Dr. J.N.Pandey, with a Foreword by Justice H.C.P.Tripathi, Central Law Agency, Allahabad

References

1. Duncan Derret, The State, Religion and Law in India, OUP, New Delhi, 1999.
2. H.M. Seervai, Constitutional Law of India, Tripathi, 1996.
3. Indian Law Institute, Law and Social Change: Indo-American Reflections, Tripathi Publications, 1988.
4. Julius Stone, Social Dimension of Law and Justice, Marc Galanter (ed.), Law and Society in Modern India, Oxford, 1997.
5. Robert Lingat, The Classical Law of India, Oxford, 1998.
6. Upendra Baxi, The Crisis of the Indian Legal System, Vikas Publications, 1982.
7. A.V. Dicey, Law and Public Opinion in 19th Century England.
8. Morris Ginsberg, Law and Public Opinion in 20th Century England.
9. P. Ishwar Bhatt, Law and Social Transformation, Eastern Book Company, Lucknow, 2008.
10. Stones, Social Dimensions of Law and Justice.





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PAPER-II

LLM-102 - Law and Social Transformation in India

Unit I : Law and Social Change

Meaning and concept of Law- Law as a purposive device, Change or transformation-Social change-Value orientation in social change-Theoretic Models on Social change and their application-Inter play between law and social change-stability and social change, Relationship between law and morality-culture, social change and law, Law and development, Social change in the context of democracy.

Historical and Sociological Study on the role of law in bringing about social change

Law and social change in ancient India-Social dimensions of law and social concern for justice-Role of family, associations and charitable institution in ancient India-The Interpretation of Shruti, Smriti and other commentaries to harmonize social change-Interaction between law and custom, Social control during the Muslim conquest-Social reform during the medieval period, Law and Social Transformation in Modern India-Colonial law and economic exploitation-Application of the Indian Law by the British-Social reforms and Women, Children and others-Codification of Laws-Freedom of Movement and Social reform ideas-Sociological perspective and social change.

Unit II : Constitution's Orientation and Social Transformation.

Impact of sociological school in India. Constitutional evolution and the Constitutional Assembly's role-Constitutional text as a mechanism for social change-the Constitutional amendments and social transformation-Basic structure theory as balancing continuity and change-The role of Governmental organs for social transformation- Working of the Constitution for Social transformation-Constitutional interpretation as an effective tool for social transformation. Application of international law in the process of constitutional interpretation-Constitutionalism and social transformation.

Legal concepts in new social order : Jurisprudence of Sarvodaya-Gandhiji, Vinoba Bhava, Jaya Prakash Narain-Concept of grama nyayalayas. Socialist thought on law and justice-An enquiry through constitutional debates on the right to property. Indian Marxist critique of law and justice, Naxalists Movement-Causes and cure-Rise of Dalits and changing equations in social order in twenty first century.

Unit III : Religion and Law

Religion as a divisive factor, secularism-Reform of the law on secular lines, Freedom of religion and non-discrimination on the basis of religion, Religious minorities and the law.

Language and the Law

Language as a divisive factor-formation of linguistic states, Constitutional protection to linguistic minorities, Non-discrimination on the ground of language. Language policy and the Constitution-Official Language, State Language, Court Language

Community and the Law

Caste as a divisive factor, Non-discrimination on the ground of caste, Acceptance of caste as a factor to undo past injustices, Protective discrimination-Scheduled castes, Tribes and Backward classes, Reservation

: Statutory Commission, Statutory provisions.



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Regionalism and the law

Regionalism as a divisive factor, concept of India as one unit, Right of Movement, residence and business, impermissibility of state or regional barriers, Equality in matters of employment-the slogan "sons of the soil" and its practice, Admission to educational institutions, preference to residents of a state.

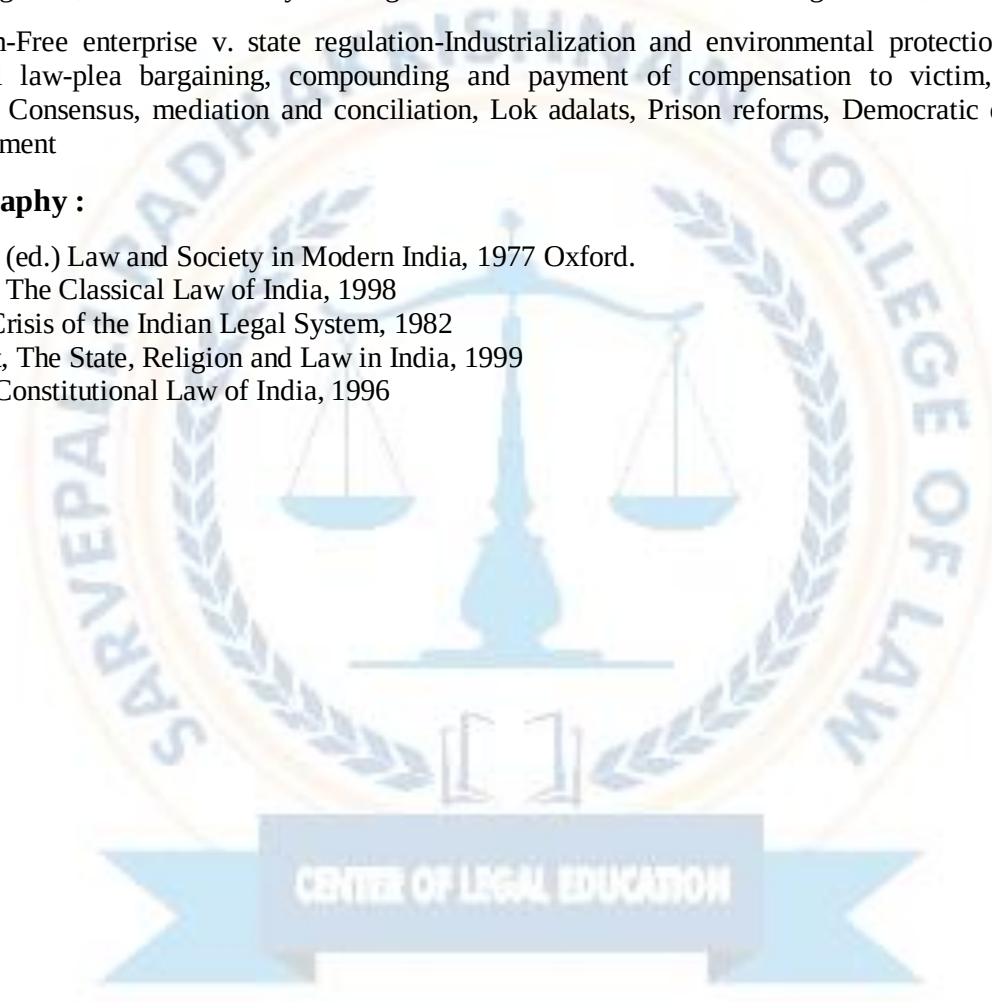
Unit IV : Modernization and Law

Modernization as a value-Constitutional perspectives reflected in the fundamental duties, Modernization of social institutions through law, Reform of family law, Agrarian reform-Industrialization of agriculture,

Industrial reform-Free enterprise v. state regulation-Industrialization and environmental protection, Reform of court process-Criminal law-plea bargaining, compounding and payment of compensation to victim, Civil laws-(ADR) Confrontation v. Consensus, mediation and conciliation, Lok adalats, Prison reforms, Democratic decentralisation and local self-government

Select Bibliography :

1. Marc Galanter (ed.) Law and Society in Modern India, 1977 Oxford.
2. Robert Lingat, The Classical Law of India, 1998
3. U. Baxi, The Crisis of the Indian Legal System, 1982
4. Duncan Derret, The State, Religion and Law in India, 1999
5. H.M.Seervai, Constitutional Law of India, 1996





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PAPER-III

LLM-103 A Criminology

Unit-1: Nature and Definition

- a. Definition concept of crime
- b. Nature and Scope of Criminology
- c. Methods of Criminological Studies
- d. Principles of Criminal Jurisprudence

Unit-2: Schools of Criminology

- a. Classical,
- b. Biological
- c. Cartographic,
- d. Sociological and Socialist.

Unit-3: Theories of crime

- a. Theorizing Criminal Etiology: Lombroso and Neo-Lombrosian, Psycho-analysis, Differential Association, Anomie Tradition;
- b. Critical Criminology with reference to Labeling, Interactionism and Conflict Theory

Unit-4: Modern Trends in Criminology

- a. Phenomenology,
- b. Postmodernism and Feminism Crime.
- c. Political criminology
- d. Environmental criminology
- e. Cyber crime

Unit-5: Organized Crime

- a. Drug Addiction - trafficking - narcotics substances - National and International Approaches to Drug Abuse - IPC provisions - Narcotic Substances Act 1985
- b. Prostitution - Causes and concerns - International responses Prevention of Immoral Activities Act - IPC - Cyber prostitution - Internationalization of flesh trade
- c. Collective Violence - Naxal problems - causes and concerns- tribal rebellion - Dalit struggle - Atrocities - Telangana struggle
- d. Violence against Women - Domestic violence - Workplace violence - male dominated atrocities Social Control and Crime Prevention

Text Books

- 1. Criminology, Penology & Victimology by Dr. Deipa Singh and Dr. K.P. Singh
- 2. Criminology & Penology with Victimology by Prof. N.V.Paranjape
- 3. Tapas Kumar Banerjee Background to Indian Criminal Law [1990]
- 4. Ratan Lal Law of Criminal Procedure
- 5. Sarkar, Law of Evidence



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1. K N Chandrasekharan Pillai [ed.] R V Kelkar's Outline of Criminal Procedure [2000] Eastern Book House
2. Law of Commission of India, forty-second Report Ch. 3, 1971
3. Malimath Committee Report 2004
4. Patric Devlin The Criminal Prosecution in England
5. Sanders and Young Criminal Justice [1994]
6. P D Sharma Police and Criminal Justice System in India





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PAPER-IV

LLM-104 A Penology and Victimology

Unit-1: Penology and Theories of punishment

- a. Definition of Penology
- b. Historical and Contemporary approaches to penology.
- c. Retribution - Utilitarian
- d. Prevention: Deterrence - Utilitarian: Intimidation Behavioral prevention
- e. Incapacitation - Behavioral prevention
- f. Rehabilitation - Classical Hindu and Islamic approaches to punishment.

Unit-2: Sentencing and Approaches to sentencing

- a. Types of sentences in IPC and special laws
- b. Sentencing for habitual offender,
- c. Pre - sentence hearing
- d. Summary Punishment
- e. Capital punishment [Constitutionality, Judicial attitude and law reform]
 - a. Approaches- Probation, Parole, Corrective labor, Fines, Bail and Bond
 - b. Collective fines - reparation by the offender/by the court.

Unit-3: Victims: Concept and Importance

- a. Meaning nature and types of victims of crime
- b. Historical development of victimology
- c. Scope and objectives of victimology
- d. National and International thinking: United Nation, Amnesty International, National Human Right Commission etc.

Unit-4: Role of victims in Criminal Occurrence!

- a. Victim – Offender relationship
- b. Victim typologies
- c. Victim of abuse of power
- d. Women and crime victimization
- e. Children and crime victimization

Unit-5: Impact of Victimization

- a. Physical and Financial
- b. Victimization: Impact on family
- c. Psychological stress and trauma
- d. Criminal, victimization, sense of security and Socio-Economic development
- e. Victim Compensation in India: Provisions under Cr. P.C, SC, ST Act, etc.

Text Books

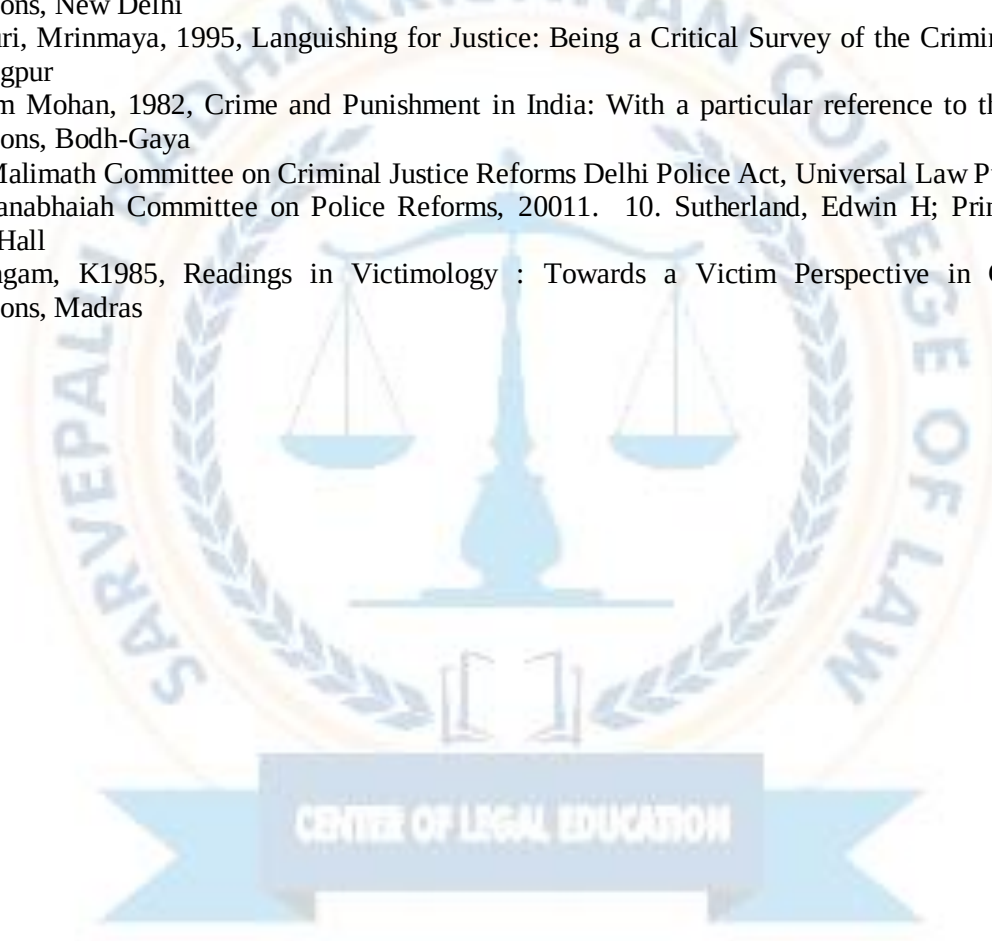
1. Paranjape, N.V.; Criminology and Penology; Central Law Publication
2. Qadri S.M. A Criminology and Penology Eastern Book Company Lucknow
3. Mehraj-ud-din, Mir, 1984, Crime and Criminal Justice System in India, Deep & Deep Publications, New Delhi
4. Devasia, V.V 1992, Criminology, Victimology and Corrections. Ashish Publishing House, New Delhi



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1. Commonwealth Secretariat, 2002, Crime and Social Justice, London.
2. Ebbe, Obi N. Ignatius, 2000, Comparative and International Criminal Justice System: Policing, Judiciary and Corrections, Butterworth, Boston.
3. Page, Michael von Tange, 1998, Prisons, Peace and Terrorism: Penal policy in the reduction of Political Violence in Northern Ireland, Italy and the Spanish Basque country, 1968-97, Dominant Publishers and distributors, New Delhi.
4. Chakrabarti, Nirmal Kant, 1995, Probation System in the Administration of Criminal Justice, Deep & Deep Publications, New Delhi
5. Choudhuri, Mrinmaya, 1995, Languishing for Justice: Being a Critical Survey of the Criminal Justice System, Datt Sons, Nagpur
6. Das, Ram Mohan, 1982, Crime and Punishment in India: With a particular reference to the Manusmrti, Kanchan Publications, Bodh-Gaya
7. Justice Malimath Committee on Criminal Justice Reforms Delhi Police Act, Universal Law Pub. Co. 2003
8. K Padmanabhaiah Committee on Police Reforms, 2001.
10. Sutherland, Edwin H; Principles of Criminology; General Hall
9. Chokalingam, K1985, Readings in Victimology : Towards a Victim Perspective in Criminology, Ravi Raj Publications, Madras





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SEMESTER-II

LL.M. Part – I

PAPER-I

LLM -201 JUDICIAL PROCESS

1. Nature of judicial process

1. Judicial process as an instrument of social ordering
2. Judicial process and creativity in law – common law model – Legal Reasoning and growth of law – change and stability
3. The tools and techniques of judicial creativity and precedent
4. Legal development and creativity through legal reasoning under statutory and codified systems

2. Special dimensions of Judicial Process in Constitutional Adjudications

1. Nations of judicial review
2. Role in constitutional adjunctions – various theories of judicial role
3. Tools and techniques in policy– making and creativity in constitutional adjunction
4. Varieties of judicial and justice activism
5. Problems of accountability and judicial law making

3. Judicial Process in India

1. Indian debate on the role of judges and on the nation of judicial review
2. The “Independence” of judiciary and the “Political” nature of judicial process
3. Judicial activism and creativity of the Supreme Court – the tools and techniques of creativity
4. Judicial process in pursuit of constitutional goals and values – new dimensions of judicial activism and structural challenges
5. Institutional liability of courts and judicial activism-scope and limits

4. The concepts of Justice

1. The concept of justice or Dharma in Indian thought
2. Dharma as the foundation of legal ordering in Indian thought
3. The concept and various theories of justice in the western thought
4. Various theoretical bases of justice: the liberal contractual tradition, the liberal utilitarian tradition and the liberal moral tradition

5. Relation between Law and Justice

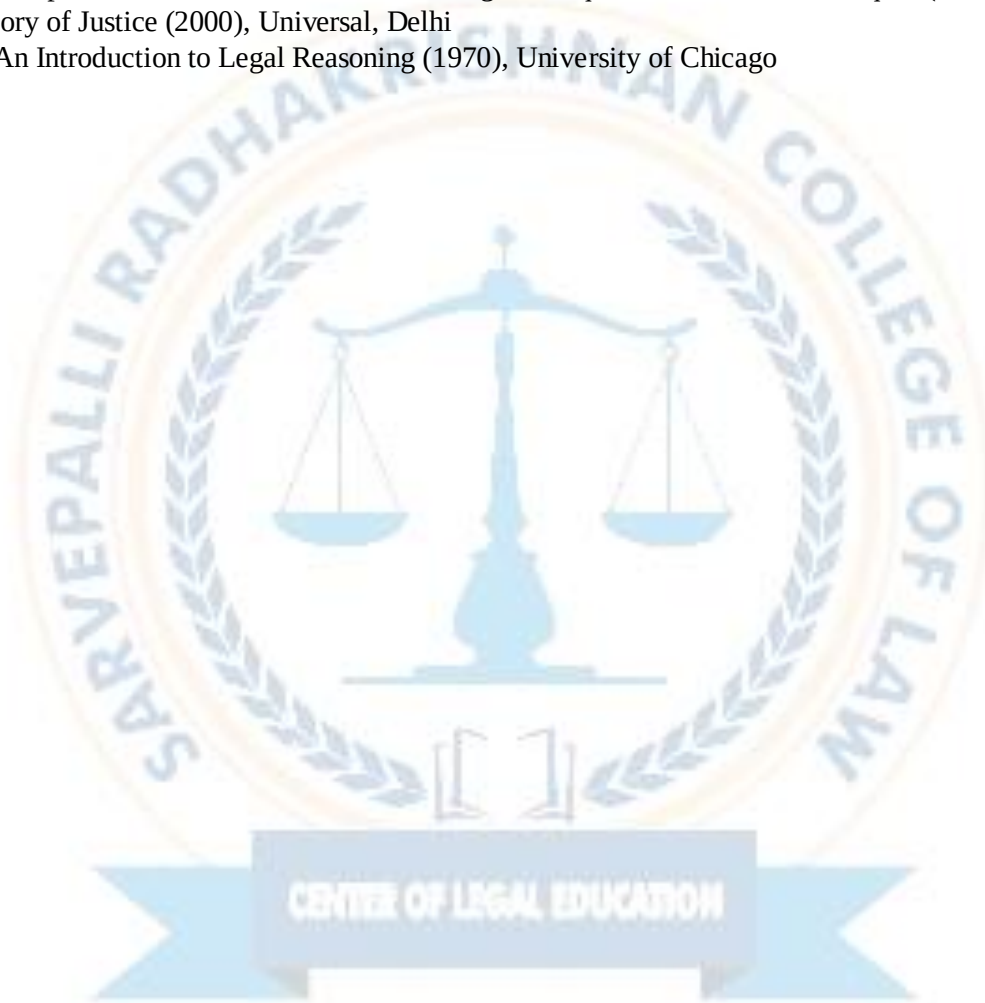
1. Equivalence Theories – Justice as nothing as nothing more than the positive law of the stronger class
2. Dependency theories – for its realization justice depends on law, but justice is not the same as law
3. The independence of justice theories-means to end relationship of law and justice- the relationship in the context of the Indian constitutional ordering
4. Analysis of selected cases of the Supreme Court where the judicial process can be seen as influenced by theories of justice

Selected bibliography



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1. Julius Stone, The Province and Function of Law, Part II Chs. 1. 8-16 (2000), University New Delhi
2. Carzo, The Nature of Judicial Process (1995) Universal, New Delhi
3. Henry J. Abraham, The judicial Process (1998), Oxford
4. J. Stone, Precedent and the Law: Dynamics of Common Law Growth (1985) Butterworths
5. W.Friedmann, Legal Theory(1960), Stevens, Landon
6. Bodenheimer, Jurisprudence-the Philosophy and Method of the Law (1997), Universal, Delhi
7. J. Stone, Legal System and Lawyers' Reasoning (1999), Universal Delhi
8. U. Baxi, The Indian Supreme Court of India – A Socio – Legal Critique of its Juristic Techniques (1977), Tripathi, Bombay
9. John Rawls, A Theory of Justice (2000), Universal, Delhi
10. Edward H. Levi, An Introduction to Legal Reasoning (1970), University of Chicago





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PAPER-II

LLM-202 Legal Theory

Unit-I: Nature of Jurisprudence-I

- a. Meaning of Law
- b. Natural Law Theories
- c. Classical Positivism - Austin - Bentham - H L A Hart
- d. Pure Theory of Law
- e. Analytical School of Law
- f. Sociological School of Law

Unit-II: Nature of Jurisprudence-II

- a. American Realism
- b. Scandinavian Realism
- c. Historical and Anthropological Jurisprudence - Savigny - Maine - Grotius - Kent - Marxist Theories of Law and State
- d. Feminist Jurisprudence 1
- e. Postmodernist Jurisprudence

Unit- III: Introduction to Precedents

- a. Use of Precedent in U K, French and the American Legal System
- b. Hierarchy of Courts and the principles that govern the application of the doctrine or precedent among the different courts in India. Art. 141, 151, 145 of the Constitution

Unit- IV: Ratio Decidendi and Obiter dicta

- a. Definition
- b. Determination of Tests
 - i. Wambaugh's tests
 - ii. Dr. Goodhart's test
 - iii. Lord Halsbury's tests
- c. Ratio decidendi as an indeterminate/illusory category: American Realist Julius Stone
- d. Weight and authority of precedent [overruling distinguishing] per in curium not followed

Unit- V: Precedent and problems

- a. Certainty retroactivity and prospective overruling
- b. Judicial restraint v Judicial Activism
- c. Plurality of opinions
- d. A case of single and anonymous opinion
- e. Precedent value of Advisory opinion
- f. Judicial reasoning

Text Books

- 1. V D Mahajan 'Jurisprudence'

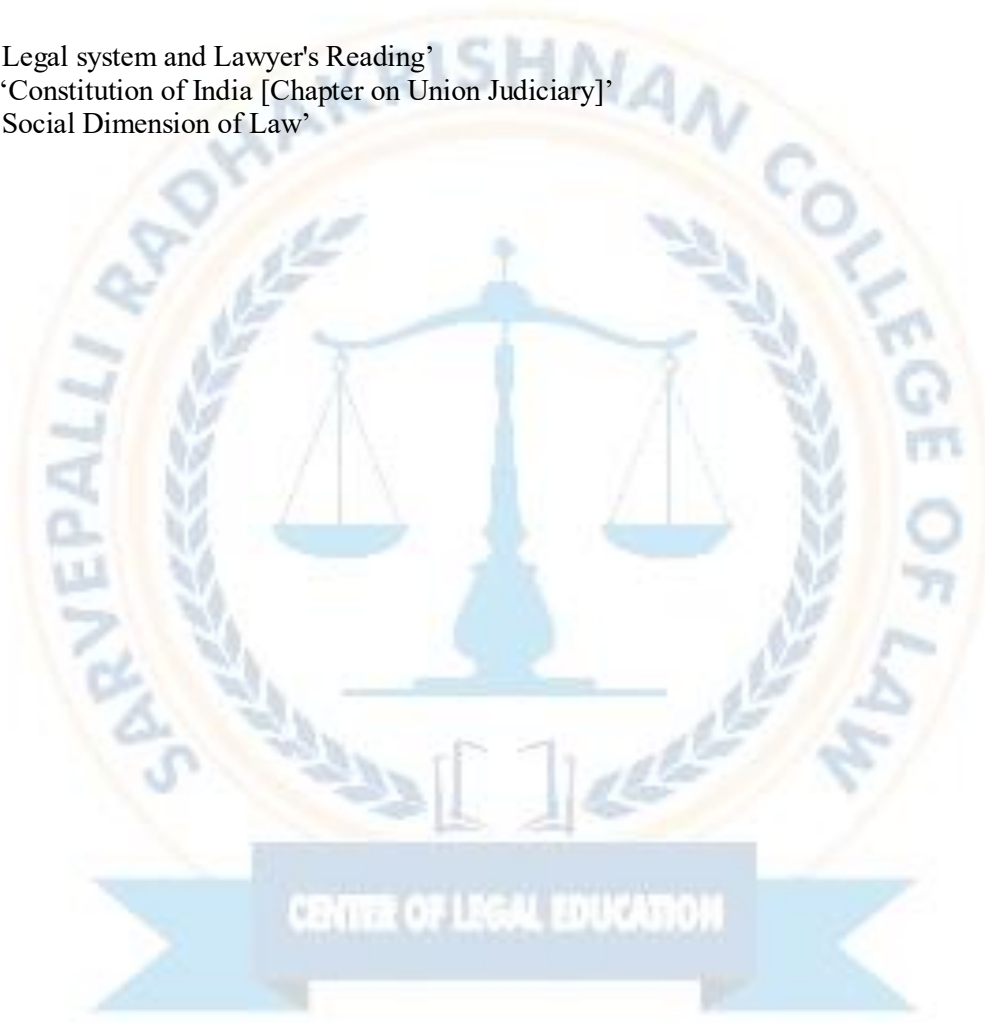


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2. Wayne Morrison 'Jurisprudence'
3. H L A Hart 'Concept of Law'
4. W Friedman 'Law in the Changing Society'
5. Dhavan R 'Supreme Court of India'
6. Cross R 'Precedent in English Law'

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1. Stone Julius 'Legal system and Lawyer's Reading'
2. Seervai H M 'Constitution of India [Chapter on Union Judiciary]'
3. Julius Stone 'Social Dimension of Law'





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PAPER-III

LLM-203 LAW AND ORGANIZED CRIME

Unit-1: Organized Crimes

- a. Definition and Scope
- b. Characteristics of organized crime
- c. Types of organized crime
- d. Causes of organized crime

Unit-2: Classification of Organized Crimes (International Perspective)

- a. Transnational organized crime
- b. Illicit Firearms trafficking
- c. Drug trafficking
- d. Money laundering scams and frauds

Unit-3: Classification of Organized Crimes Indian Perspective

- a. Smuggling, Money Laundering and Hawala
- b. Terrorism
- c. Counterfeiting of Currency
- d. Drug trafficking: NDPS Act penal provisions
- e. Cyber Crimes and penal provisions in IT Act, 2000 (Sec.65, 66 & 67) 6)
- f. Trafficking of women and children
- g. Trafficking of Human Organs (penal provisions)

Unit-4: Legal Analysis, Investigation & Prosecution of Organized Crime

- a. Mens rea, modus operandi & criminal conspiracy in organized crime
- b. Role of Police in Investigation of organized crime
- c. Role of Judiciary, Trial and Sentencing in organized crime
- d. Legal provision under IPC and Indian Evidence Act.

Unit-5: Organized Crime, Threat to National Security & Preventive Action

- a. Close linkage between organized crime and terrorism – special reference to Maharashtra Control of Organized Crime Act, 1999 & Gujarat Control of Terrorism and Organized Crime Bill 2015.
- b. Issues & law related to Internal Security - The National Security Act, 1980.
- c. Armed Forces (Special Powers) Act (AFSPA) 1958

Text Books:-

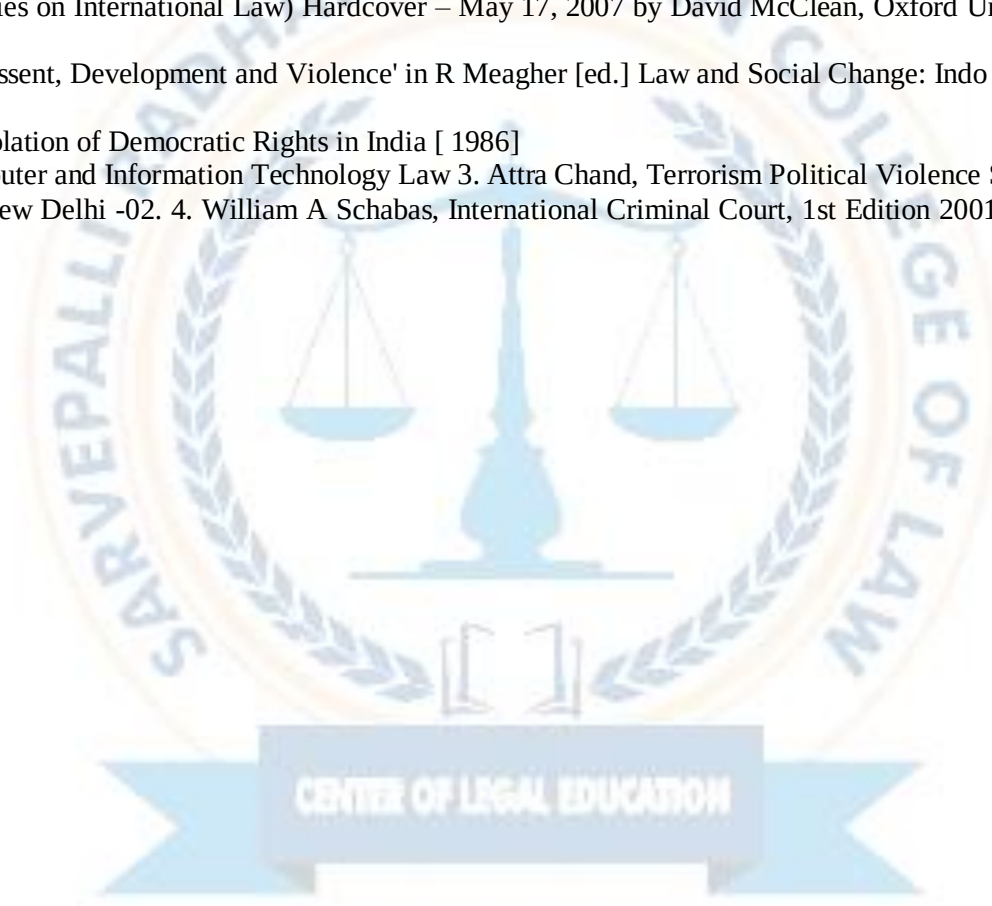
1. C.K. Gandhirajan, 2003, Organized Crime, APH Publishing Corporation, Tamil Nadu
2. P M Nair, Combating organized crime, Konark Publishers, New Delhi.
3. Mathur K.M., Crime, Human Rights and National Securities, Gian Publishing House, New Delhi -02
4. Patrick J. Ryan, 1997, Understanding Organized Crime in Global Perspective: A reader, Sage Publications, California.



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 2. Jay Albanese, Philip Reich, Transnational Organized Crime- An Overview from Six Continents
 3. N. Prabha Unnithan, 2013, Crime and Justice in India, Sage Publications, Colorado State University, Fort Collins
 4. Pace, Denny F, 1975, Organized Crime: Concept and Control, Prentice Hall Englewood Cliffs
 5. P.M Nair & Sankar Sen, 2005, Trafficking in Women and Children in India, Orient Blackswan Publication.
 6. Frank Madsen, 2008, Transnational Organized Crime, Global Institutions, New Delhi
 7. International and Transnational Criminal Law by David Luban, Julie R. O'Sullivan, David P. Stewart
 8. Transnational Organized Crime: A Commentary on the United Nations Convention and its Protocols (Oxford Commentaries on International Law) Hardcover – May 17, 2007 by David McClean, Oxford University Press (May 17, 2007)
 9. U Baxi - Dissent, Development and Violence' in R Meagher [ed.] Law and Social Change: Indo American Reflection 92 [1988]
 10. R Desai Violation of Democratic Rights in India [1986]
- Nadan Kamat, Computer and Information Technology Law 3. Attra Chand, Terrorism Political Violence Security of Nation, Gian Publishing House, New Delhi -02. 4. William A Schabas, International Criminal Court, 1st Edition 2001, Cambridge University Press





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PAPER-IV

LLM-204 Police Law and Administration

Unit I: Introduction(Lectures 8)

- a. History of Indian Police
- b. Policing in Ancient, Medieval and Modern India
- c. Police Act of 1861
- d. The Police Act, 1949
- e. National Police Commission Recommendations (NPC), 1979

Unit II: Organization and Structure of Indian Police(Lectures 10)

- a. The Police System Structure and hierarchy
- b. Functioning of police organizations
- c. Types of police organizations
- d. State Police
- e. District Police
- f. Central Police Organizations
- g. International Criminal Police Organizations

Unit III: Police Investigation Procedures(Lectures 10)

- a. Methods of Investigation - Information, Interrogation and Instrumentation
- b. Recording of FIR, Case Diary and Station
- c. House Diary
- d. Modus Operandi, Collection of Evidence
- e. Examination of Witnesses and Suspects, Confession, Filling charge sheet.

Unit IV: Contemporary Policing(Lectures 8)

- a. Modernization of police
- b. Public perception of police
- c. Police self image : measures to improve police image
- d. Developing healthy police public relationship, zero tolerance policing

Unit V: Police Reforms(Lectures 10)

- a. Constitution of the State Security Commission
- b. Selection and Minimum Tenure of Director-General of Police
- c. Minimum Tenure of Inspector General of Police and other Police Officers
- d. Separation of Investigation Staff from Law and Order Staff
- e. Constitution of a Police Establishment Board
- f. Constitution of Police Complaints Authority
- g. Establishment of a National Security Commission



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**Part-II
SEMESTER-III
PAPER-I**

LLM-301 Research Methodology

Unit I - Research

1. Socio-legal research.
2. Doctrinal and non-doctrinal research.
3. Computerized research.
4. Relevance of empirical research.

Unit II- Research material

1. Legislative research material.
2. Decisional research material.
3. Ratio decidendi and obiter dicta.
4. Juristic writing.

Unit III - Data collection.

1. Formulation of research problem.
2. Tools and techniques of data collection.
3. Use of questionnaire and interview.
4. Use of case study.

Unit IV- Sampling

1. **Sampling procedure**-design of sample, types of sample to be adopted.
2. Classification and tabulation of data.
3. Analysis of data.
4. Art of thesis writing.

Select Bibliography

1. William J. Grade and Paul K. Hatt, Methods in Social Research, London
2. H.M. Hyman, Interviewing in Social Research, 1965
3. Morris L Cohan, Legal Research in Nutshell, 1996
4. ILI Publication, Legal Research and Methodology



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PAPER-II

LLM-302 Crime and Investigation in ICT Era

Unit I - Nature and Scope of ICT

- a. Introduction to Information Technology
- b. Nature and functioning of Cyberspace
- c. Various platforms available in ICT:
 - i. Social media
 - ii. Cloud computing
 - iii. Internet of things
 - iv. Intermediaries
 - v. Virtual games, etc.
- d. Nature and Extent of misuse of ICT
- e. Stakeholders of Cyber world
- f. Development of Cyber laws

Unit II- Cyber Crime

- a. Evolution of Cyber crime
- b. Characterization and Classification of Cyber crimes
 - i. Cybercrime against women
 - ii. Cybercrime against child
 - iii. Cybercrime against society
 - iv. Cyber war, Cyber Terrorism
 - v. Cyber fraud
- c. The Challenges of Cyber Crime
- d. Legislative and judicial response to Cyber Crime

Unit III - Criminal Justice System and Cyber Crime

- a. Applicability of Criminal Procedure Code
- b. Challenges in investigation of Cyber Crime
- c. Evidentiary regime and the internet
- d. Admissibility, Burden of proof and Authenticity
- e. Forensic computing

Unit IV - International Response to Cybercrime

- a. International Cyber crimes
- b. Global Problems relating to Cybercrime
- c. International law and Cyber Crime
- d. Regional Cooperation relating to Cyber Crime



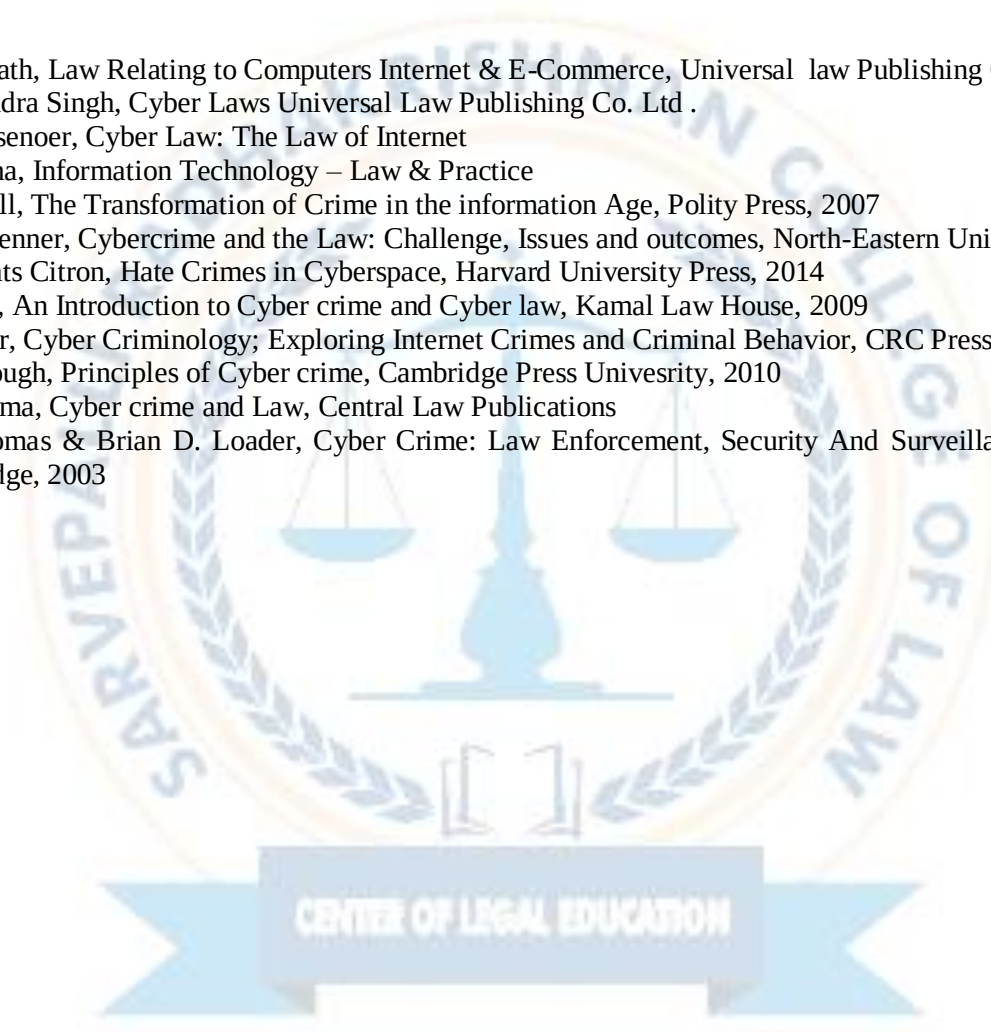
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Text Books

1. M. Dasgupta, Pranay Chaturvedi, Ankur Dalal, Cyber Crime in India: A Comparative study, Eastern Law House, 2009.
2. Robert Moore, Cyber crime: Investigating High Technology Computer Crime, Routledge Tylor & Forns Group, 2011
3. Jody R. Westby, International Guide to Combating cyber Crime, American Bar association, 2003

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1. Nandan Kamath, Law Relating to Computers Internet & E-Commerce, Universal Law Publishing Co. Ltd (Latest edition).
2. Justice Yatindra Singh, Cyber Laws Universal Law Publishing Co. Ltd .
3. Jonathan Rosenoer, Cyber Law: The Law of Internet
4. Vakul Sharma, Information Technology – Law & Practice
5. David S. Wall, The Transformation of Crime in the information Age, Polity Press, 2007
6. Susan W. Brenner, Cybercrime and the Law: Challenge, Issues and outcomes, North-Eastern University Press.
7. Danielle Keats Citron, Hate Crimes in Cyberspace, Harvard University Press, 2014
8. R. K. Dubey, An Introduction to Cyber crime and Cyber law, Kamal Law House, 2009
9. K. Jaishankar, Cyber Criminology; Exploring Internet Crimes and Criminal Behavior, CRC Press, 2011
10. Jonathan Clough, Principles of Cyber crime, Cambridge Press University, 2010
11. Dr. Amit Verma, Cyber crime and Law, Central Law Publications
12. Douglas Thomas & Brian D. Loader, Cyber Crime: Law Enforcement, Security And Surveillance in The Information Age, Routledge, 2003





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PAPER-III

LLM-303 Privileged Class Deviance

Unit-1: Privileged Class Deviance, meaning, nature and pressures

- a. Conceptions of white-collar crimes
- b. Indian approaches to socio-economic offences
- c. Notions of privileged class deviance as providing a wider categorization of understanding Indian development.
- d. Typical forms of such deviance
- e. Official deviance (deviance by legislators, judges, bureaucrats)
- f. Professional deviance: journalists, teachers, doctors, lawyers, engineers, architects and publishers
- g. Trade union deviance (including teachers, lawyers/urban property owners)
- h. Landlord deviance (class/castebased deviance)
- i. Police deviance
- j. Deviance on electoral process (rigging, booth capturing, impersonation, corrupt practices)
- k. Gender-based aggression by socially, economically and politically powerful

Unit-2: Official Deviance:

- a. Conception - permissible limit of discretionary powers
- b. The Chambal valley dacoit Vinoba Mission and Jai Prakash Narain Mission- in 1959 and 1971
- c. Principles of Natural Justice Commission reports [Chagla Commission on LIC-Mundhra Affair,
- d. The Das Commission Report on Pratap Singh Kairon,
- e. The Grover Commission Report on Dev Raj Urs,
- f. Maruti Commission Report,
- g. The Ibakkar - Natarajan Commission Report on Fairfax]

Unit-3: Police Deviance

- a. Structures of legal restraint on Police powers in India
- b. Unconstitutionality of 'third degree' method and use of fatal force by police
- c. Encounter killings
- d. Police atrocities
- e. Custodial violence the plea of superior orders
- f. Rape and related forms of gender based aggression
- g. National Police Commission - Reforms

Unit-4: Professional Deviance

- a. Unethical practices at the Bar
- b. Medical Malpractice
- c. 'yellow journalism'
- d. The Lentin Commission Report

Unit-5: Response of Indian Legal Order to the Deviance of Privileged Classes

- a. Vigilance Commission



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- b. Right to Information Act, 2005
- c. Public Accounts Commission
- d. Ombudsman Commission of Enquiry
- e. Prevention of Corruption Act, 1947
- f. Information Technology Act, 2000

Text Books

- 1. Glanville Williams, Text Book of Criminal Law [General part]
- 2. Upendra Baxi, The Crisis of the Indian Legal System [1982] Vikas Publishing House, New Delhi
- 3. Dwevedi and G S Bhargava Political Corruption in India [1967]
- 4. A R Desai [ed.] Violation of Democratic Rights in India [1986]
- 5. P R Rajgopal, Violence and Response: A Critique of the Indian Criminal System [1988]
- 6. B B Pande, The Nature and Dimensions of Privileged Class Deviance in The Other Side of Development 136 [1987; K S Shukla ed.]

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- 1. Upendra Baxi, Law and Poverty: Essays [1988]
- 2. Upendra Baxi, Liberty and Corruption: The Antulay Case and Beyond [1989] Surendranath
- 3. A G Noorani Minister's Misconduct [1974] 8. H S Becker Outsiders: The Studies in Sociology of Deviance [1966] 9





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PAPER-IV

LLM-304 National Security

UNIT-I: Concepts of National Security

- a. Concepts of National Security: Defining National Security, National Defence and National Interest, National Character and Evolution-of the National Security concept in the 20th Century and Beyond
- b. National Security Structures: Armed Forces, Intelligence Agencies, Police Forces, Decision-Making Structures, etc.
- c. National Security Environment: Internal and External
- d. Defence, Foreign, Security and Domestic Policies; Concept formulation, objectives and linkages
- e. Military Alliances and Pacts, Peace Treaties, Defence Cooperation, Strategic Partnership and Security Dialogue

UNIT II - Problems of Peace & Security

- a. War: (a) Theories and causes of war. (b) Principles of war (c) Contemporary warfare: Conventional Warfare in Nuclear age, Limited war, Revolutionary warfare, Low Intensity Operations, Guerilla warfare, Insurgency and Counter-Insurgency.
- b. Armaments: Arms Race, Arms Aid, Arms Trade, Arms Proliferation
- c. Military alliances and pacts, Peace treaties, Defence cooperation, strategic partnership and security dialogue
- d. Problem of system of Governance and Human Rights
- e. Terrorism: Concept and kinds (National, International and Cross border)
- f. Conflicting Ideologies: Militarism, Nationalism, Fundamentalism, Separatism, Irredentism.

UNIT III - Global security concerns

- a. End of cold war and emergence of new world order.
- b. Nuclear Proliferation & NPT, CTBT, MTCR, NMD
- c. Environmental Issues: climate change and Global Warming, Desertification, Acid Rains, Industrial Pollution, Deforestation
- d. Migrants and Refugees: (a) Causes (b) Illegal migration and border management (c) Problem in South Asia (d) Role of International Committee of Red Cross and UN High Commission for Refugees.
- e. Problem of System of Governance and Human Rights

UNIT IV- Issues in conflict resolution

- a. Origin, Type and Structure of Conflict
- b. Ideologies and International conflicts
- c. Role of United Nations in Conflict Management and Re – Structuring of UNO
- d. Techniques of Conflict Prevention
- e. Conflict Management: Pacific Solutions of International Disputes, Coercive methods
- f. Confidence Building Measures: Concept, kinds and utility.
- g. IGOs & NGOs in Conflict Resolution: Peace Making, Peace Keeping and Peace Building.
- h. Gandhian Philosophy on Peace and Non-violence
- i. Nehruvian approach to National Security and Cooperation

UNIT V- Science & Technology and National Security



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- a. Broad Survey of Technological Changes from Industrial Revolution to Information Revolution.
- b. India's Civil Nuclear and Space Programs, India's Energy Scenario.
- c. Research and Development: Relevance of Science and Technology in National Security.
- d. Impact of Information Technology; Revolution in Military Affairs (RMA).
- e. Choice of Weapon Systems.
- f. Impact of Economic Liberalization and Globalization
- g. Defence Production in India (Role of DPSU's and Ordnance factories).
- h. Defence and Development and Peace & Development Dichotomies.
- i. Issues of Mobilization of Resources during War and Peace.





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SEMESTER-IV

401.Dissertation and Viva voice





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GROUP B (CYBER LAW)

Paper-1st

LLM 101- Indian Constitutional Law : The New Challenges

Unit-1 Constitution and Federalism

- a. Concept of Constitution
- b. Meaning and idea of Constitution, Nature, Scope and Goal
- c. Constitution as Supreme law
- d. Making of Constitution : UK, U.S.A. and India
- e. Forms of Government : Unitary and Federal-salient features of both
- f. Nature of Indian Federalism

Unit-2 Separation of Powers : Stresses and strain

- a. Theory of Separation of Powers
 - i. Separation of Powers under the Indian Constitution
 - ii. Interrelationship among the three organ of the state
- b. Distribution of Legislative Powers: The Scheme of the distribution of legislative powers in India the judicial approach and the present position. Recommendation of Sarkaria Commission & Venkatachaliah Commission.
- c. Allocation and Share of Resources - distribution of grants in aid, inter-state disputes on resources
- d. Centre's responsibility and internal disturbance within states
- e. Directions of the centre to the state under Articles 356 and 365

Unit-3 Emerging regime of new rights and remedies

- a. Fundamental Rights
- b. Freedom of speech and right to broadcast and telecast
- c. Right to education; Commercialization of education and its impact; and Brain drain by foreign education market
- d. Right to strikes, hartal, and bandh
- e. Directive Principles of State Policy and Fundamental Duties

Unit-4 Democratic Process

- a. Nexus of politics with criminals and the business
- b. Election: Status of election commission, electoral reforms
- c. Coalition government: “stability, durability, and corrupt practice”
- d. Grassroot democracy



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Unit-5 Constitutional Remedies, Emergency and Amendment of the Constitution

- a. Right to Constitutional Remedies- Features of Writ Jurisdiction under Art.32
- b. Concept of locusstandi- Dynamic approach of Supreme Court on Public Interest Litigation – Judicial Activism - Comparison between Art. 32 and 226
- c. Freedom of trade and Commerce
- d. Types of Emergencies and their impact on Federal structure
- e. Amendment

Text Books

1. D.D.Basu, Constitution of India, Prentice-Hall of India (P)Ltd., 1996.
2. Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
3. The Constitutional Law of India by Dr. J.N.Pandey, with a Foreword by Justice H.C.P.Tripathi, Central Law Agency, Allahabad

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1. Duncan Derret, The State, Religion and Law in India, OUP, New Delhi, 1999.
2. H.M.Seervai, Constitutional Law of India, Tripathi, 1996.
3. Indian Law Institute, Law and Social Change : Indo-American Reflections, Tripathi Publications, 1988.
4. Julius Stone, Social Dimension of Law and Justice, Marc Galanter (ed.), Law and Society in Modern India, Oxford, 1997.
5. Robert Lingat, The Classical Law of India, Oxford, 1998.
6. Upendra Baxi, The Crisis of the Indian Legal System, Vikas Publications, 1982.
7. A.V.Dicey, Law and Public Opinion in 19th Century England.
8. Morris Ginsberg, Law and Public Opinion in 20th Century England.
9. P. Ishwar Bhatt, Law and Social Transformation, Eastern Book Company, Lucknow, 2008.
10. Stones, Social Dimensions of Law and Justice.



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PAPER-II

LLM-102 - Law and Social Transformation in India

Unit I : Law and Social Change

Meaning and concept of Law- Law as a purposive device, Change or transformation-Social change-Value orientation in social change-Theoretic Models on Social change and their application-Inter play between law and social change-stability and social change, Relationship between law and morality-culture, social change and law, Law and development, Social change in the context of democracy.

Historical and Sociological Study on the role of law in bringing about social change

Law and social change in ancient India-Social dimensions of law and social concern for justice-Role of family, associations and charitable institution in ancient India-The Interpretation of Shruti, Smriti and other commentaries to harmonize social change-Interaction between law and custom, Social control during the Muslim conquest-Social reform during the medieval period, Law and Social Transformation in Modern India-Colonial law and economic exploitation-Application of the Indian Law by the British-Social reforms and Women, Children and others-Codification of Laws-Freedom of Movement and Social reform ideas-Sociological perspective and social change.

Unit II : Constitution's Orientation and Social Transformation.

Impact of sociological school in India. Constitutional evolution and the Constitutional Assembly's role-Constitutional text as a mechanism for social change-the Constitutional amendments and social transformation-Basic structure theory as balancing continuity and change-The role of Governmental organs for social transformation- Working of the Constitution for Social transformation-Constitutional interpretation as an effective tool for social transformation. Application of international law in the process of constitutional interpretation-Constitutionalism and social transformation.

Legal concepts in new social order : Jurisprudence of Sarvodaya-Gandhiji, Vinoba Bhava, Jaya Prakash Narain-Concept of grama nyayalayas. Socialist thought on law and justice-An enquiry through constitutional debates on the right to property. Indian Marxist critique of law and justice, Naxalists Movement-Causes and cure-Rise of Dalits and changing equations in social order in twenty first century.

Unit III : Religion and Law

Religion as a divisive factor, secularism-Reform of the law on secular lines, Freedom of religion and non-discrimination on the basis of religion, Religious minorities and the law.

Language and the Law

Language as a divisive factor-formation of linguistic states, Constitutional protection to linguistic minorities, Non-discrimination on the ground of language. Language policy and the Constitution-Official Language, State Language, Court Language

Community and the Law

Caste as a divisive factor, Non-discrimination on the ground of caste, Acceptance of caste as a factor to undo past injustices, Protective discrimination-Scheduled castes, Tribes and Backward classes, Reservation



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: Statutory Commission, Statutory provisions.

Regionalism and the law

Regionalism as a divisive factor, concept of India as one unit, Right of Movement, residence and business, impermissibility of state or regional barriers, Equality in matters of employment-the slogan "sons of the soil" and its practice, Admission to educational institutions, preference to residents of a state.

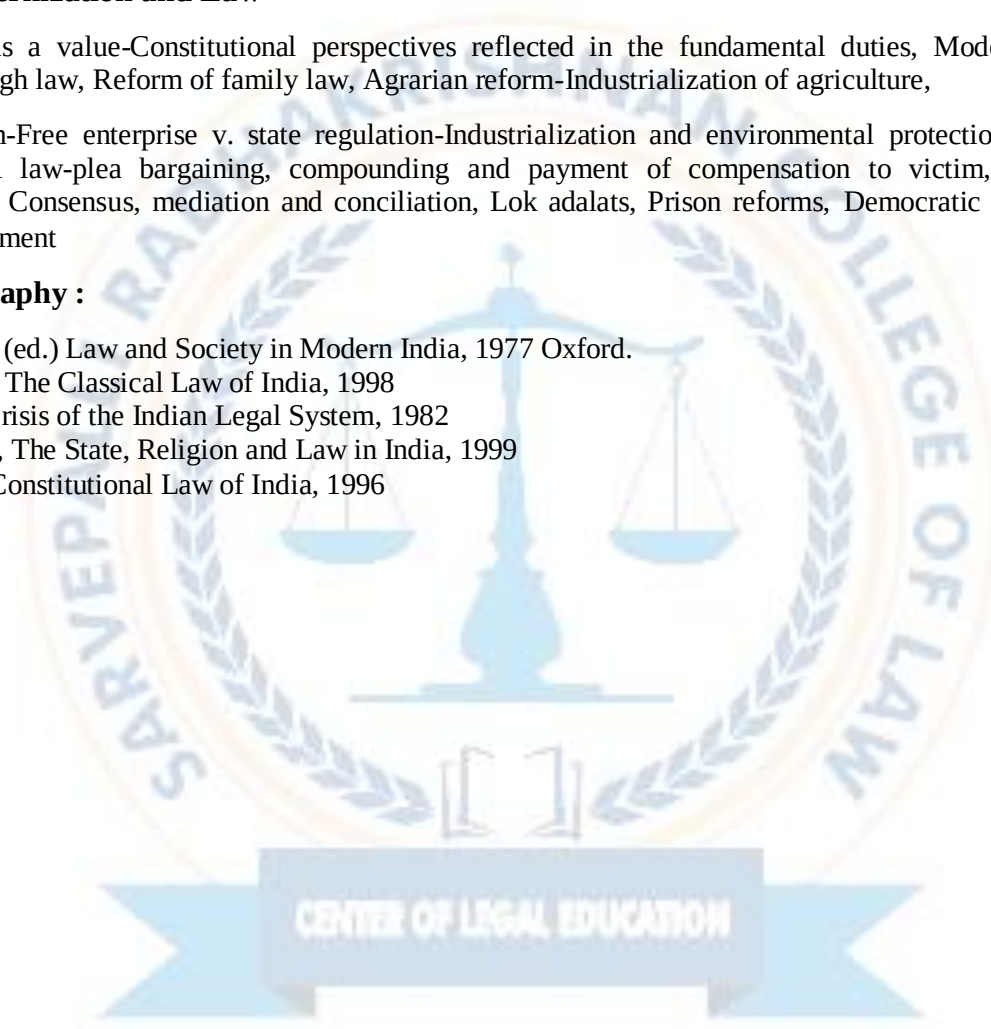
Unit IV : Modernization and Law

Modernization as a value-Constitutional perspectives reflected in the fundamental duties, Modernization of social institutions through law, Reform of family law, Agrarian reform-Industrialization of agriculture,

Industrial reform-Free enterprise v. state regulation-Industrialization and environmental protection, Reform of court process-Criminal law-plea bargaining, compounding and payment of compensation to victim, Civil laws-(ADR) Confrontation v. Consensus, mediation and conciliation, Lok adalats, Prison reforms, Democratic decentralisation and local self-government

Select Bibliography :

- 1.Marc Galanter (ed.) Law and Society in Modern India, 1977 Oxford.
- 2.Robert Lingat, The Classical Law of India, 1998
- 3.U. Baxi, The Crisis of the Indian Legal System, 1982
- 4.Duncan Derret, The State, Religion and Law in India, 1999
- 5.H.M.Seervai, Constitutional Law of India, 1996





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Paper-III

LLM- 103- Information Technology Law

Unit-1 Evolution of the IT Act, Genesis and Necessity

- a. Salient features of the IT Act, 2000; various authorities under IT Act and their powers.
- b. Penalties & Offences
- c. Impact on other related Acts (Amendments)

Unit-2 Cyber Space Jurisdiction

- a. Jurisdiction issues under IT Act, 2000,
- b. Traditional Principals of Jurisdiction
- c. Extra terrestrial Jurisdiction
- d. Case Laws on Cyber Space Jurisdiction
- e. E-commerce and Laws in India
- f. Digital / Electronic Signature in Indian Laws
- g. E-Commerce; Issues and provisions in Indian Law
- h. E-Governance; concept and practiceability in India
- i. E-Taxation issues in Cyber space
- j. E-Contracts and its validity in India
- k. Cyber Tribunal & Appellate Tribunal
- l. Cyber Regulations

Unit-3 Intellectual Property Rights, Domain Names and Trade mark Disputes

- a. Concept of Trademark/ in Internet Era
- b. Cyber squatting
- c. Reverse Hijacking
- d. Jurisdiction in Trademark Disputes
- e. Copyright in the Digital Medium
- f. Copyright in Computer Programmes
- g. Copyright and WIPO Treaties
- h. Concept of Patent Right
- i. Relevant Provisions of Patent Act 1970

Unit-4 SPDI

- a. Sensitive Personal Data or Information (SPDI) in Cyber Law

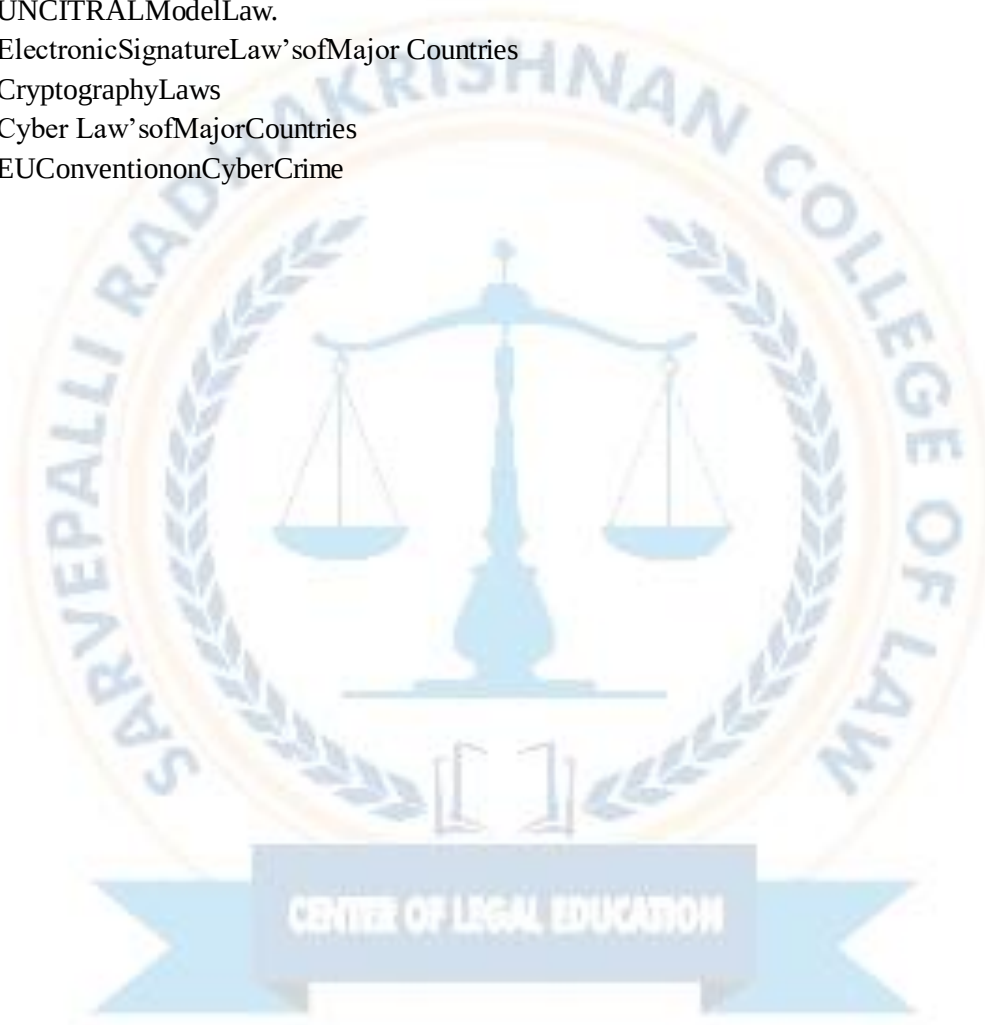


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- b. SPDI Definition and Reasonable Security Practices in India
- c. Reasonable Security Practices –International perspective
- d. *Cloud* Computing & Law

Unit-5 Cyber Law: International Perspective

- a. EDI: Concept and legal Issues.
- b. UNCITRAL Model Law.
- c. Electronic Signature Law's of Major Countries
- d. Cryptography Laws
- e. Cyber Law's of Major Countries
- f. EU Convention on Cyber Crime





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Paper-IV

LLM -104- Cyber Laws and Intellectual Property Rights

Unit1 : Fundamentals of Cyber Law

- a. Introduction on cyber space
- b. Jurisprudence of Cyber Law
- c. Scope of Cyber Law
- d. Cyber law in India with special reference to Information Technology Act, 2000(as amended) and Information Technology Act, 2008.

Unit2 : E-Governance and E- Commerce

- a. Electronic Governance
- b. Procedures in India
- c. Essentials & System of Digital Signatures
- d. The Role and Function of Certifying Authorities
- e. Digital contracts
- f. UNCITRAL Model law on Electronic Commerce
- g. Cryptography–Encryption and decryption

Unit3: Cyber Crimes Investigation

- a. Investigation related issues
- b. Issues relating to Jurisdiction
- c. Relevant provisions under Information Technology Act, Evidence Act
- d. Indian Penal Code
- e. Cyber forensics- Case studies

Unit4: Trademark,Copyright and Patent laws

Definitions and concepts

Trademark

- a. Introduction to Trademarks
- b. Functions and types of Trademarks
- c. Madrid Agreements
- d. Trademarks Law Treaty(Geneva)
- e. Indian Trademark Act
- f. Registration of Trademarks
- g. Rights conferred by Registration of Trademarks
- h. Infringement of Registered Trademark
- i. Defenses
- j. Trademarks dilution



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k. International Applications and Case Studies

Copyright

- a. Basics
- b. Copyright Law
- c. Terms of Copyright
- d. Registration of Copyrights
- e. Transfer of Ownership of Copyright
- f. Infringement
- g. Liability
- h. Exemptions
- i. Defenses
- j. Case Studies
- k. Copyrights Laws in India

PatentLaw

- a. Basics
- b. Conditions of Patentability
- c. WIPO Patent Co-operation Treaty
- d. Geneva convention on Patent Law
- e. Software and Business Method Patents
- f. Indian Patent Act
- g. Infringement
- h. Defenses
- i.

Unit5 : Intellectual Property Rights

- a. Concept of IPR
- b. Global Scenario with Case Laws
- c. IPR infringements
- d. Secrecy and Confidentiality in IPR
- e. Civil and Criminal liabilities in IPR
- f. International Applications and its advantages
- g. Important international conventions and Treaties
- h. Paris Industrial Property
- i. Berne convention literary and artistic work



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Semester -II

Paper-I

LLM – 201- Judicial Process

1. Nature of judicial process

1. Judicial process as an instrument of social ordering
2. Judicial process and creativity in law – common law model – Legal Reasoning and growth of law – change and stability
3. The tools and techniques of judicial creativity and precedent
4. Legal development and creativity through legal reasoning under statutory and codified systems

2. Special dimensions of Judicial Process in Constitutional Adjudications

1. Nations of judicial review
2. Role in constitutional adjunctions – various theories of judicial role
3. Tools and techniques in policy– making and creativity in constitutional adjunction
4. Varieties of judicial and justice activism
5. Problems of accountability and judicial law making

3. Judicial Process in India

1. Indian debate on the role of judges and on the nation of judicial review
2. The “Independence” of judiciary and the “Political” nature of judicial process
3. Judicial activism and creativity of the Supreme Court – the tools and techniques of creativity
4. Judicial process in pursuit of constitutional goals and values – new dimensions of judicial activism and structural challenges
5. Institutional liability of courts and judicial activism-scope and limits

4. The concepts of Justice

1. The concept of justice or Dharma in Indian thought
2. Dharma as the foundation of legal ordering in Indian thought
3. The concept and various theories of justice in the western thought
4. Various theoretical bases of justice: the liberal contractual tradition, the liberal utilitarian tradition and the liberal moral tradition

5. Relation between Law and Justice

1. Equivalence Theories – Justice as nothing as nothing more than the positive law of the stronger class
2. Dependency theories – for its realization justice depends on law, but justice is not the same as law
3. The independence of justice theories-means to end relationship of law and justice- the relationship in the context of the Indian constitutional ordering
4. Analysis of selected cases of the Supreme Court where the judicial process can be seen as influenced by theories of justice

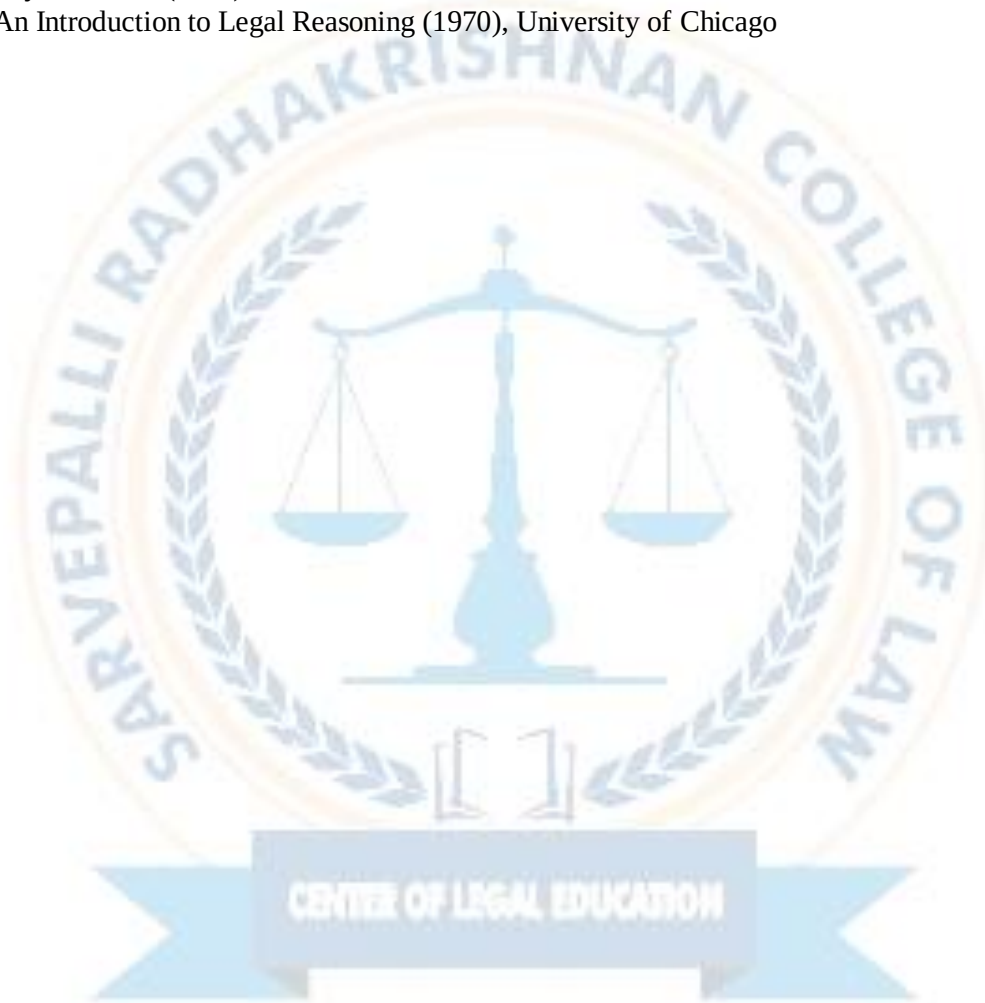
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2. Carzo, The Nature of Judicial Process (1995) Universal, New Delhi
3. Henry J. Abraham, The judicial Process (1998), Oxford
4. J. Stone, Precedent and the Law: Dynamics of Common Law Growth (1985) Butterworths
5. W.Friedmann, Legal Theory(1960), Stevens, Landon
6. Bodenheimer, Jurisprudence-the Philosophy and Method of the Law (1997), Universal, Delhi
7. J. Stone, Legal System and Lawyers' Reasoning (1999), Universal Delhi
8. U. Baxi, The Indian Supreme Court of India – A Socio – Legal Critique of its Juristic Techniques (1977), Tripathi, Bombay
9. John Rawls, A Theory of Justice (2000), Universal, Delhi
10. Edward H. Levi, An Introduction to Legal Reasoning (1970), University of Chicago





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Paper-II

LLM – 202 - Introduction to Cyber Criminology

Unit-1 Principles and Concepts of Cyber Criminology –Crime,Tort, Misdemeanour

- a. Cyber Space,
- b. Cyber Crime,
- c. Cyber Criminology,
- d. Information Security,
- e. Penetration Testing,
- f. Incident Response, GRC,etc.-Conventional crimes vs.Cyber Crimes.

Unit-2 Contemporary Forms of Crimes

- a. White Collar Crimes, Economic Offences,
- b. Organized Crimes,
- c. Terrorism,
- d. Crime and Media and other contemporary forms of crimes.

Unit-3 Psychology of Cyber Criminals

- a. Types of Cyber Criminals
- b. Modus Operandi of Cyber Criminals
- c. Profiling of Cyber Criminals –Tools and Techniques adopted by Cyber criminals
- d. Psychological theories relating to cyber criminals.

Unit4: Cyber Crime–Sociological and Criminological Perspectives

- a. Causes of Cyber
- b. Crimes-Criminological Theories and Cyber Crime
- c. Routine Activity Theory,
- d. Social Learning Theory,
- e. Differential Association Theory,
- f. Differential Opportunity Theory,
- g. Media and Crime and latest theories and other related theories.

Unit5: The Role of Criminal Justice Administration and Cyber Crimes

- a. Police–Organizational structure of Police in India
- b. Different wings in the States and Districts and their functions
- c. Police & Law Enforcement



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- d. F.I.R.
- e. Cognizable and non-cognizable offences,
- f. Bailable and non-bailable offences
- g. arrest,
- h. search,
- i. seizure
- j. Interrogation of suspects and witnesses
- k. chargesheet
- l. Cyber crime cells
- m. Structure & investigation of cyber crime cases.
- n. Judiciary-Different types of courts–Cyber Appellate Court/Tribunals/Powers– Proceedings in the court before trial, after trial, plea of guilty, sentencing.
- o. The Role of N.G.O.s in the Prevention of Cyber Crimes
- p. The Role of Victims of Cyber Crimes in the Criminal Justice Administration
- q. **CrimePrevention-** Crime and sense of security-Social control and crime prevention-
- r. Community and crime prevention-Contemporary crime prevention strategies.

Books

- 1. Kanika Seth;“Computers,Internet and NewTechnology Laws”,Lexis Nexis Butterworth Wadhwa, 2012.
- 2. Vikas Vasishta.;“Law and practice of intellectual property in India”
- 3. Jonathan Rosenoer;“Cyber Law:The Law of Internet”,Springer-Verlag, New York,1997.
- 4. Sreenivasulu N.S;“Law Relating to Intellectual Property”,PartridgePublishing,2013
- 5. Pavan Duggal;“Cyber Law–The Indian Perspective”,Saakshar Law Publications.
- 6. Harish Chandler;“Cyber Laws and IT Protection”,PHI Learning Pvt.Ltd, 2012.
- 7. Nina Godbole and Sunit Belapore;“Cyber Security: Understanding Cyber Crimes,Computer Forensics and Legal Perspectives”, Wiley Publications, 2011.
- 8. Vakul Sharma;“Information Technology: Law and Practice”, Universal Law Publishing Co., India, 2011.
- 9. The Copyright Act,1957
- 10. The Patent Act,1970
- 11. The Indian Evidence Ac



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Paper-III

LLM-203- Mobile and Network Forensics

Unit-1 Introduction to Mobile Technologies

Asynchronous Transfer Mode (ATM), Wireless Application Protocol (WAP). Cellular technologies including Advanced Mobile Phone System (AMPS), I mode, Time Division Multiple Access (TDMA), Code Division Multiple Access (CDMA) and Global System for Mobile Communications (GSM) including features and relative strengths. Functions of Subscriber Identity Unit (SIM), International Mobile Equipment Identity (IMEI), Bluetooth and Mobile Payment Gateways. Understanding of the mobile phone operating systems – Android, iOS, Windows. Basics of Rooting \ Jailbreaking.

Unit-2 Introduction to Mobile Eco-System Security

Mobile Security Model, Enterprise Mobile Environment, Mobile Crypto Algorithm. Mobile phones including SIM cloning and other Bluetooth vulnerabilities. Attacks - Denial of Service (DOS), Packet Spoofing & Masquerading, Eavesdropping etc. Wireless Public Key Infrastructure. Securing WLAN, WEP Decryption script, Understanding of SQLite Databases. Voice, SMS and Identification Data Interception in GSM. SMS security issues – Availability, Confidentiality and Integrity issues.

Unit-3 Introduction to Mobile Forensics

Mobile Forensic, Types of Evidence present in mobile phones - Files present in SIM card, phone memory dump, and evidences in memory card. Seizure and Preservation of mobile phones and PDA. Mobile phone evidence extraction process, Data Acquisition Methods – Physical, Logical and File System\Manual Acquisition. Good Forensic Practices, Mobile Forensic Investigation Toolkit. Tracking of mobile phone location. Analysis of mobile data like SMS, call logs, contacts, media files, recordings and important mobile application data (IM Chats like WhatsApp, telegram, i Message, Email clients, Calendar, Reminder and Note apps). Challenges to Mobile forensics. CDR and IPDR analysis.

Unit-4 Introduction to Network Forensics

Monitoring of computer network and activities, Live Packet Capturing and Analysis. Searching and collection of evidences from the network. Network Intrusion Detection and Analysis. Event Log Aggregation – role of logs in forensic analysis, tools and techniques. Investigating network attacks. Evidence collection from Routers & CCTV DVRs. Forensic analysis of online browsing activity and related artifacts.

Unit-5 Network Security



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IP security architecture, Security protocols, IPsec, Web Security – Firewalls, IDS, IDPS –Types and Technologies. Trusted systems – Electronic payment protocols. Network Security Applications, Authentication Mechanisms: Passwords, Cryptographic authentication protocol, Kerberos, X.509 LDAP Directory. Digital Signatures.





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Paper-IV

LLM-204- Fundamentals of Computers & Networking Security

Unit-1 Introduction to Cyber Security

Introduction to Cyber Security. Confidentiality, Integrity and Availability – Triad. Attacks: Threats, Vulnerabilities and Risk. Risk Management, Risk Assessment and Analysis. Information Classification, Policies, Standards, Procedure and Guidelines. Controls: Physical, Logical and Administrative; Security Frameworks, Defence in-depth: Layers of Security. Identification and Authentication – Factors. Authorization and Access Controls- Models, Methods and Types of Access Control.

Unit-2 Basics of Cryptography

Definitions and Concepts, Symmetric and Asymmetric Cryptosystems, Classical Encryption Techniques – Substitution Techniques, Transposition Techniques, Block Ciphers and Stream Ciphers, Hybrid Encryption Techniques, One-Time Pad. E-mail security, Internet and Web Security. Steganography and its detection, Data Encryption Standard (DES), Principles of public key cryptosystems-The RSA algorithm-Key management - Diffie Hellman Key exchange.

Unit-3 Network and Wireless Attacks

Network Sniffing, Wire shark, packet analysis, display and capture filters, Ettercap, DNS Poisoning, ARP Poisoning, Denial of services, Vulnerability scanning, Setup network IDS/IPS, Router attacks, Man-in-the-middle Attack, N map, open ports, filtered ports, service detection, network vulnerability assessment, Evade anti viruses and firewalls, Protocols, MAC Filtering, Packet Encryption, Packet Sniffing, Types of authentication, Attacks on WEP, WPA and WPA-2 Encryption, fake hotspots.

Unit-4 Network Security

IP security architecture, Security protocols, IPsec, Web Security – Firewalls, IDS, IDPS –Types and Technologies. Trusted systems – Electronic payment protocols. Network Security Applications, Authentication Mechanisms: Passwords, Cryptographic authentication protocol, Kerberos, X.509 LDAP Directory. Digital Signatures.

Unit-5 Web Security

SSL Encryption, TLS, SET. Intrusion detection. Securing online payments (OTP).

Books

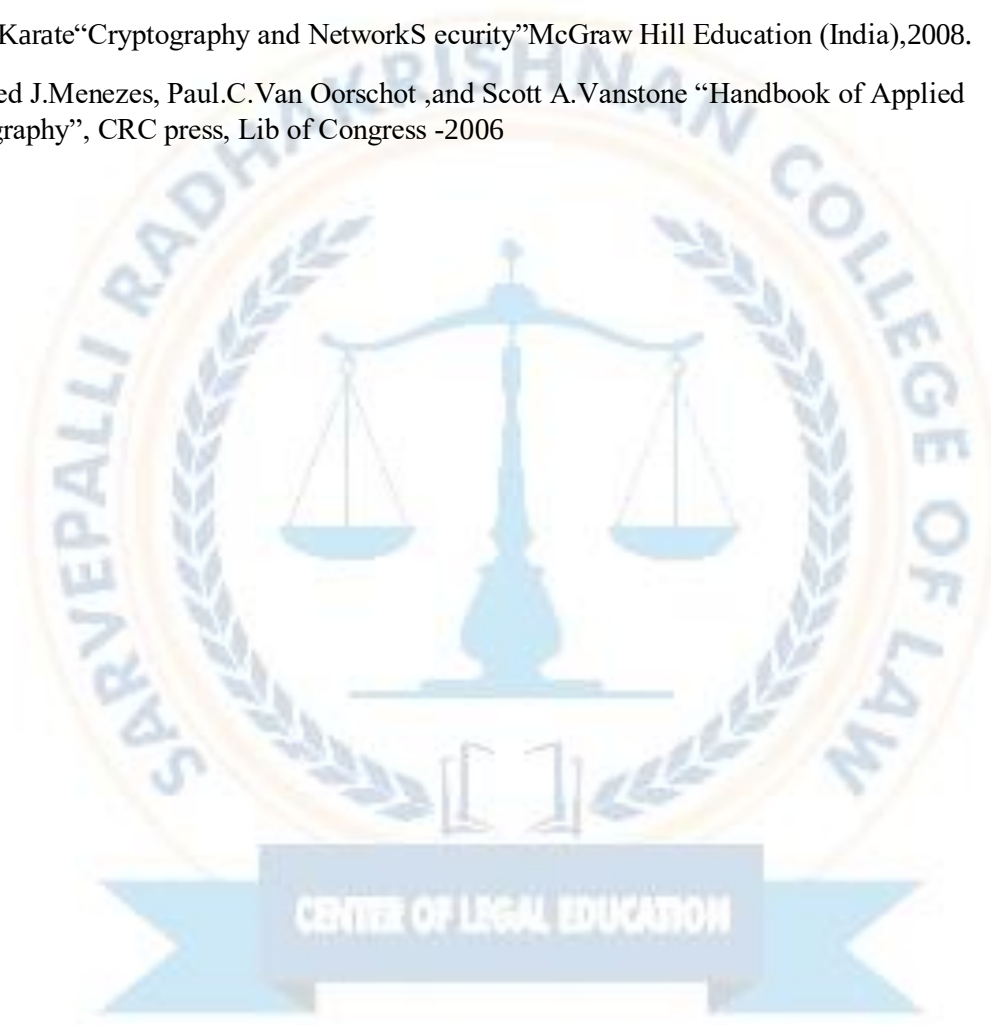
1. William Stallings; “Cryptography and Network Security: Principles and Practices”, Fifth Edition,



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Prentice Hall Publication Inc., 2007.

2. Nina Godbole and Sunita Belapore; "Cyber Security: Understanding Cyber Crimes, Computer Forensics and Legal Perspectives", Wiley Publications, 2011.
3. Matt Bishop, "Computer Security Art and Science", Pearson/PHI, 2002.
4. Michael E Whiteman and Herbert J Mattoid; "Principles of Information Security", Vikas Publishing House, New Delhi, 2003.
5. Atul Karate "Cryptography and Network Security" McGraw Hill Education (India), 2008.
6. Alfred J. Menezes, Paul C. Van Oorschot, and Scott A. Vanstone "Handbook of Applied Cryptography", CRC press, Lib of Congress - 2006





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SEMESTER-II

PAPER-I

LLM-301 Research Methodology

Unit I

1. Socio-legal research.
2. Doctrinal and non-doctrinal research.
 - i. Computerized research.
 - ii. Relevance of empirical research.

Unit II

1. Legislative research material.
2. Decisional research material.
3. Ratio decidendi and obiter dicta.
4. Juristic writing.

Unit III

1. Formulation of research problem.
2. Tools and techniques of data collection.
3. Use of questionnaire and interview.
4. Use of case study.

Unit IV

1. Sampling procedure-design of sample, types of sample to be adopted.
2. Classification and tabulation of data.
3. Analysis of data.
4. Art of thesis writing.

Select Bibliography

1. William J. Grade and Paul K. Hatt, Methods in Social Research, London
2. H.M. Hyman, Interviewing in Social Research, 1965
3. Morris L Cohan, Legal Research in Nutshell, 1996
4. ILI Publication, Legal Research and Methodology



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Paper-II

LLM-302- Digital Forensics

Unit-1 Basics of Digital Forensics

Digital Forensics- Introduction, Objective and Methodology, Rules of Digital Forensics, Good Forensic Practices, Daubert's Standards, Principles of Digital Evidence. Overview of types of Computer Forensics – Network Forensics, Mobile Forensics, Social Media Forensics and E-mail Forensics. Services offered by Digital Forensics. First Responder – Role, Toolkit and Do's and Don'ts

Unit-2 Cyber Crime Investigation

Introduction to Cyber Crime Investigation, Procedure for Search and seizure of digital evidences in cyber-crime incident. Forensics Investigation Process- Prese arch consideration, Acquisition, Duplication & Preservation of evidences, Examination and Analysis of evidences, Storing of Evidences, Documentation and Reporting, Maintaining the Chain of Custody. Data Acquisition of live system, Shutdown Systems and Remote systems, servers. E-mail Investigations, Password Cracking. Seizing and preserving mobile devices. Methods of data acquisition of evidence from mobile devices. Data Acquisition and Evidence Gathering from Social Media. Performing Data Acquisition of encrypted systems. Challenges and issues in cyber-crime investigation.

Unit-3 Analysis of Digital Evidences

Search and Seizure of Volatile and Non-volatile Digital Evidence, Imaging and Hashing of Digital Evidences, Introduction to Deleted File Recovery, Steganography and Stainless, Data Recovery Tools and Procedures, Duplication and Preservation of Digital Evidences, Recover Internet Usage Data, Recover Swap files/Temporary Files/Cache Files. Software and Hardware tools used in cyber-crime

Unit-4 Investigation

Open Source and Proprietary tools. Importance of Log Analysis in forensic analysis. Understanding Storage Formats for Digital Evidences – Raw Format, Proprietary Formats, Advanced Forensic Formats. Basics of various email clients like Outlook, Lotus Notes, Thunderbird, and forensically relevant files for the same (in both Windows and MacBook OS).

Unit-5 Windows and Linux Forensics

Windows Systems Artifacts: File Systems, Registry, Event logs, Shortcut files, Executables. Alternate Data Streams (ADS), Hidden files, Slack Space, Disk Encryption, Windows registry, start-up tasks, jumplists, Volume Shadow, shellbags, LNK files, Recycle Bin Forensics (INFO, \$i, \$files). Forensic Analysis of the Registry– Use of registry viewers, Regedit. Extracting USB related artifacts and examination of protected storages. Linux System Artifact: Ownership and Permissions, Hidden files, User Accounts and Logs. Use of built-in command line tools for forensic investigation – dd, dcfldd, frisk, miffs, mount, unmount, md5sum, sha1sum, damsel.

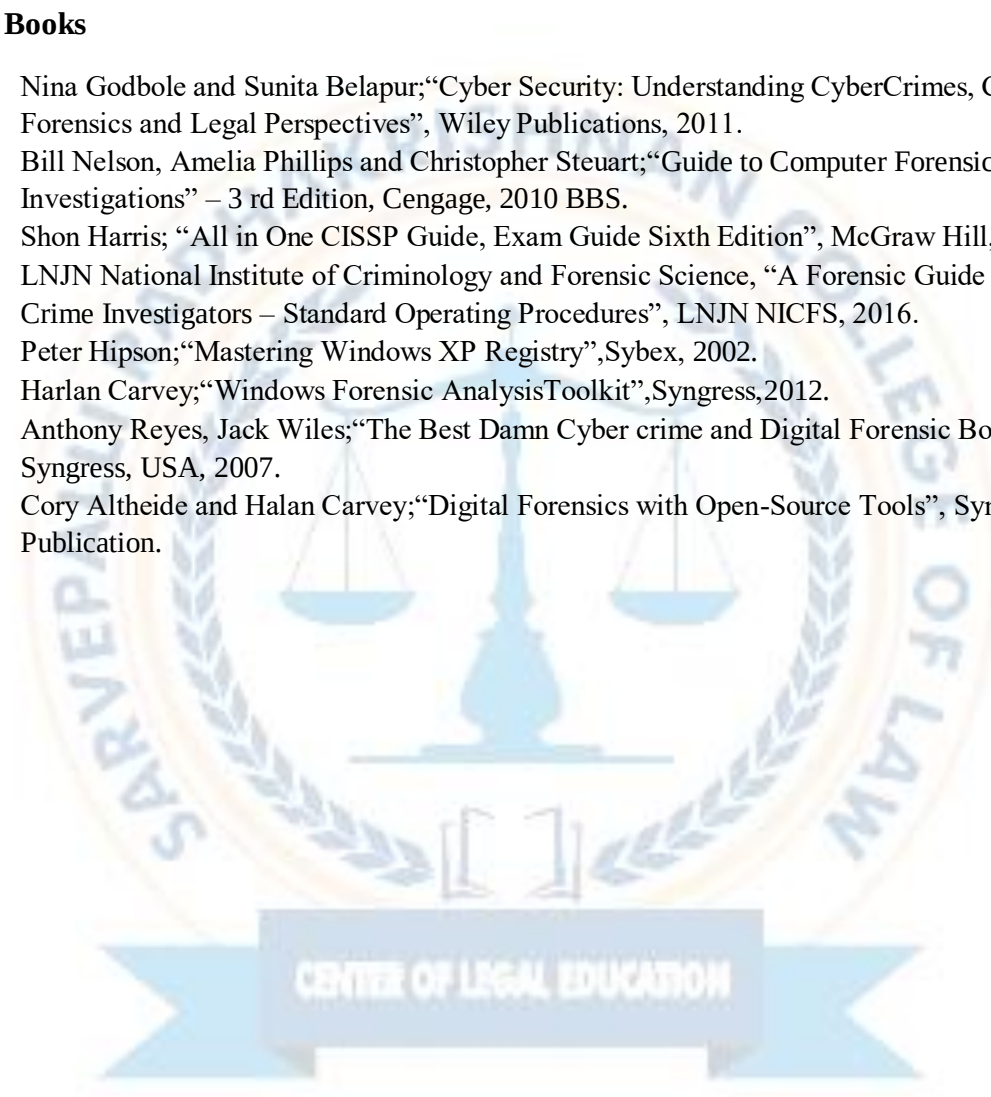


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Forensic Acquisition and analysis of Apple OS MacBook's, and their various forensic artefacts (Plists), Function of File Vault, Keychain.

Reference Books

1. Nina Godbole and Sunita Belapur; "Cyber Security: Understanding CyberCrimes, Computer Forensics and Legal Perspectives", Wiley Publications, 2011.
2. Bill Nelson, Amelia Phillips and Christopher Steuart; "Guide to Computer Forensics and Investigations" – 3 rd Edition, Cengage, 2010 BBS.
3. Shon Harris; "All in One CISSP Guide, Exam Guide Sixth Edition", McGraw Hill, 2013.
4. LNJNI National Institute of Criminology and Forensic Science, "A Forensic Guide for Crime Investigators – Standard Operating Procedures", LNJNI NICFS, 2016.
5. Peter Hipson; "Mastering Windows XP Registry", Sybex, 2002.
6. Harlan Carvey; "Windows Forensic Analysis Toolkit", Syngress, 2012.
7. Anthony Reyes, Jack Wiles; "The Best Damn Cyber crime and Digital Forensic Book", Syngress, USA, 2007.
8. Cory Altheide and Harlan Carvey; "Digital Forensics with Open-Source Tools", Syngress Publication.





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Paper-III

LLM – 303- Cyber Crime and Investigation Procedures

Unit1: Cyber crime and investigation procedures

Cyber Forensic and Computer Crimes and types.

Crimes targeting Computers: Definition of Cyber Crime & Computer related Crimes,

Classification & Differentiation between traditional crime and cyber crimes.

- a. Data Theft
- b. Hacking
- c. Spreading Virus & Worms
- d. Phishing
- e. Cyber Stalking/ Bullying
- f. Identity Theft & Impersonation
- g. Credit card & Online Banking Frauds
- h. Obscenity, Pornography & Child Pornography
- i. Cyber Defamation, Defacement,
- j. Illegal online selling & Gambling
- k. Denial of Service Attacks
- l. Cyber terrorism
- m. Software Piracy & illegal downloading

Unit2 Reasons for Cyber Crimes

Cyber Criminal Mode and Manner of Committing Cyber Crime

Prevention of Cyber Crimes & Frauds Critical analysis & loop holes of The IT Act, 2000

Unit3: Cyber Crimes

- a. Freedom of speech in cyber space & human right issues
- b. Investigation of Cyber Crimes
- c. Investigation of malicious applications
- d. Agencies for investigation in India, their powers and their constitution as per Indian Laws
- e. Procedures followed by First Responders;

Unit4: Search and Seizure Procedures of Digital Evidence Securing the Scene,

Documenting the Scene, Evidence Collection and Transportation

- a. Data Acquisition



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b. Data Analysis

c. Reporting

Digital Forensics

- a. Computer Forensics
- b. Mobile Forensics
- c. Forensic Tools
- d. Anti-Forensics

Unit5: Electronic/Digital Evidence laws & cases Laws

International Organizations and Their Roles

- a. ICANN
- b. URDP
- c. WTO and TRIPS
- d. Interpol & Europol
- e. Impact of Cyber warfare on Privacy Identity
- f. Net Neutrality and EU Electronic communication Regulatory framework
- g. WCAG
- h. Social Networking sites Vis-a- Vis Human Right
- i. Case Laws: Indian & International Cases



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Paper-IV

LLM-304- Cloud and Virtual Technology Security Cyber Law

Unit-1: Introduction of Cyber Law – International Perspectives

- a. Computers and its Impact in Society
- b. Overview of Computer and Web Technology
- c. Cyber Jurisprudence at International and Indian Level
- d. UN & International Telecommunication Union (ITU) Initiatives
- e. Council of Europe-Budapest Convention on Cyber crime
- f. Asia-Pacific Economic Co operation (APEC)
- g. Organization for Economic Co-operation and Development (OECD)
- h. World Bank
- i. Commonwealth of Nations

Unit-2: Constitutional & Human Rights Issues in Cyber space

- a. Freedom of Speech and Expression in Cyber space
- b. Right to Access Cyber space–Access to Internet
- c. Right to Privacy
- d. Right to Data Protection

Unit-3 Cyber Crimes & Legal Framework

- a. Cyber Crimes against Individuals, Institution and State
- b. Hacking
- c. Digital Forgery
- d. Cyber Stalking/ Harassment
- e. Cyber Pornography
- f. Identity Theft & Fraud
- g. Cyber terrorism
- h. Cyber Defamation
- i. Different offences under IT Act, 2000

Unit-4: E-Commerce

- a. Concept
- b. E-commerce-Salient Features
- c. Online approaches like B2B, B2C & C2C
- d. Online contracts
- e. Click Wrap Contracts
- f. Applicability of Indian Contract Act, 1872



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Unit-5: Dispute Resolution in Cyber space

- a. Concept of Jurisdiction
- b. Indian Context of Jurisdiction and IT Act, 2000
- c. International Law and Jurisdictional Issues in Cyber space
- d. Dispute Resolutions

Text Books

1. Justice Yatindra Singh, Cyber Laws, Universal Law Publishing Co, New Delhi, (2012)
2. S.R.Bhansali, Information Technology Act, 2000, University Book House Pvt. Ltd. ,Jaipur (2003)
3. Vasu Deva, Cyber Crimes and Law Enforcement, Commonwealth Publishers, New Delhi, (2003)
4. References
5. Chris Reed & John Angel, Computer Law, OUP, New York, (2007)
6. Verma S, K, Mittal Raman, Legal Dimensions of Cyber Space, Indian Law Institute, New Delhi, (2004)
7. Jonathan Rosner, Cyber Law, Springer, New York, (1997)

SEMESTER -IV

LLM 401	Dissertation & Viva-Voce		30	70
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GROUP C - CONSTITUTION AND ADMINISTRATION LAW

Paper-I

LLM 101- Indian Constitutional Law : The New Challenges

Unit-1 Constitution and Federalism

- a. Concept of Constitution
- b. Meaning and idea of Constitution, Nature, Scope and Goal
- c. Constitution as Supreme law
- d. Making of Constitution : UK, U.S.A. and India
- e. Forms of Government : Unitary and Federal-salient features of both
- f. Nature of Indian Federalism

Unit-2 Separation of Powers : Stresses and strain

- a. Theory of Separation of Powers
 - i. Separation of Powers under the Indian Constitution
 - ii. Interrelationship among the three organs of the state
- b. Distribution of Legislative Powers: The Scheme of the distribution of legislative powers in India the judicial approach and the present position. Recommendation of Sarkaria Commission & Venkatachaliah Commission.
- c. Allocation and Share of Resources - distribution of grants in aid, inter-state disputes on resources
- d. Centre's responsibility and internal disturbance within states
- e. Directions of the centre to the state under Articles 356 and 365

Unit-3 Emerging regime of new rights and remedies

- a. Fundamental Rights
- b. Freedom of speech and right to broadcast and telecast
- c. Right to education; Commercialization of education and its impact; and Brain drain by foreign education market
- d. Right to strikes, hartal, and bandh
- e. Directive Principles of State Policy and Fundamental Duties

Unit-4 Democratic Process

- a. Nexus of politics with criminals and the business
- b. Election: Status of election commission, electoral reforms
- c. Coalition government: "stability, durability, and corrupt practice"



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d.Grassroot democracy

Unit-5 Constitutional Remedies, Emergency and Amendment of the Constitution

- a.Right to Constitutional Remedies- Features of Writ Jurisdiction under Art.32
- b.Concept of locusstandi- Dynamic approach of Supreme Court on Public Interest Litigation – Judicial Activism - Comparison between Art. 32 and 226
- c.Freedom of trade and Commerce
- d.Types of Emergencies and their impact on Federal structure
- e.Amendment

Text Books

- 1.D.D.Basu,Constitution of India,Prentice-Hall of India (P)Ltd.,1996.
- 2.Constitution of India by V N Shukla,Eastern Book Company, Lucknow,2018
- 3.The Constitutional Law of India by Dr. J.N.Pandey, with a Foreword by Justice 4.H.C.P.Tripathi, Central Law Agency, Allahabad

References:

- 1. Duncan Derret, The State, Religion and Law in India, OUP, New Delhi, 1999.
- 2. H.M.Seervai,Constitutional Law of India,Tripathi,1996.
- 3..Indian Law Institute, Law and Social Change : Indo-American Reflections, Tripathi Publications, 1988.
- 4.Julius Stone, Social Dimension of Law and Justice, Marc Galanter (ed.), Law and Society in Modern India, Oxford, 1997.
- 5..Robert Lingat, The Classical Law of India, Oxford,1998.
- Upendra Baxi, The Crisis of the Indian Legal System, Vikas Publications,1982.
- 6..A.V.Dicey,Law and Public Opinion in19th Century England.
- 7..Morris Ginsberg, Law and Public Opinion in 20th Century England.
- 8..P. Ishwar Bhatt, Law and Social Transformation, Eastern Book Company, Lucknow,2008.
- 9..Stones, Social Dimensions of Lawand Justice.



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PAPER-II

LLM-102 - Law and Social Transformation in India

Unit I : Law and Social Change

Meaning and concept of Law- Law as a purposive device, Change or transformation-Social change-Value orientation in social change-Theoretic Models on Social change and their application-Inter play between law and social change-stability and social change, Relationship between law and morality-culture, social change and law, Law and development, Social change in the context of democracy.

Historical and Sociological Study on the role of law in bringing about social change

Law and social change in ancient India-Social dimensions of law and social concern for justice-Role of family, associations and charitable institution in ancient India-The Interpretation of Shruti, Smriti and other commentaries to harmonize social change-Interaction between law and custom, Social control during the Muslim conquest-Social reform during the medieval period, Law and Social Transformation in Modern India-Colonial law and economic exploitation-Application of the Indian Law by the British-Social reforms and Women, Children and others-Codification of Laws-Freedom of Movement and Social reform ideas-Sociological perspective and social change.

Unit II : Constitution's Orientation and Social Transformation.

Impact of sociological school in India. Constitutional evolution and the Constitutional Assembly's role-Constitutional text as a mechanism for social change-the Constitutional amendments and social transformation-Basic structure theory as balancing continuity and change-The role of Governmental organs for social transformation- Working of the Constitution for Social transformation-Constitutional interpretation as an effective tool for social transformation. Application of international law in the process of constitutional interpretation-Constitutionalism and social transformation.

Legal concepts in new social order : Jurisprudence of Sarvodaya-Gandhiji, Vinoba Bhava, Jaya Prakash Narain-Concept of grama nyayalayas. Socialist thought on law and justice-An enquiry through constitutional debates on the right to property. Indian Marxist critique of law and justice, Naxalists Movement-Causes and cure-Rise of Dalits and changing equations in social order in twenty first century.

Unit III : Religion and Law

Religion as a divisive factor, secularism-Reform of the law on secular lines, Freedom of religion and non-discrimination on the basis of religion, Religious minorities and the law.

Language and the Law

Language as a divisive factor-formation of linguistic states, Constitutional protection to linguistic minorities, Non-discrimination on the ground of language. Language policy and the Constitution-Official Language, State Language, Court Language

Community and the Law

Caste as a divisive factor, Non-discrimination on the ground of caste, Acceptance of caste as a factor to undo past injustices, Protective discrimination-Scheduled castes, Tribes and Backward classes, Reservation

: Statutory Commission, Statutory provisions.



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Regionalism and the law

Regionalism as a divisive factor, concept of India as one unit, Right of Movement, residence and business, impermissibility of state or regional barriers, Equality in matters of employment-the slogan "sons of the soil" and its practice, Admission to educational institutions, preference to residents of a state.

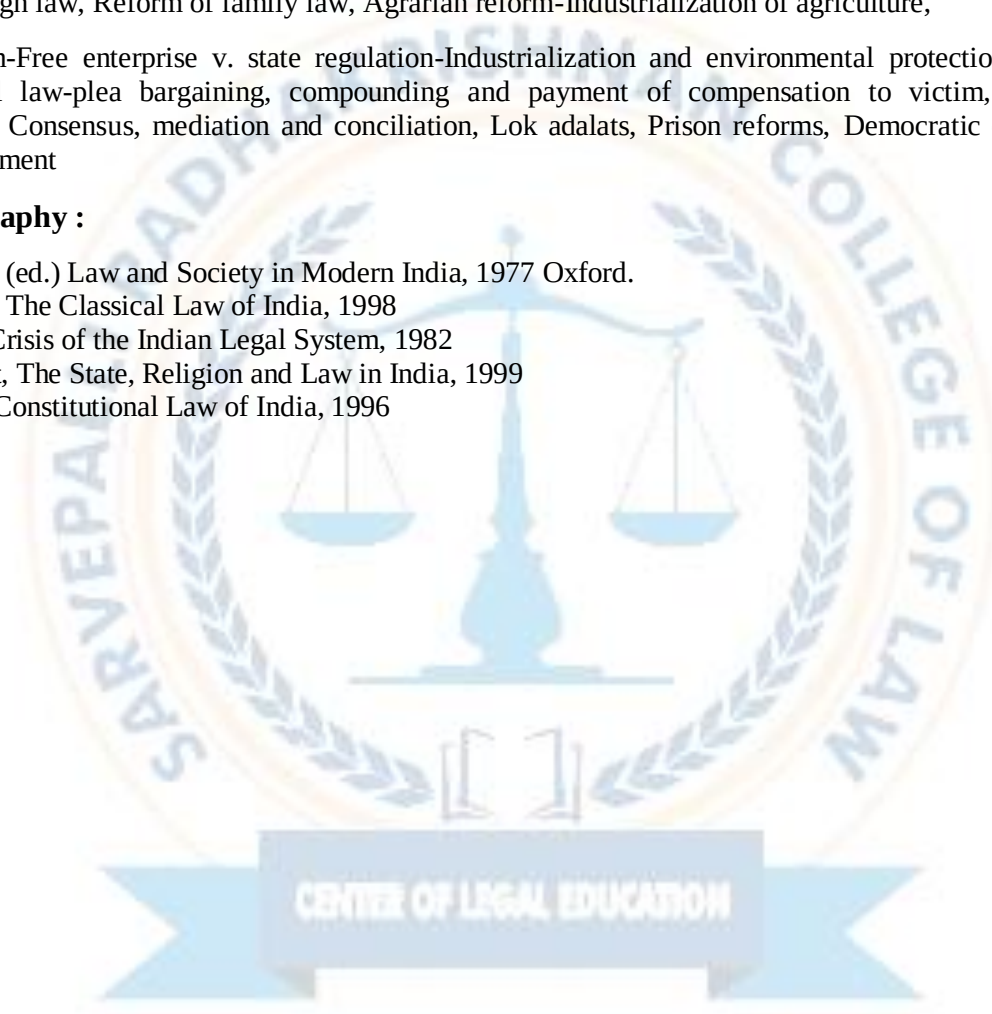
Unit IV : Modernization and Law

Modernization as a value-Constitutional perspectives reflected in the fundamental duties, Modernization of social institutions through law, Reform of family law, Agrarian reform-Industrialization of agriculture,

Industrial reform-Free enterprise v. state regulation-Industrialization and environmental protection, Reform of court process-Criminal law-plea bargaining, compounding and payment of compensation to victim, Civil laws-(ADR) Confrontation v. Consensus, mediation and conciliation, Lok adalats, Prison reforms, Democratic decentralisation and local self-government

Select Bibliography :

- e. Marc Galanter (ed.) Law and Society in Modern India, 1977 Oxford.
- f. Robert Lingat, The Classical Law of India, 1998
- g. U. Baxi, The Crisis of the Indian Legal System, 1982
- h. Duncan Derret, The State, Religion and Law in India, 1999
- i. H.M.Seervai, Constitutional Law of India, 1996





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PAPER-III

LLM-103 - Fundamental Rights, Directive Principles and Fundamental duties

UNIT-I

Introduction

- Evolution of Fundamental Rights, Impact of Universal Declaration of Human Rights and Constitutions of other countries
- Concepts of Fundamental Rights
- Definition of state under Art.12
- Inviolability of Fundamental Rights-Article 13
- Doctrine of Waiver
- Doctrine of Severability
- Doctrine of Eclipse
- Scope of definition of law under art.13

UNIT-II

Right to equality

- Art. 14 - Doctrine of Classification
- Doctrine of Arbitrariness
- Doctrine of Legitimate Expectation
- Art. 15- Prohibited grounds for discrimination (Art.15)
- Special provisions relating to women
- Protective discrimination in favor of Backward Classes
- Scheduled Castes and Scheduled Tribes
- Art.16- Equality of Opportunity in the matters of public employment
- Reservations in public employment
- Residence as prerequisite for employment

UNIT-III

Right to Freedom and Personal Liberty

- Art. 19- Fundamental freedoms under Art.19 and reasonable restrictions Art 19 (2) to (6)
- Doctrine of ex-post-facto law
- Doctrine of Double Jeopardy
- privilege against self-incrimination
- Protection of life and personal liberty
- Right to education

UNIT-IV

Right against Exploitation and Constitutional Remedies

- Safeguards against ordinary arrest and preventive detention
- Right against exploitations
- Art.25-30 Ambit of religious freedom, cultural and educational rights



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- Art. 32 and 226- Right to constitutional remedies
- Emergency Provisions

UNIT-V

Directive Principles of State Policy and Fundamental Duties

- Relative importance of Directive Principles of State Policy (DPSP) and Fundamental Rights
- Nature of Directive Principles of State Policy
- Justiciability of Directive Principles of State Policy
- Social security and welfare provisions under Directive Principles of State Policy
- Economic rights
- Fundamental Duties – evolution, relationship between Fundamental Rights and Duties

Suggested Readings:

1. D.D. Basu, Constitution of India, Prentice-Hall of India (P) Ltd., 1996.
2. Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
3. The Constitutional Law of India by Dr. J.N.Pandey, with a Foreword by Justice H.C.P.Tripathi, Central Law Agency, Allahabad
4. H.M. Seervai, Constitutional Law of India – Vol. I & II
5. Hidayatullah (Ed.), Constitution of India.
6. M.P.Jain, Indian Constitutional Law.
7. Subba Rao G C V Indian constitutional law
8. Saharay H K Constitution of India
9. Pylee M.V Our constitution government & politics
10. Tope T K Constitutional law of India



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PAPER-IV

LLM-104 Administrative Law - I

Unit-I-Administrative Law

- Definition,
- Nature, Scope and Functions

Unit-II-Growth of Administrative Law in India

- Basic Constitutional Principles: Indian Perspectives
- Rule of Law
- Separation of Powers
- Natural Justice

Unit-III-Classification of Administrative Functions

- Administrative Discretion
- Rules of Fairness
- Transparency and Accountability

Unit-IV-Administrative Bodies

- Lokpal and Lokayukt
- Right to Information
- Vigilance Commission
- Comptroller and Auditor - General of India
- Commissions of Inquiry
- Administrative Tribunals

Unit-V-Delegated Legislation

- Importance
- Need and Constitutionality of Delegated Legislation
- Conditional Legislation
- Controls on Delegated Legislation
- Parliamentary Control
- Procedural and Judicial Control

Suggested Readings:

1. D.D. Basu, Constitution of India, Prentice-Hall of India (P) Ltd., 1996.
2. Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
3. The Constitutional Law of India by Dr. J.N.Pandey, with a Foreword by Justice H.C.P.Tripathi, Central Law Agency, Allahabad
4. H.M. Seervai, Constitutional Law of India – Vol. I &II
5. Hidayatullah (Ed.), Constitution of India.



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6. M.P.Jain, Indian Constitutional Law.
7. Subba Rao G C V Indian constitutional law
8. Saharay H K Constitution of India
9. Pylee M.V Our constitution government & politics
10. Tope T K Constitutional law of India





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Semester -II

Paper-I

LLM 201 – Judicial Process

1. Nature of judicial process

1. Judicial process as an instrument of social ordering
2. Judicial process and creativity in law – common law model – Legal Reasoning and growth of law – change and stability
3. The tools and techniques of judicial creativity and precedent
4. Legal development and creativity through legal reasoning under statutory and codified systems

2. Special dimensions of Judicial Process in Constitutional Adjudications

1. Nations of judicial review
2. Role in constitutional adjunctions – various theories of judicial role
3. Tools and techniques in policy– making and creativity in constitutional adjunction
4. Varieties of judicial and justice activism
5. Problems of accountability and judicial law making

3. Judicial Process in India

1. Indian debate on the role of judges and on the nation of judicial review
2. The “Independence” of judiciary and the “Political” nature of judicial process
3. Judicial activism and creativity of the Supreme Court – the tools and techniques of creativity
4. Judicial process in pursuit of constitutional goals and values – new dimensions of judicial activism and structural challenges
5. Institutional liability of courts and judicial activism-scope and limits

4. The concepts of Justice

1. The concept of justice or Dharma in Indian thought
2. Dharma as the foundation of legal ordering in Indian thought
3. The concept and various theories of justice in the western thought
4. Various theoretical bases of justice: the liberal contractual tradition, the liberal utilitarian tradition and the liberal moral tradition

5. Relation between Law and Justice

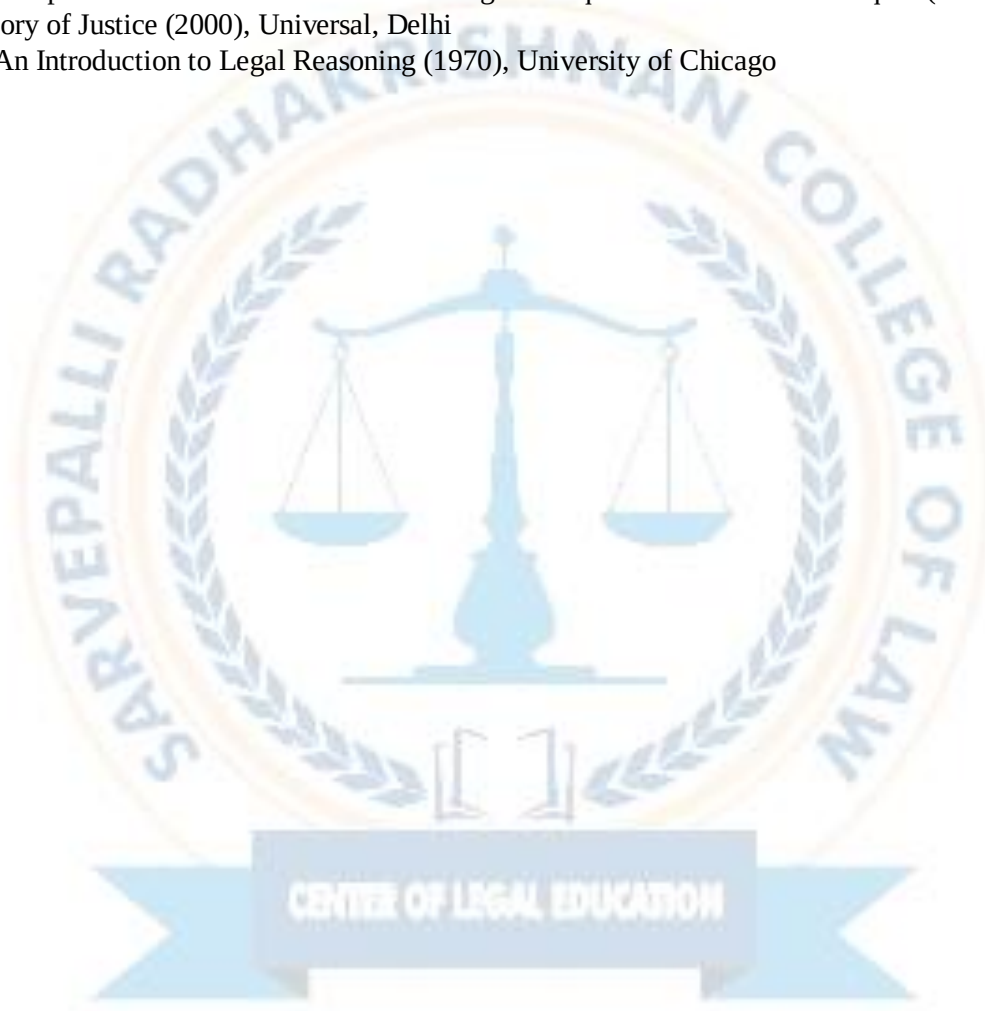
1. Equivalence Theories – Justice as nothing as nothing more than the positive law of the stronger class
2. Dependency theories – for its realization justice depends on law, but justice is not the same as law
3. The independence of justice theories-means to end relationship of law and justice- the relationship in the context of the Indian constitutional ordering
4. Analysis of selected cases of the Supreme Court where the judicial process can be seen as influenced by theories of justice

Selected bibliography



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

1. Julius Stone, The Province and Function of Law, Part II Chs. 1. 8-16 (2000), University New Delhi
2. Carzo, The Nature of Judicial Process (1995) Universal, New Delhi
3. Henry J. Abraham, The judicial Process (1998), Oxford
4. J. Stone, Precedent and the Law: Dynamics of Common Law Growth (1985) Butterworths
5. W.Friedmann, Legal Theory(1960), Stevens, Landon
6. Bodenheimer, Jurisprudence-the Philosophy and Method of the Law (1997), Universal, Delhi
7. J. Stone, Legal System and Lawyers' Reasoning (1999), Universal Delhi
8. U. Baxi, The Indian Supreme Court of India – A Socio – Legal Critique of its Juristic Techniques (1977), Tripathi, Bombay
9. John Rawls, A Theory of Justice (2000), Universal, Delhi
10. Edward H. Levi, An Introduction to Legal Reasoning (1970), University of Chicago





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Paper-II

LLM-202 Political Structure and Governance

Unit I- Formation of Union of India and Units

- Sovereign, Democratic and Republican characteristics of India
- Federal Principles of the Constitution
- Distribution of Powers between the Union and States
- Legislative
- Executive
- Financial

Unit-II-Parliamentary System of Governance

- Union Parliament and State Legislatures: Structure and Composition
- Functions
- Parliamentary Committees
- Powers, Privileges and Immunities of Houses,
- Members and Committees of the Parliament
- Council of Ministers

Unit-III-President, Vice – President and Governor

- Election of President, Vice – President and Governor
- Removal of President, Vice – President and Governor
- Immunities of President, Vice – President and Governor
- Powers and Functions of President, Vice – President and Governor

Unit-IV-Panchayats and Local Administrative Bodies

- Panchayati Raj Institutions
- The Municipalities
- The Scheduled and Tribal Areas

Unit-V-Services under The Union and The States

- Recruitment and conditions of service of persons serving the Union or a State
- Tenure of office
- Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a State
- All-India services
- Power of Parliament to vary or revoke conditions of service of officers of certain services
- Transitional provisions

Suggested Readings:

1. Kuppaswamy, B. and Kumar, B.V., *Social Change in India*, Konark Publisher Pvt Ltd, Delhi, 2006
2. Baxi, Upendra, 1985, *Towards a Sociology of Indian Law*, New Delhi, ICSSR/Satvahan Publications



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

3. Upendra,Baxi,*The Crisis of Indian Legal System*, New Delhi : Vikas, ©1982
4. Upendra,Baxi,*Law and Poverty: Critical Essays*, Bombay : N.M. Tripathi, 1988
5. Galenter, Marc, *Law and Society in Modern India*, OUP India, 1993
6. Freidman, W., *Law in Changing Society*, Sweet and Maxwell, South Asian Edition, 2nd Edition,2016
7. Hunt, Allan,*Sociological Movement in Law*, Palgrave, September 30, 1978
8. Sinha, Balbir Sahai,*Law and Social Changein India*, Deep & Deep, 1983
9. Desai, A. R.,*Social Background of Indian Nationalism*, Popular Prakashan Ltd.





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Paper-III

LLM-203 Administrative Law-II

Unit-I-Comparative Administrative Law

- French concept of Separation of Powers and Administrative Courts
- Droit Administratif
- Administrative courts in France
- Council d'etat

Unit-II-Evolution and significance of Administrative Law in various systems of governance -

- From ancient to modern
- England
- USA
- Other systems

Unit-III-Scope of Judicial Review

- Scope of Judicial Review in UK
- Scope of Judicial Review in US
- Public Interest Litigation in India and US

Unit-IV-Global Administrative Law

- Globalization and Global Governance
- Players in Global Governance – Public, Private and Hybrid
- Emergence of Global Administrative Law: Bottom - up and Top - down approach
- Global Administrative Law: Perspectives of Developing Countries

Unit-V-Procedural Fairness

- Evolution and Significance of Natural Justice
- England: Judicial Process
- Doctrine of fairness and doctrine of legitimate expectation
- U.S.: Due process and judicial decision
- India: Through judicial decision-Doctrine of Fairness (Art.14, 19, 21)
- Doctrine of Legitimate Expectation
- Privilege against disclosure
- official secrecy
- Access to information

Suggested Readings:

1. Kuppaswamy, B. and Kumar, B.V., *Social Change in India*, Konark Publisher Pvt Ltd, Delhi, 2006
2. Baxi, Upendra, 1985, *Towards a Sociology of Indian Law*, New Delhi, ICSSR/Satvahan Publications



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

3. Upendra,Baxi, *The Crisis of Indian Legal System*, New Delhi : Vikas, ©1982
4. Upendra,Baxi, *Law and Poverty: Critical Essays*, Bombay : N.M. Tripathi, 1988
5. Galenter, Marc, *Law and Society in Modern India*, OUP India, 1993
6. Freidman, W., *Law in Changing Society*, Sweet and Maxwell, South Asian Edition, 2nd Edition,2016
7. Hunt, Allan, *Sociological Movement in Law*, Palgrave, September 30, 1978
8. Sinha, Balbir Sahai, *Law and Social Changein India*, Deep & Deep, 1983
9. Desai, A. R., *Social Background of Indian Nationalism*, Popular Prakashan Ltd.





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Paper-IV

LLM-204- Judicial Review of Administrative Action

UNIT 1 GENERAL PRINCIPLES

General principles of judicial review - courts as the final authority to determine the legality of administrative action - problems and perspectives

UNIT 2 SCOPE OF JUDICIAL REVIEW

Grounds of judicial review - scope of judicial review - jurisdictional error - error of law violation of the principles of natural justice - violation of public policy

UNIT 3 METHODS OF JUDICIAL REVIEW

Methods of judicial review - public and private law remedies - exhaustion of alternative remedies - res judicata

UNIT 4 JUDICIAL ACTIVISM

Concept of locus standi - public interest - judicial activism - latest trends in PIL litigation - merit and demerits of PIL

UNIT 5 JUDICIAL REVIEW IN INDIA

Judicial Review by the Supreme Court and High Courts under Articles 226, 227, 32 and 136.

TEXT BOOKS

1. M. P. Jain & S. N. Jain -Principles of Administrative Law, 6th Edition 2001, Publication - Lexis NexisButterworth'sWadawa Nagpur
2. P. Massey - Administrative Law, 7th Edition 2008. Publication - Eastern Book Company, Lucknow.
3. H.W.R. Wade and C.F. Forsyth - Administrative Law, 10th Edition 2009, Publication-Oxford University Press, New York

REFERENCE BOOKS

1. Dr. CD Jha's Judicial Review of Legislative Acts Second Edition, 2009
2. Garner's –Administrative Law, 8th Edition 1996, Oxford University Press
3. De Smith -Judi



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

**Part-II
SEMESTER-III
PAPER-I**

LLM-301 Research Methodology

Unit I

1. Socio-legal research.
2. Doctrinal and non-doctrinal research.
3. Computerized research.
4. Relevance of empirical research.

Unit II

1. Legislative research material.
2. Decisional research material.
3. Ratio decidendi and obiter dicta.
4. Juristic writing.

Unit III

- 1..Formulation of research problem.
- 2.Tools and techniques of data collection.
- 3.Use of questionnaire and interview.
- 4.Use of case study.

Unit IV

- 1.Sampling procedure-design of sample, types of sample to be adopted.
- 2.Classification and tabulation of data.
- 3.Analysis of data.
- 4.Art of thesis writing.

Select Bibliography

- 1.William J. Grade and Paul K. Hatt, Methods in Social Research, London
- 2.H.M. Hyman, Interviewing in Social Research, 1965
- 3.Morris L Cohan, Legal Research in Nutshell, 1996
- 4.ILI Publication, Legal Research and Methodology



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

Paper- II

LLM 302 - Finances, Trade, Commerce and Intercourse and PSC under Indian Constitution

Unit-I-Finance

- Taxes
- Consolidated Funds
- Contingency Fund
- Distribution of Revenues between the Union and the States
- Duties levied by the Union but collected and appropriated by the State
- Grants from the Union to certain States
- Finance Commission

Unit-II-Miscellaneous financial provisions and Borrowing

- Expenditure defrayable by the Union or a State out of its revenues
- Exemption of property of the Union from State taxation
- Borrowing by the Government of India
- Borrowing by States

Unit-III-Property, Contracts, Rights, Liabilities, Obligations and Suits and Right to Property

- Succession to property, assets, rights, liabilities and obligations in certain cases and in other cases
- Property accruing as bona vacantia
- Things of value within territorial waters
- Power to carry on trade, etc
- Contracts, Suits and proceedings
- Right to Property

Unit-IV-Trade, Commerce and Intercourse within the Territory of India

- Freedom of trade, commerce and intercourse
- Power of Parliament to impose restrictions
- Restrictions on the legislative powers of the Union and of the States
- Restrictions on trade, commerce and intercourse among States
- Saving of existing laws and laws providing for State monopolies
- Appointment of authority for carrying out the purposes of articles 201 to 204

Unit-V-Public Service Commissions

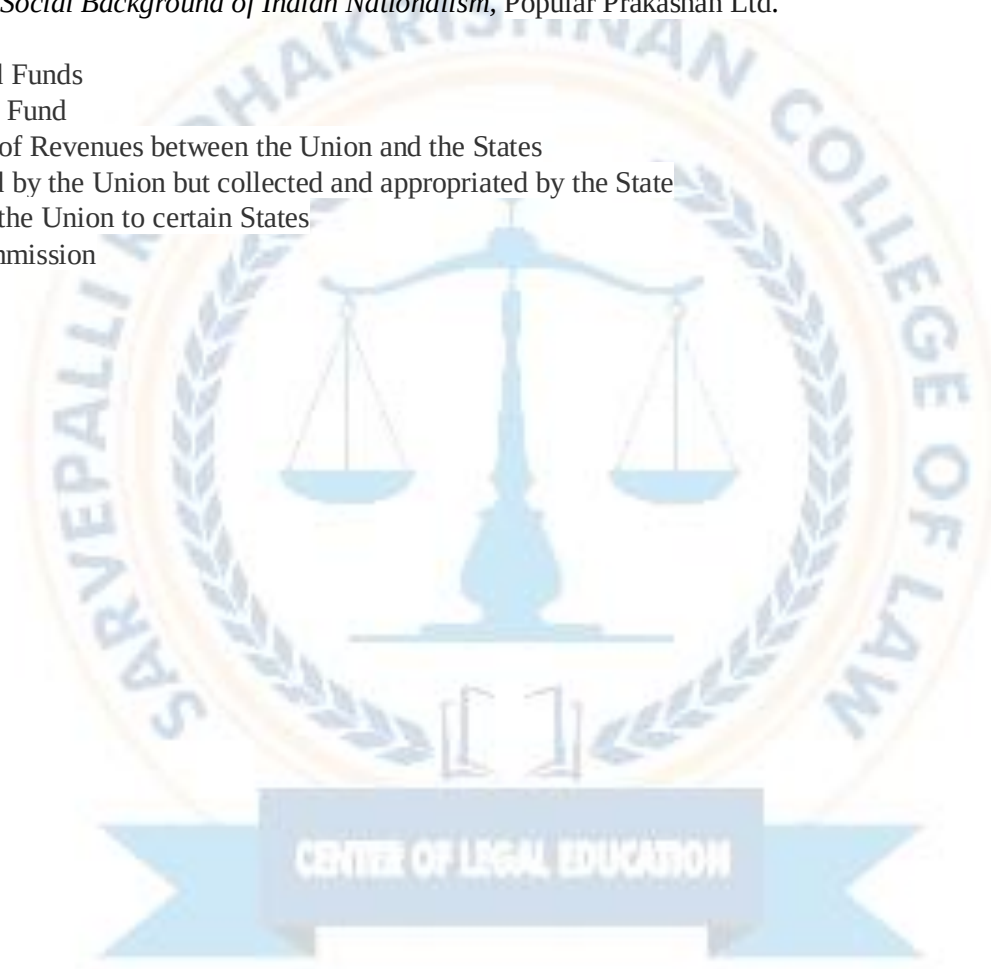
- Appointment and term of office of members
- Removal and suspension
- Power to make regulations as to conditions of service of members
- Functions of PSCs
- Expenses of Public Service Commissions
- Reports of Public Service Commissions.

Suggested Readings:



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

1. Kuppaswamy, B. and Kumar, B.V., *Social Change in India*, Konark Publisher Pvt Ltd, Delhi, 2006
 2. Baxi, Upendra, 1985, *Towards a Sociology of Indian Law*, New Delhi, ICSSR/Satvahan Publications
 3. Upendra, Baxi, *The Crisis of Indian Legal System*, New Delhi : Vikas, ©1982
 4. Upendra, Baxi, *Law and Poverty: Critical Essays*, Bombay : N.M. Tripathi, 1988
 5. Galanter, Marc, *Law and Society in Modern India*, OUP India, 1993
 6. Friedman, W., *Law in Changing Society*, Sweet and Maxwell, South Asian Edition, 2nd Edition, 2016
 7. Hunt, Allan, *Sociological Movement in Law*, Palgrave, September 30, 1978
 8. Sinha, Balbir Sahai, *Law and Social Change in India*, Deep & Deep, 1983
 9. Desai, A. R., *Social Background of Indian Nationalism*, Popular Prakashan Ltd.
- Taxes
 - Consolidated Funds
 - Contingency Fund
 - Distribution of Revenues between the Union and the States
 - Duties levied by the Union but collected and appropriated by the State
 - Grants from the Union to certain States
 - Finance Commission





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SEM III

Paper-III

LLM 303- Electoral Process and Law

UNIT 1 ROLE OF ELECTIONS

Role of Elections in democratic process - Different systems of representation of people - Electoral system under the Constitution

UNIT 2 GENERAL PRINCIPLES OF LAW OF INSURANCE

General Principles of Law of Insurance - Contract of insurance-definition, nature of contract - The Insurable interest - Premium - The risk-commencement, attachment, duration - Assignment and alteration - Warranties and disclosures - Insurance intermediaries

UNIT 3 LIFE INSURANCE

Life Insurance - Nature and scope - Event insured against in Life Insurance - Circumstances affecting the risk Amount recoverable under life policy - Persons entitled to payment - Settlement of claim and payment of money

UNIT 4 MARINE INSURANCE

Marine Insurance - Nature and scope - Classification of marine policies - Insurable interest, insurable value - Voyage-deviation - Perils at sea - Warranties in marine insurance - Loss

UNIT 5- INSURANCE AGAINST THIRD PARTY RISK

Insurance against Third Party Risk - Motor Vehicle Act 1988 - Nature and scope - Effect of insolvency or death on claims - Claims Tribunal-constitution, functions, application for compensation, procedure, powers and award

TEXT BOOKS

- 1 M. N. Sreenivasan - Law and the Life Insurance Contract
- 2 JCB Gilmar and Mustill, Arnold - Law of Marine Insurance
- 3 Birds-Modern Insurance Law

REFERENCE BOOKS

- 1 Colinviaux's Law of Insurance
- 2 KSN Murthy and Dr. KVS Sarma - Modern Law of Insurance
- 3 Avtar Singh - Law of Insurance



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

PAPER IV

LLM 304 ENVIRONMENTAL GOVERNANCE

UNIT 1 BASIC FEATURE

Basic Feature of International Environmental Law – Evolution, Development and Current position including important Summits and Conventions to curb environmental pollution, climate change

UNIT 2 ENVIRONMENT AND DEVELOPMENT

Environmental Liability and Right to development

UNIT 3 WATER LAWS IN INDIA

The Human Right to Water - Managing Surface Water Resources - Principle of Riparian's - Groundwater Management - Kerala Ground Water (Control and Regulation), Act, 2002.

UNIT 4 GOVERNANCE

Sustainable Development and Governance

UNIT 5 ENVIRONMENTAL PROTECTION

Indian Constitutional Mechanism, Statutory Mandates and protection of Environment- Role of Green Tribunal

TEXT BOOKS

- 1 Macrory (2010) Regulation, Enforcement and Governance in Environmental Law (Hart Publishing Paperback)
- 2 Dimple Grover, AmulyaKhurana, Ravi Shankar, The Regulatory Norms of Corporate Governance in India. Holder and Lee, Environmental Protection, Law and Policy (Cambridge University Press, 2007)
- 3 Ball and Bell on Environmental Law (OUP 7th ed.)

REFERENCE BOOKS

- 1 Birniepatricia, Boyle Alan and Redgwell Catherine, International Law and the Environment, 3rd edition, Oxford University Press.
- 2 Stranks Jeremy, The A-z of the Environment, Viva Books Publication
- 3 Elliott David, Nuclear or not? Does Nuclear Power have a place in a Sustainable Energy Future? Publisher, -Palgrave macmillan.



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SEMESTER IV

LLM 401- DESERTATION AND VIVA VOICE





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GROUP D- Human Rights Law

SEMESTER-I

Paper-I

LLM-101 Indian Constitutional Law: The New Challenges

Unit-1: Constitution and Federalism

- a. Concept of Constitution
- b. Meaning and idea of Constitution, Nature, Scope and Goal
- c. Constitution as Supreme law
- d. Making of Constitution: UK, U.S.A. and India
- e. Forms of Government: Unitary and Federal-salient features of both
- f. Nature of Indian Federalism

Unit-2: Separation of Powers: Stresses and strain

- a. Theory of Separation of Powers
 - iii. Separation of Powers under the Indian Constitution
 - iv. Interrelationship among the three organs of the state
- b. Distribution of Legislative Powers: The Scheme of the distribution of legislative powers in India the judicial approach and the present position. Recommendation of Sarkaria Commission & Venkatachalam Commission.
- c. Allocation and Share of Resources - distribution of grants in aid, inter-state disputes on resources
- d. Centre's responsibility and internal disturbance within states
- e. Directions of the center to the state under Articles 356 and 365

Unit-3: Emerging regime of new rights and remedies

- a. Fundamental Rights
- b. Freedom of speech and right to broadcast and telecast
- c. Right to education; Commercialization of education and its impact; and Brain drain by foreign education market
- d. Right to strikes, hartal, and bandh
- e. Directive Principles of State Policy and Fundamental Duties

Unit-4: Democratic Process

- a. Nexus of politics with criminals and the business
- b. Election: Status of election commission, electoral reforms
- c. Coalition government: "stability, durability, and corrupt practice"
- d. Grass root democracy

Unit-5: Constitutional Remedies, Emergency and Amendment of the Constitution

- a. Right to Constitutional Remedies - Features of Writ Jurisdiction under Art. 32
- b. Concept of locus standi - Dynamic approach of Supreme Court on Public Interest Litigation – Judicial Activism - Comparison between Art. 32 and 226
- c. Freedom of trade and Commerce



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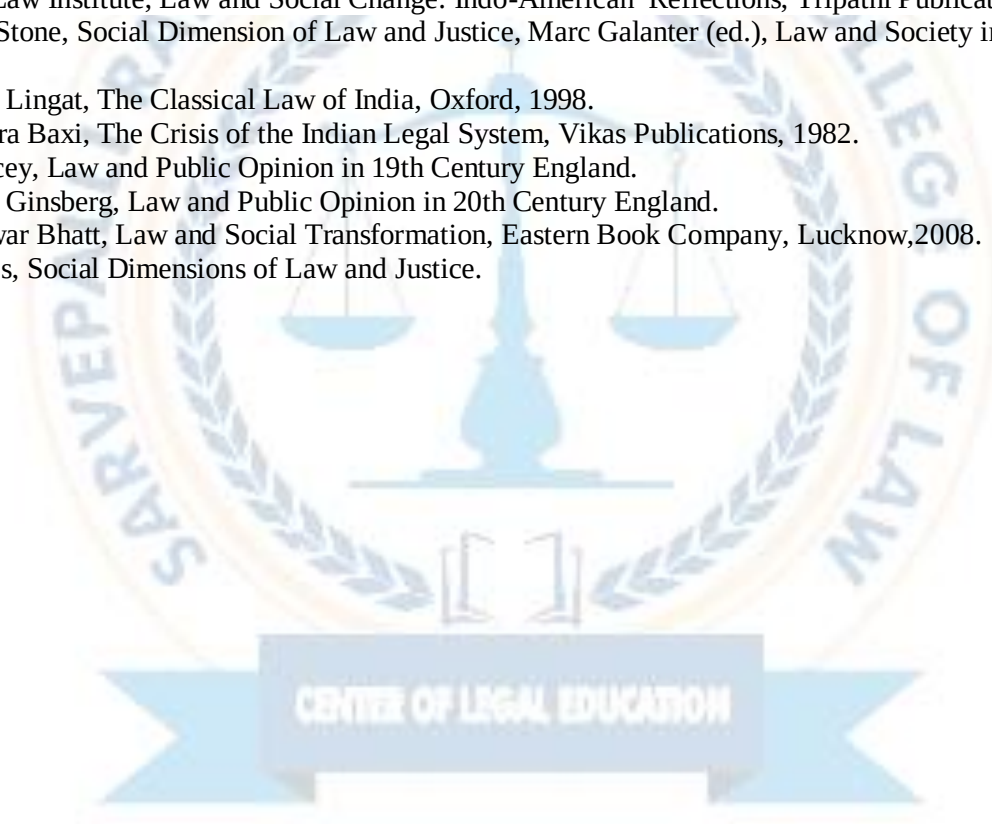
- d. Types of Emergencies and their impact on Federal structure
- e. Amendment

Text Books

- a.D.D. Basu, Constitution of India, Prentice-Hall of India (P) Ltd., 1996.
 - Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
 - The Constitutional Law of India by Dr.J.N.Pandey, with a Foreword by Justice H.C.P. Tripathi, Central Law Agency, Allahabad

References

- 1.Duncan Derret, The State, Religion and Law in India, OUP, New Delhi, 1999.
- 2.H.M. Seervai, Constitutional Law of India, Tripathi, 1996.
- 3.Indian Law Institute, Law and Social Change: Indo-American Reflections, Tripathi Publications, 1988.
- 4.Julius Stone, Social Dimension of Law and Justice, Marc Galanter (ed.), Law and Society in Modern India, Oxford, 1997.
- 5.Robert Lingat, The Classical Law of India, Oxford, 1998.
- 6.Upendra Baxi, The Crisis of the Indian Legal System, Vikas Publications, 1982.
- 7..V. Dicey, Law and Public Opinion in 19th Century England.
- 8.Morris Ginsberg, Law and Public Opinion in 20th Century England.
- 9.P. Ishwar Bhatt, Law and Social Transformation, Eastern Book Company, Lucknow,2008.
- 10.Stones, Social Dimensions of Law and Justice.





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PAPER-II

LLM-102 - Law and Social Transformation in India

Unit I : Law and Social Change

Meaning and concept of Law- Law as a purposive device, Change or transformation-Social change-Value orientation in social change-Theoretic Models on Social change and their application-Inter play between law and social change-stability and social change, Relationship between law and morality-culture, social change and law, Law and development, Social change in the context of democracy.

Historical and Sociological Study on the role of law in bringing about social change

Law and social change in ancient India-Social dimensions of law and social concern for justice-Role of family, associations and charitable institution in ancient India-The Interpretation of Shruti, Smriti and other commentaries to harmonize social change-Interaction between law and custom, Social control during the Muslim conquest-Social reform during the medieval period, Law and Social Transformation in Modern India-Colonial law and economic exploitation-Application of the Indian Law by the British-Social reforms and Women, Children and others-Codification of Laws-Freedom of Movement and Social reform ideas-Sociological perspective and social change.

Unit II : Constitution's Orientation and Social Transformation.

Impact of sociological school in India. Constitutional evolution and the Constitutional Assembly's role-Constitutional text as a mechanism for social change-the Constitutional amendments and social transformation-Basic structure theory as balancing continuity and change-The role of Governmental organs for social transformation- Working of the Constitution for Social transformation-Constitutional interpretation as an effective tool for social transformation. Application of international law in the process of constitutional interpretation-Constitutionalism and social transformation.

Legal concepts in new social order : Jurisprudence of Sarvodaya-Gandhiji, Vinoba Bhava, Jaya Prakash Narain-Concept of grama nyayalayas. Socialist thought on law and justice-An enquiry through constitutional debates on the right to property. Indian Marxist critique of law and justice, Naxalists Movement-Causes and cure-Rise of Dalits and changing equations in social order in twenty first century.

Unit III : Religion and Law

Religion as a divisive factor, secularism-Reform of the law on secular lines, Freedom of religion and non-discrimination on the basis of religion, Religious minorities and the law.

Language and the Law

Language as a divisive factor-formation of linguistic states, Constitutional protection to linguistic minorities, Non-discrimination on the ground of language. Language policy and the Constitution-Official Language, State Language, Court Language

Community and the Law

Caste as a divisive factor, Non-discrimination on the ground of caste, Acceptance of caste as a factor to undo past injustices, Protective discrimination-Scheduled castes, Tribes and Backward classes, Reservation

: Statutory Commission, Statutory provisions.



SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW, SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL

Regionalism and the law

Regionalism as a divisive factor, concept of India as one unit, Right of Movement, residence and business, impermissibility of state or regional barriers, Equality in matters of employment-the slogan "sons of the soil" and its practice, Admission to educational institutions, preference to residents of a state.

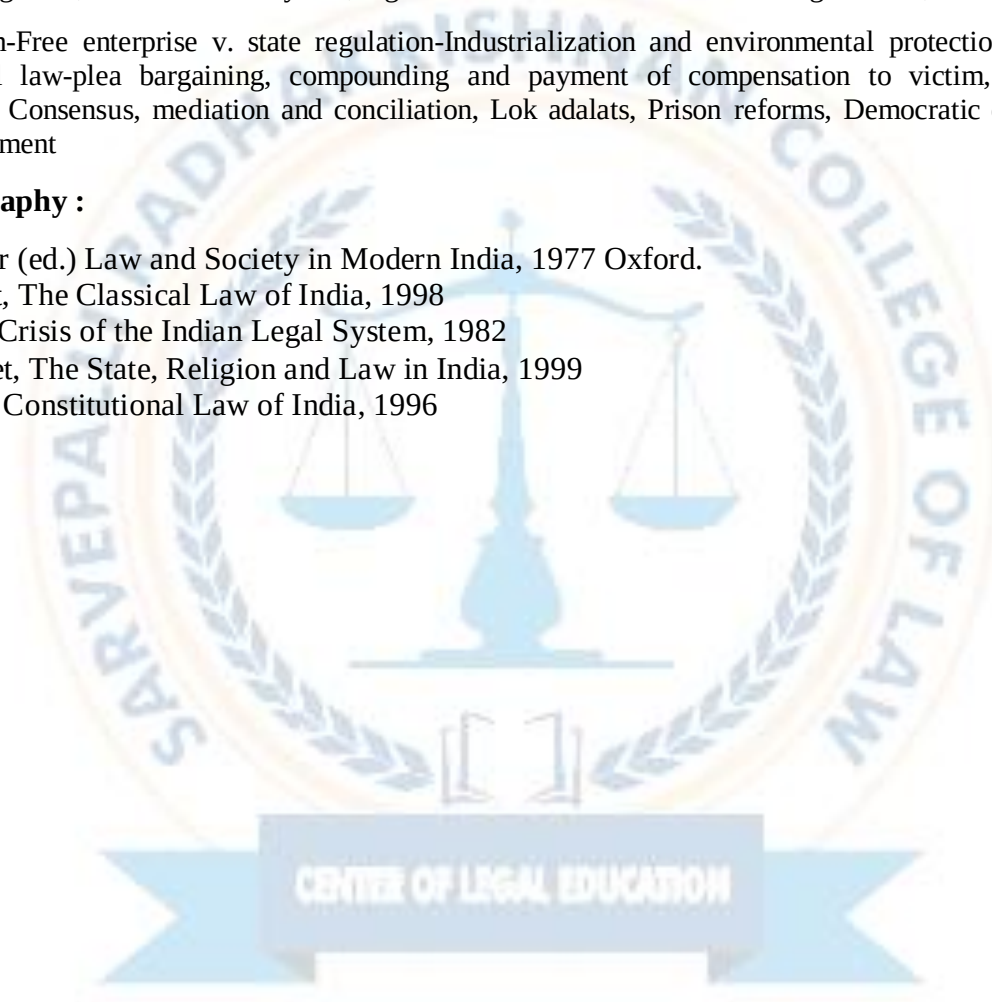
Unit IV : Modernization and Law

Modernization as a value-Constitutional perspectives reflected in the fundamental duties, Modernization of social institutions through law, Reform of family law, Agrarian reform-Industrialization of agriculture,

Industrial reform-Free enterprise v. state regulation-Industrialization and environmental protection, Reform of court process-Criminal law-plea bargaining, compounding and payment of compensation to victim, Civil laws-(ADR) Confrontation v. Consensus, mediation and conciliation, Lok adalats, Prison reforms, Democratic decentralisation and local self-government

Select Bibliography :

- 1.Marc Galanter (ed.) Law and Society in Modern India, 1977 Oxford.
- 2.Robert Lingat, The Classical Law of India, 1998
- 3.U. Baxi, The Crisis of the Indian Legal System, 1982
- 4.Duncan Derret, The State, Religion and Law in India, 1999
- 5.H.M.Seervai, Constitutional Law of India, 1996





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Paper-III

LL.M-103 Criminal Justice and Human Rights

Objectives: To introduce to the students the significance of Human Rights in the contemporary era with a theoretical perspective and the problematic groups who needs special protection.

UNIT: I The Concept, and Development of Human Rights.

International Level: Universal Declaration on Human Rights: International Covenants: ICCPR and ICESCR: Regional Instruments

National Level: History and Development of Human Rights in Indian Constitution. Indian Constitution Philosophy. Preamble

UNIT: II Fundamental Rights. & Fundamental Duties.

Article 51-A of the Constitution.

Concept of Crime and Criminal Liability;

Human Rights Problems requiring the need of criminal justice –

Communal and caste violence,

Terrorism and insurgency.

UNIT: III Protection of Human Rights in Criminal Justice Administration

Protection from double jeopardy, Self- incrimination

Production before magistrate from police custody,

Fair trial, Speedy trial, Representation

Appeal, *Protection from expost facto laws*

Legal aid, Compensation, rehabilitation.

UNIT: IV Administration of Criminal Justice -

Ordinary Courts Special Courts,

District & State Human Rights Courts,

International Criminal Court,

International norms on administration of criminal justice

U.N. General Assembly Resolutions.

UNIT: V Human Rights Commission



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Role of various Protection Agencies/Institutions

National Human Rights Commission, State Human Rights Commissions.

Human Rights Courts, Other Commissions.

Emerging regime of new human rights in India. New Approach.

Outcome-

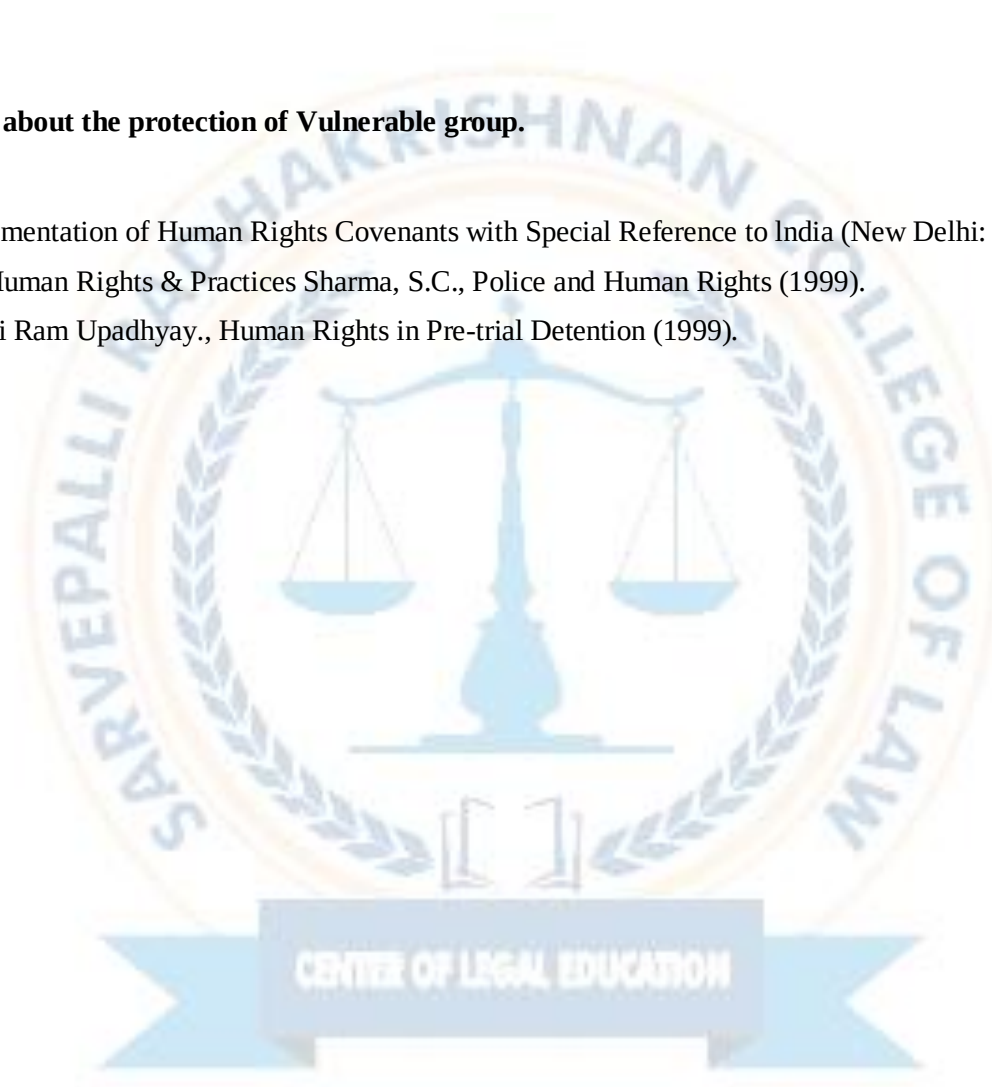
They aware about the protection of Vulnerable group.

Suggested Books:

Agarwal, H.O. Implementation of Human Rights Covenants with Special Reference to India (New Delhi: D.K. Publishers, 1993)

Prof. U. Chandra – Human Rights & Practices Sharma, S.C., Police and Human Rights (1999).

Upadhyay, Dr. Jai Jai Ram Upadhyay., Human Rights in Pre-trial Detention (1999).





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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

Paper -IV

LLM 104 Right Information and Human Rights

Unit I: Origin and Concept of Right to Information, Good Governance and Right to Information

Unit II :Right to Information under International Conventions and Declarations, Right to Information under regional instruments

Unit III: Right to Information under Indian Constitution- Fundamental rights and right to information; Judiciary and right to information;

Unit IV: Right to Information Act 2005 in India-Public authorities and their obligation Implementation of Right to Information Act in private sector, Judicial review and Right to Information Act, Information related to the third party and protection of right, Appeals under right to information law.

Unit V: Right to Information in different Statutes in India. The Official Secrets Act, 1923; The Public Records Act, 1993; The Public Records Rules, 1997; The Freedom of Information Act, 2002; The Commission of Inquiry Act, 1952; The Commission of Inquiry (Central) Rules, 1972, Indian Evidence Act, 1972 etc. Right to information and Empowerment of the people, Voters right to know.

Book List

- | | | |
|-------------------|---|--|
| 1. P.K.Das | : | The Right to Information Act, 2005 |
| 2. S.L.Goel | : | Right to Information and Good Governance |
| 3. Faizan Mustafa | : | Constitutional Issues in Freedom of
and National Perspectives |
| 4. De Smith | : | Judicial Review of Administrative Action |
| 5. M.P.Jain | : | Cases and Materials on Administrative Law |
| 6. M.P.Jain | : | Constitution of India |



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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

7. D.D.Basu	:	Comparative Administrative Law
8. Datar, Arvind P.	:	Constitution of India
9. Brownlie	:	Basic Documents on Human Rights
10. Rajkumar. C.	:	Corruption and Good Governance





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SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

SEMESTER-II

PAPER-I

LLM -201 JUDICIAL PROCESS

1. Nature of judicial process

1. Judicial process as an instrument of social ordering
2. Judicial process and creativity in law – common law model – Legal Reasoning and growth of law – change and stability
3. The tools and techniques of judicial creativity and precedent
4. Legal development and creativity through legal reasoning under statutory and codified systems

2. Special dimensions of Judicial Process in Constitutional Adjudications

1. Nations of judicial review
2. Role in constitutional adjunctions – various theories of judicial role
3. Tools and techniques in policy– making and creativity in constitutional adjunction
4. Varieties of judicial and justice activism
5. Problems of accountability and judicial law making

3. Judicial Process in India

1. Indian debate on the role of judges and on the nation of judicial review
2. The “Independence” of judiciary and the “Political” nature of judicial process
3. Judicial activism and creativity of the Supreme Court – the tools and techniques of creativity
4. Judicial process in pursuit of constitutional goals and values – new dimensions of judicial activism and structural challenges
5. Institutional liability of courts and judicial activism-scope and limits

4. The concepts of Justice

1. The concept of justice or Dharma in Indian thought
2. Dharma as the foundation of legal ordering in Indian thought
3. The concept and various theories of justice in the western thought
4. Various theoretical bases of justice: the liberal contractual tradition, the liberal utilitarian tradition and the liberal moral tradition

5. Relation between Law and Justice

1. Equivalence Theories – Justice as nothing as nothing more than the positive law of the stronger class
2. Dependency theories – for its realization justice depends on law, but justice is not the same as law
3. The independence of justice theories-means to end relationship of law and justice- the relationship in the context of the Indian constitutional ordering
4. Analysis of selected cases of the Supreme Court where the judicial process can be seen as influenced by theories of justice

Selected bibliography

1. Julius Stone, The Province and Function of Law, Part II Chs. 1. 8-16 (2000), University New Delhi
2. Carzo, The Nature of Judicial Process (1995) Universal, New Delhi



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3. Henry J. Abraham, The judicial Process (1998), Oxford
4. J. Stone, Precedent and the Law: Dynamics of Common Law Growth (1985) Butterworths
5. W.Friedmann, Legal Theory(1960), Stevens, Landon
6. Bodenheimer, Jurisprudence-the Philosophy and Method of the Law (1997), Universal, Delhi
7. J. Stone, Legal System and Lawyers' Reasoning (1999), Universal Delhi
8. U. Baxi, The Indian Supreme Court of India – A Socio – Legal Critique of its Juristic Techniques (1977), Tripathi, Bombay
9. John Rawls, A Theory of Justice (2000), Universal, Delhi
10. Edward H. Levi, An Introduction to Legal Reasoning (1970), University of Chicago





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PAPER-II

LLM 202 Women and Human Rights

Unit I

Status of Women in Historical and Social Perspective; Status of Women in Contemporary Society; Human Rights of Women and Dispensation of Justice

Unit II

Constitutional Rights of Women; Matrimonial Remedies in Personal Laws; Violence against Women & Remedies under Criminal Law

Unit III

Legal Protection against Violence in private spaces; Legal Protection against Harassment of Women at Workplace and in public places

Unit IV

Protection of Women under International Conventions, Women and National Policies;

Unit V

Institutional Mechanism for the enforcement of Human Rights of Women-Role of Nation Commission of Women, National Human Rights Commission, NGOs

Book List

Menon, Nevidita
Bhatnagar's
Paras Diwan
Dewan, V.K.
Syed Khalid Rashid's
Anjani Kant

Reddy, G.B.

Siddique, K.A.

Gender and Politics in India
Law Relating to Women and their Rights
Hindu Law (Latest Ed.)
Law Relating to Offences against Women
Muslim Law
Women and the Law

Women and the Law

Matrimonial Law Digest, the Matrimonial Law Reporter



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Aggarwal, S.K.	The Hindu Marriage Act
Rao, Mamta	Law Relating to Women & Children
Das, P.K.	Handbook on Protection of Women from Domestic Violence Act & Rules (2007)
Rai, O.P.	Protection of Women from Domestic Violence
Agarwal, Bina	Structures of Patriarchy
Bhasin, Kamla	Understanding Gender
Crawson, E.	Encyclopaedia of Human Rights
Chakravarty, Uma	Essays on Gender
Julia B. & Carol Smart	Women in Law
Kapur, R. & B. Crossman	Subversive Sites (Feminist Engagements in Law)
Kishwar, Madhu	In search of Answers
Saxena, Shobha	Crimes against Women
Misra, Preeti	Domestic Violence against Women
Gail Omvedt	Violence against Women: New Movements and New Theories in India
Ram Ahuja	Violence against Women
K.Shanthi	Empowerment of women Crime in India Annual Reports of National Crime Records Bureau, MHA, Govt. of India



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PAPER-III

LLM 203 Woman Rights, Equality and Inclusion (Vulnerable Groups SC, ST, OBC Disabled, Elderly Persons, Minorities and Workers. Its)

Unit I

Introduction: Philosophical and social perspectives on human rights protection of the vulnerable groups; exclusion of SC, ST, Disabled persons, Elderly persons, minorities, indigenous, children and women.

Unit II

International norms and instruments for the protection and enforcement of rights of minorities and indigenous persons

Unit III

International norms and instruments for the protection and enforcement of rights of women and Children

Unit IV

International norms and instruments for the protection and enforcement of rights of disabled and elderly persons

Unit V

Protection of marginalized groups in India; international obligations, legal protection and institutional mechanism

Book List

Javaid Rehman	The Weaknesses in the International Protection of Minority Rights, (The Hague : Kluwer Law International)
Baxi, Upendra	Inhuman Wrongs and Human Rights: Unconventional Essays (Har Anand



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Pub

Chopra, Geeta Child Rights in India: Challenges and Social Action (Springer India)

Venter, Christine M., International Women's Rights, Equality and Justice (Durham: Carolina
Academic Press)

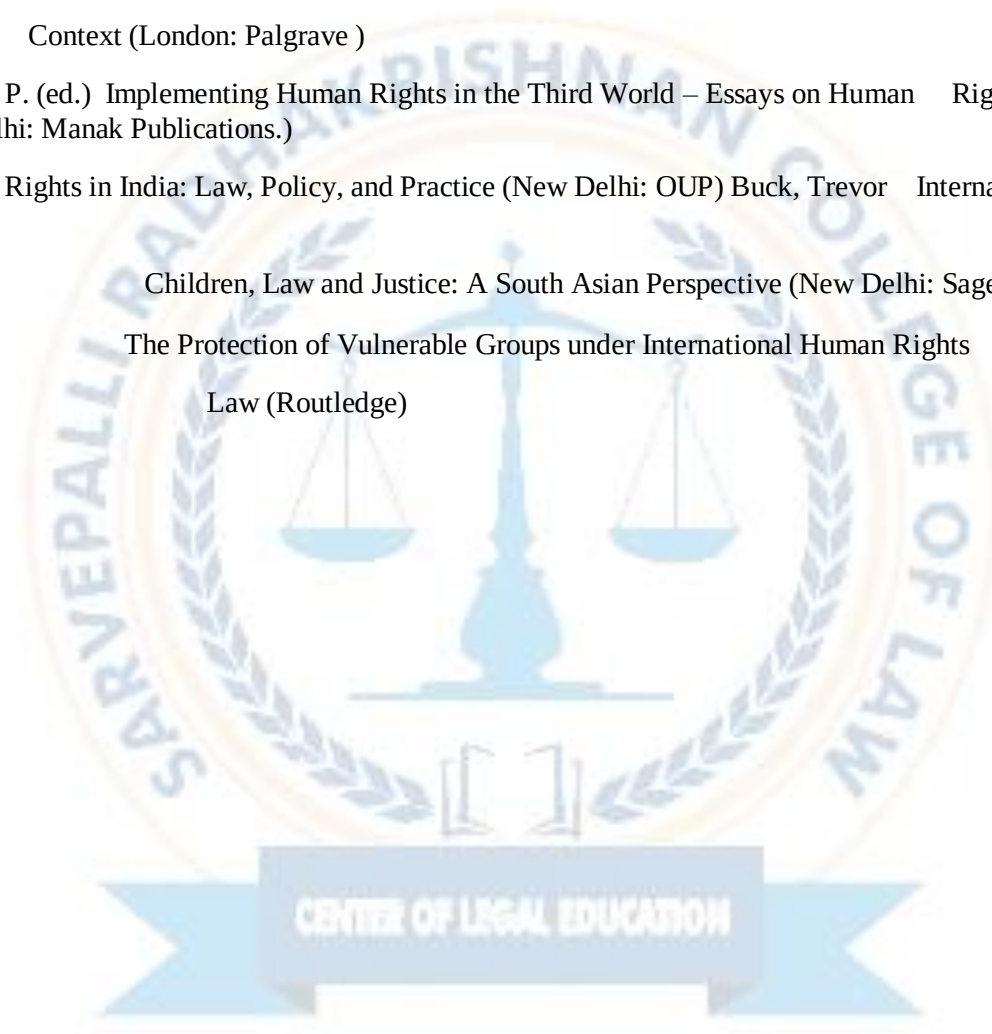
Zwingel, Susanne, Translating International Women's Rights: The CEDAW Convention in
Context (London: Palgrave)

Vijapur, Abdulrahim P. (ed.) Implementing Human Rights in the Third World – Essays on Human Rights, Dalits and
Minorities, (New Delhi: Manak Publications.)

Bajpai, Asha Child Rights in India: Law, Policy, and Practice (New Delhi: OUP) Buck, Trevor International Child Law,
(Routledge)

Gooneseckere, Savitri Children, Law and Justice: A South Asian Perspective (New Delhi: Sage)

Ingrid Nifosi Sutton The Protection of Vulnerable Groups under International Human Rights
Law (Routledge)





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PAPER-IV

LLM 204 Media and Human Rights

Unit I

Writing on Human Rights: Promotion, Protection and Violation, Types of Reports, Sources of News, Trends in Indian Press, Problem of writing about Human Rights Issues, Media in Promotion and Protection of Human Rights, Investigative Journalism, Media Activism, Advocacy Journalism, The Use of General Laws to Target Journalists and Media: Libel, Insult, and Privacy Laws National Security, Anti-Terror, and Public Order Laws, The Use of Laws Specifically Aimed at the Media: Print Media Laws, Broadcasting Laws, Laws That Promote Media Freedom

Unit-II

Media and Social Issues: Problems of girl child and women, LGBT Movement, Casteism, Violence against women, Rights of Children and Adolescents, UNCRC, Child Labour, Exploitation of children and Reform Process, Protection of Children against Sexual offences, Reflection of such issues in Media, Role of Media in the promotion and protection of human rights, social media: Debate on freedom of expression and violation of human rights

Unit-III

Constitutional Foundations, Morality, Obscenity and Censorship, Privileges of Parliament and the State Assemblies, Contempt of Court, Defamation, Reporting Judicial Proceedings, Freedom of Speech and Expression, constitutional restrictions and Freedom of Media- Types of Mass Media, Press, Press Films, Radio Television.

Unit-IV

Radio and Television – Effect of television on people, Report of the Chanda Committee, Government Policy, Commercial advertisement, Internal Scrutiny of serials, etc., Judicial Review of Door darshan decisions: Freedom to telecast

Unit-V

Statutes that regulate and control the various media such as Broadband, Cable TV, Networks, Cinemas, Newspapers, DTH, Radio, Television, Video-Cassettes etc., The various Acts and Rules relating to the regulatory bodies (their constitution, functions, procedures, powers etc.) like the Prasar Bharati, Press Council, the Registrar of Newspapers, TDSAT, TRAI, etc.



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Book List:

M.P. Jain	:	Constitutional Law of India
H.M. Seervai	:	Constitutional Law of India Vol.I
Soli Sorabjee	:	Law of Press Censorship in India
Justice E.S. Venkaramiah	:	Freedom of Press: Some Recent Trends
D.D. Basu	:	The Law of Press of India
EBC	:	Media, Press and Telecommunications Laws
Madhavi Goradia	:	Facets of Media Law
Bruce Michael Boyd	:	“Film Censorship in India: A Reasonable Restriction on Freedom of Speech and Expression” 14. J.I.L.I. (1972)
Rajeev Dhawan	:	“On the Law of the Press in India” 26 J.I.L.I. 288 (1984)
Rajeev Dhawan	:	“Legitimizing Government Rhetoric: Reflections on Some Aspects of the Second Press Commission” 26 J.I.L.I. 391 (1984)
Oyelade Olutunji & Manoj Kumar Sinha	:	Right to Health in the Context of HIV / AIDS in India and Africa Hardcover – 2008
Mike Wicks	:	An Introduction to Social Media for Small Business (Publisher: Blue Beetle Books Inc.)



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**LL.M Part-II,
Semester III
Human Rights Law
PAPER-I**

LLM-301 Research Methodology

Unit I

- a.Socio-legal research.
- b.Doctrinal and non-doctrinal research.
- c.Computerized research.
- d.Relevance of empirical research.

Unit II

- a.Legislative research material.
- b.Decisional research material.
- c.Ratio decidendi and obiter dicta.
- d.Juristic writing.

Unit III

- a.Formulation of research problem.
- b.Tools and techniques of data collection.
- c.Use of questionnaire and interview.
- d.Use of case study.

Unit IV

- a.Sampling procedure-design of sample, types of sample to be adopted.
- b. Classification and tabulation of data.
- c. Analysis of data.
- d. Art of thesis writing.

Select Bibliography

- 4. William J. Grade and Paul K. Hatt, Methods in Social Research, London



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
SARVEPALLI RADHAKRISHNAN UNIVERSITY, BHOPAL**

5. H.M. Hyman, Interviewing in Social Research, 1965
6. Morris L Cohan, Legal Research in Nutshell, 1996
7. ILI Publication, Legal Research and Methodology





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PAPER-II

LLM-302 Children and Human Rights

Unit-I: International Norms for Protection of the Child

(a) UN Declaration of the Rights of the Child 1959,

(b) UN Convention on the Rights of the Child 1989

Unit-II: Indian Constitution and the Protection of Child

(a) Fundamental Rights and Directive Principles of State Policy

(b) Government of India's National Policy for Children, 1974

Unit-III: Protection Against Economic Exploitation:

(a) ILO Convention on Restriction and Prohibition on Child Labour including ILO Convention on Child Labour, 1999

(b), Child Labour (Protection and Regulation), Act, 1986,

Unit-IV: Protection Against Sexual Exploitation

a Child Prostitution,

b. Prevention from abstention,

c. Sale and Immoral Trafficking

Unit-V: Juvenile Justice System

a Juvenile Justice (Care and Protection of Children) Act, 2000

b. UN Standard Minimum Rules for the Administration of Juvenile (The Beijing Rules) 1985

Text Books

11. Bajpai, Asha, Child Rights in India: Law, Policy, and Practice (New Delhi: OUP 2003)
Chopra, Geeta, Child Rights in India: Challenges and Social Action (Springer India 2015)
Buck, Trevor, International Child Law, 3rd edition, (London: Routledge 2014)
References

2 Goonesekere, Savitri, Children, Law and Justice: A South Asian Perspective (New



**SARVEPALLI RADHAKRISHNAN COLLEGE OF LAW,
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3. ParkCs, Aisling. Children and International Human Rights Law (Routledge)
4. Humbert. Fraziska. The Challenge OfChild Labour In International Law (Cambridee Dellhi: Ssge 1998)
University Press 2009)
- \$, Van Bueren. Geraldin, The InteswTnational Law On The Rights Of The Child The Hague: ManinusNshoff 1998)
- Kilkelly. Ursula and Liefaurd. Ton (Eds), nternational Human Rights of Childee dren
- 7 Liefuard. Ton and Sloth-Niclsen, Julia, (eds.), The Convention on the Rights of the Child Taking Stock After 25 Years and Looking Ahead (The Hague: Bill 2016
8. Verhellen, Euecen, The Convention on the Rights of The Child- Reflections froa Historical, Soeial Policy, and Educational Perspectives (London: Routledge 2015) (Springer 2018)





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PAPER-III

LLM 303 Science, Technology and Human Rights

Unit-I

Interrelationship of Science, Technology and Human Rights, Development in Information Technology and Human Rights, Scientific and Technological Researches and its Impact on ethics, morality and Human Rights, Positive and Negative Role of Science and Technology,

Unit-II

Impact of Biotechnology: Food Production and food Security, Food Management and Storage, Genetic Modified Crops, right to pollution free environment, right to development in the advancement of science and technology,

Unit-III

Rights to Human Dignity: Developments in Bio-technology: Human Cloning, Foeticide- Sex determination test; Induced Abortion, In-Vitro Fertilization and Surrogate Parenthood; Organ Transplantation and Sale of Human Organs, Computer Crime and Artificial intelligence, Pornography Online, Rights to Die in Dignity and Peace: Euthanasia, Role of judiciary in the dialogue among science, Technology, Human Rights and law

Unit-IV

Freedom of information-Right to life; Right to privacy; Right to benefit from scientific and technological progress; Right to physical integrity; Right to adequate standard of living; Limitations on the right to information under Information Technology Laws.

Unit-V

Freedom for Scientific Research, Controls and Constraints; Freedom from Torture: New Torture Technologies Such As Electric Shock, Trauma-Inducing Drugs and Psychotropic Substances, Medicine and the Law: Experiments on human beings, Right to health and impact of developments in medical sciences -Conflicts, Confrontation and resolution Clinical Trials Experiments on Human Being and Improvement of Individual and Community Health and Hygiene.

Book List

Adwin W. Patterson

Law in a Scientific Age

Weeramantry, C.G.

Human Rights and Scientific and Technology
Development,

Kamenka, E.

Ideas and Ideologies Human Rights

Galtung

Human Rights in Another Key

Baxi, U. (ed.)

Rights to be Human



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Kazmi, F.

Human Rights

Diane Rowland, Elezabeth Macdonald, Information Technology Law,

Suresh T. Viswanathan, The Indian Cyber Law, (2000).

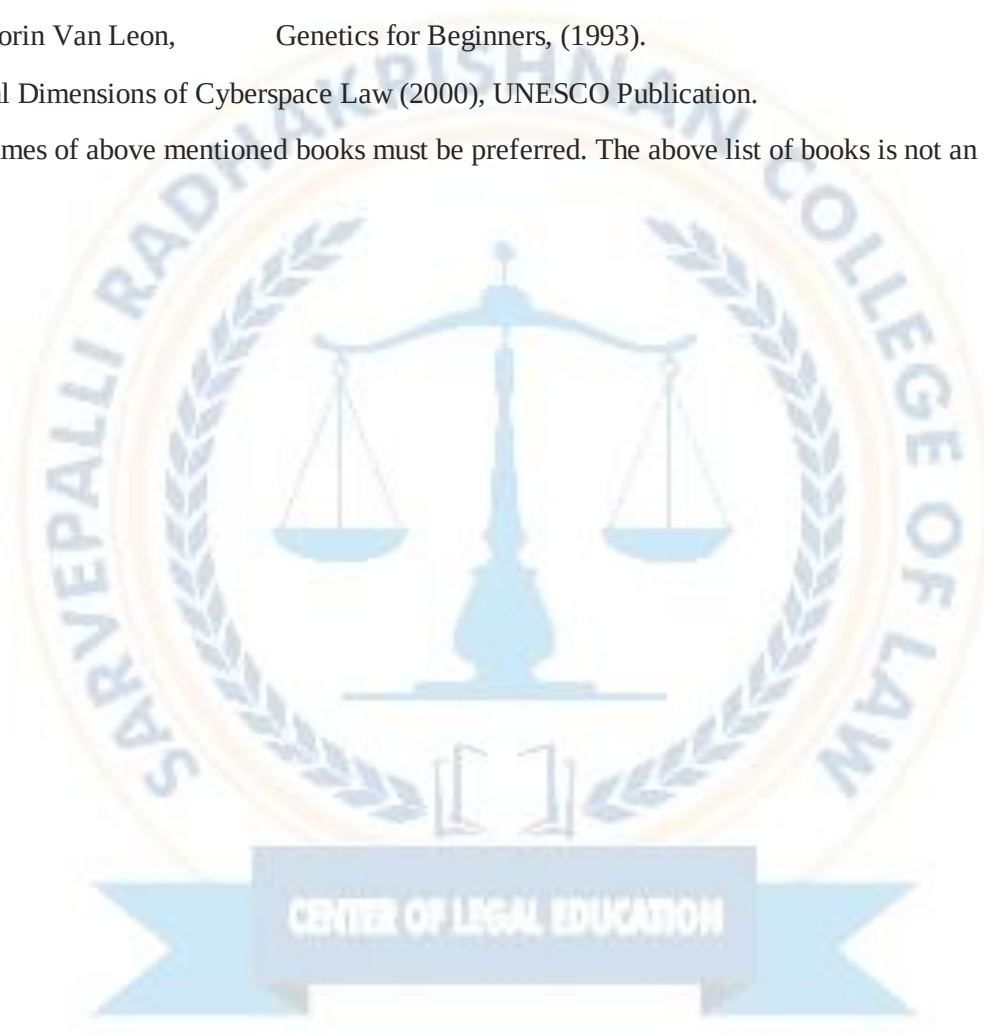
D.P.Mittal, Law of Information Technology (Cyber Law), (2000).

Michael Chissick, Alistair Kelman, Electronic Commerce, Law and Practice, (1999).

Steve Jones, Borin Van Leon, Genetics for Beginners, (1993).

The International Dimensions of Cyberspace Law (2000), UNESCO Publication.

Note: - All latest volumes of above mentioned books must be preferred. The above list of books is not an exhaustive one.





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PAPER-IV

LLM 304 Environment and Human Rights

Unit-I: Principles of Environment Protection: International Perspective: Stockholm Conference, Rio de Janeiro Conference, Rio + Summits & Declaration, Johannesburg Conference, UNFCCC, Kyoto Protocol, Paris Agreement, Industrial Disaster with special reference to the rights of victims of such disasters, Mega Projects with special reference to displacement and rehabilitation of the affected persons, Climate refugees

Unit-II: Constitutional Perspective: Fundamental Rights: Right to Clean Environment, Education and Compensation, Directive Principle of State Policy and Fundamental duties, Legislative Powers.

Unit-III: Environment Pollution and Legal Order:

- i. The Water Act, 1974 and the Air Act 1981
 - a) Regulatory Authorities and their Powers & Functions
 - b) Pollution Control Measures
 - c) Remedies
- ii. Noise Pollution Rules

Unit-IV: Environment Protection and Legal Order

- i. Environment (Protection) Act, 1986
 - a) Regulatory authorities and their powers and functions
 - b) Environment Protection Measures
 - c) Remedies
- ii. Environment Impact Assessment Notification, 1994 and Public Hearing Notification, 1997
- iii. National Green Tribunal

Unit-V: Environment: Emerging concepts and challenges: National Perspective

- (a) Polluter Pays Principles: Absolute Liability of Hazardous Industries
- (b) Precautionary Principle
- (c) Public Trust Doctrines
- (d) Sustainable Development



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Book List

- Boyle, A. E., and Anderson M.R. (Eds.) : Human Rights Approaches to Environmental Protection (Oxford: Clarendon Press 1996)
- Woods, K. : Human Rights and Environmental Sustainability (Cheltenham: Edward Elgar 2010)
- Gear, Anna, : Research handbook on human rights and the environment (Edward Elgar 2015) 92
- Hiskes, R.P. : The Human Rights to a Green Future (Cambridge: Cambridge University Press 2009)
- Kravchenko, Svitlana and John e. Bonine, : Human Rights And The Environment: Cases Law, and Policy (Carolina Academic Press 2008)
- Hayward, Tim (ed.), : Human Rights and the Environment (Routledge 2017)
- Knox, John H. : The Human Rights to a Healthy Environment (Cambridge University Press 2018)
- Shelton, Dinah and Donald K. Anton, : Environment Protection and Human Rights (Cambridge University Press 2011)
- Leib, Linda Hajjar, : Human Rights and The Environment – Philosophical and Legal Perspectives (Brill, 2010)
- Kailash Thakur, : Environmental Protection: Law and Policy in India (1997), & Deep Publications New Delhi.
- Deep : Environmental Law, the Economy and Sustainable Development



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(2000), Cambridge.

Indian Journal of Public Administration,

Special Number on Environment and Administration,
July-

September 1988, Vol. XXXV, No.3, pp.353-801

Leelakrishnan, P et. al. (eds.)

Law and Environment (1990),

Leelakrishnan, P,

Environmental Law in India (2019), Lexis Nexus

Winfield

Torts Law

Ratanlal&Dheerajlal

Torts Law

Kashyap, S.C.

Constitutional law

Singhvi L.M.

Constitutional Law

Tope, T.K.

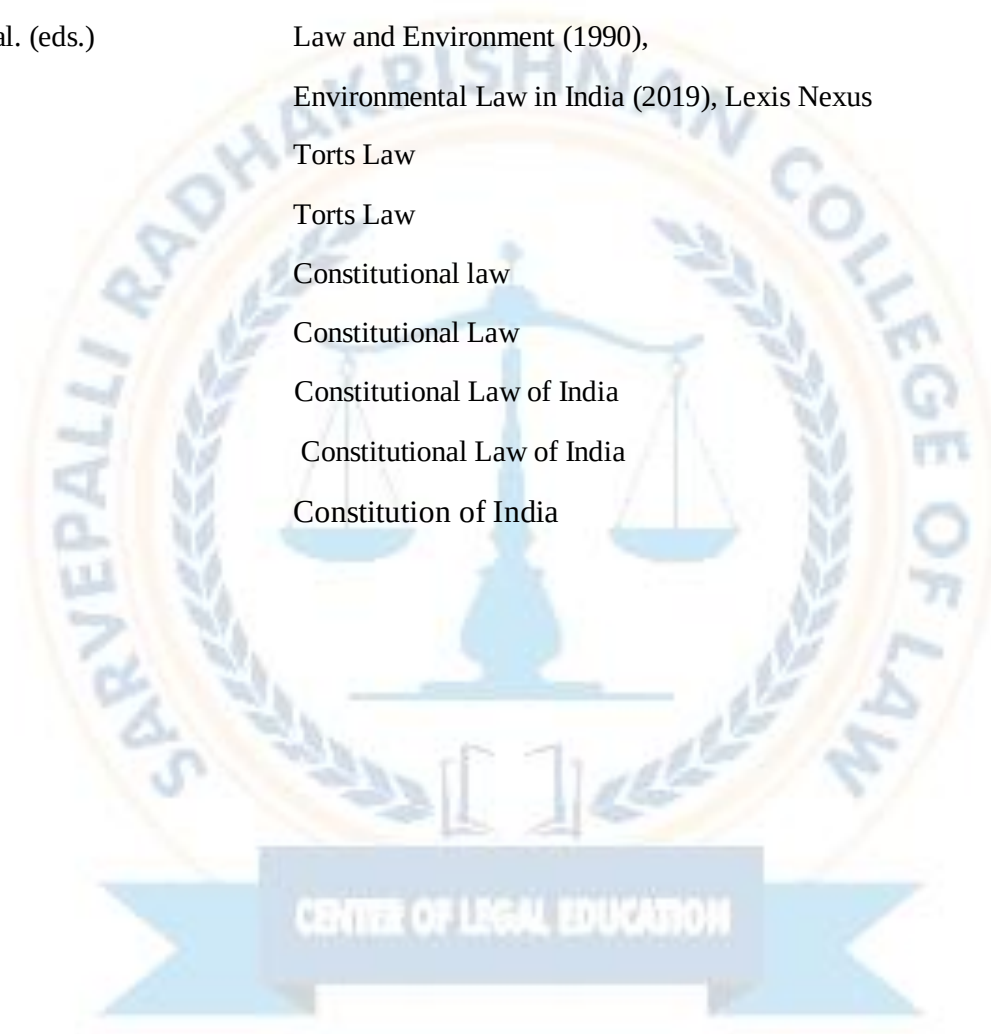
Constitutional Law of India

Manohar, Sujata

Constitutional Law of India

Datar, Arvind P.

Constitution of India





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SEMESTER-IV

401. Dissertation and Viva voce





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Group E - Business Law

Semester: I

PAPER-I

LLM-101 Indian Constitutional Law: The New Challenges

Unit-1: Constitution and Federalism

- a. Concept of Constitution
- b. Meaning and idea of Constitution, Nature, Scope and Goal
 - c. Constitution as Supreme law
- d. Making of Constitution: UK, U.S.A. and India
- e. Forms of Government: Unitary and Federal-salient features of both
- f. Nature of Indian Federalism

Unit-2: Separation of Powers: Stresses and strain

- a. Theory of Separation of Powers
 - v. Separation of Powers under the Indian Constitution
 - vi. Interrelationship among the three organs of the state
- b. Distribution of Legislative Powers: The Scheme of the distribution of legislative powers in India the judicial approach and the present position. Recommendation of Sarkaria Commission & Venkatachalam Commission.
- c. Allocation and Share of Resources - distribution of grants in aid, inter-state disputes on resources
- d. Centre's responsibility and internal disturbance within states
- e. Directions of the center to the state under Articles 356 and 365

Unit-3: Emerging regime of new rights and remedies

- a. Fundamental Rights
- b. Freedom of speech and right to broadcast and telecast
- c. Right to education; Commercialization of education and its impact; and Brain drain by foreign education market
- d. Right to strikes, hartal, and bandh
- e. Directive Principles of State Policy and Fundamental Duties

Unit-4: Democratic Process

- a. Nexus of politics with criminals and the business
- b. Election: Status of election commission, electoral reforms
- c. Coalition government: “stability, durability, and corrupt practice”
- d. Grass root democracy

Unit-5: Constitutional Remedies, Emergency and Amendment of the Constitution

- a. Right to Constitutional Remedies - Features of Writ Jurisdiction under Art. 32
- b. Concept of locus standi - Dynamic approach of Supreme Court on Public Interest Litigation – Judicial Activism - Comparison between Art. 32 and 226
- c. Freedom of trade and Commerce



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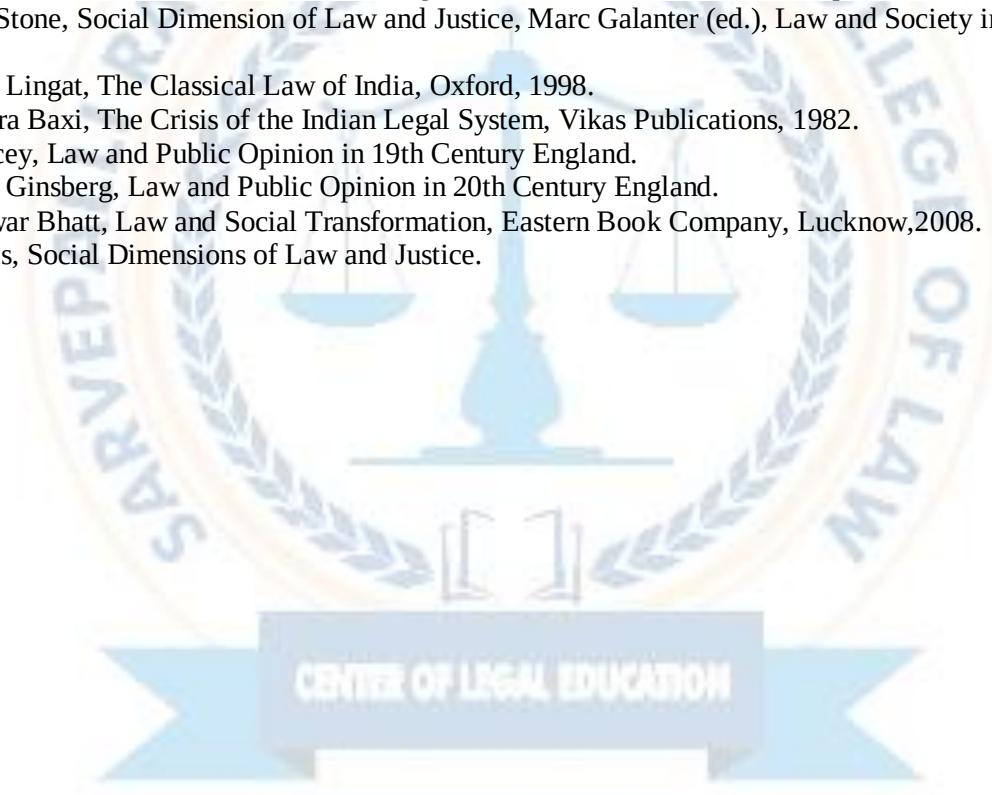
- d.Types of Emergencies and their impact on Federal structure
- e.Amendment

Text Books

- a.D.D. Basu, Constitution of India, Prentice-Hall of India (P) Ltd., 1996.
- b.Constitution of India by V N Shukla, Eastern Book Company, Lucknow, 2018
- c.The Constitutional Law of India by Dr.J.N.Pandey, with a Foreword by Justice H.C.P. Tripathi, Central Law Agency, Allahabad

References

- 1.Duncan Derret, The State, Religion and Law in India, OUP, New Delhi, 1999.
- 2.H.M. Seervai, Constitutional Law of India, Tripathi, 1996.
- 3.Indian Law Institute, Law and Social Change: Indo-American Reflections, Tripathi Publications, 1988.
- 4.Julius Stone, Social Dimension of Law and Justice, Marc Galanter (ed.), Law and Society in Modern India, Oxford, 1997.
- 5.Robert Lingat, The Classical Law of India, Oxford, 1998.
- 6.Upendra Baxi, The Crisis of the Indian Legal System, Vikas Publications, 1982.
- 7..V. Dicey, Law and Public Opinion in 19th Century England.
- 8.Morris Ginsberg, Law and Public Opinion in 20th Century England.
- 9.P. Ishwar Bhatt, Law and Social Transformation, Eastern Book Company, Lucknow, 2008.
- 10.Stones, Social Dimensions of Law and Justice.





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PAPER-II

LLM-102 - Law and Social Transformation in India

Unit I : Law and Social Change

Meaning and concept of Law- Law as a purposive device, Change or transformation-Social change-Value orientation in social change-Theoretic Models on Social change and their application-Inter play between law and social change-stability and social change, Relationship between law and morality-culture, social change and law, Law and development, Social change in the context of democracy.

Historical and Sociological Study on the role of law in bringing about social change

Law and social change in ancient India-Social dimensions of law and social concern for justice-Role of family, associations and charitable institution in ancient India-The Interpretation of Shruti, Smriti and other commentaries to harmonize social change-Interaction between law and custom, Social control during the Muslim conquest-Social reform during the medieval period, Law and Social Transformation in Modern India-Colonial law and economic exploitation-Application of the Indian Law by the British-Social reforms and Women, Children and others-Codification of Laws-Freedom of Movement and Social reform ideas-Sociological perspective and social change.

Unit II : Constitution's Orientation and Social Transformation.

Impact of sociological school in India. Constitutional evolution and the Constitutional Assembly's role-Constitutional text as a mechanism for social change-the Constitutional amendments and social transformation-Basic structure theory as balancing continuity and change-The role of Governmental organs for social transformation- Working of the Constitution for Social transformation-Constitutional interpretation as an effective tool for social transformation. Application of international law in the process of constitutional interpretation-Constitutionalism and social transformation.

Legal concepts in new social order : Jurisprudence of Sarvodaya-Gandhiji, Vinoba Bhava, Jaya Prakash Narain-Concept of grama nyayalayas. Socialist thought on law and justice-An enquiry through constitutional debates on the right to property. Indian Marxist critique of law and justice, Naxalists Movement-Causes and cure-Rise of Dalits and changing equations in social order in twenty first century.

Unit III : Religion and Law

Religion as a divisive factor, secularism-Reform of the law on secular lines, Freedom of religion and non-discrimination on the basis of religion, Religious minorities and the law.

Language and the Law

Language as a divisive factor-formation of linguistic states, Constitutional protection to linguistic minorities, Non-discrimination on the ground of language. Language policy and the Constitution-Official Language, State Language, Court Language

Community and the Law

Caste as a divisive factor, Non-discrimination on the ground of caste, Acceptance of caste as a factor to undo past injustices, Protective discrimination-Scheduled castes, Tribes and Backward classes, Reservation

: Statutory Commission, Statutory provisions.



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Regionalism and the law

Regionalism as a divisive factor, concept of India as one unit, Right of Movement, residence and business, impermissibility of state or regional barriers, Equality in matters of employment-the slogan "sons of the soil" and its practice, Admission to educational institutions, preference to residents of a state.

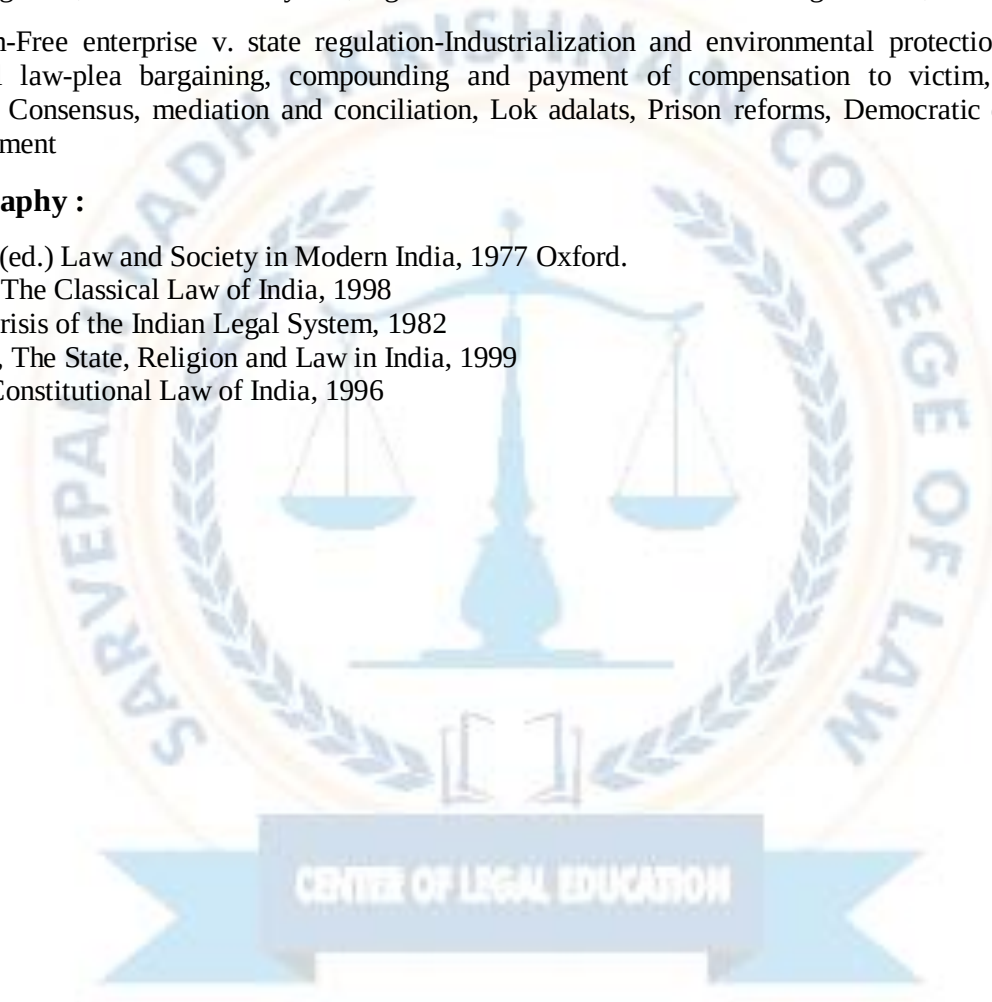
Unit IV : Modernization and Law

Modernization as a value-Constitutional perspectives reflected in the fundamental duties, Modernization of social institutions through law, Reform of family law, Agrarian reform-Industrialization of agriculture,

Industrial reform-Free enterprise v. state regulation-Industrialization and environmental protection, Reform of court process-Criminal law-plea bargaining, compounding and payment of compensation to victim, Civil laws-(ADR) Confrontation v. Consensus, mediation and conciliation, Lok adalats, Prison reforms, Democratic decentralisation and local self-government

Select Bibliography :

- a.Marc Galanter (ed.) Law and Society in Modern India, 1977 Oxford.
- b.Robert Lingat, The Classical Law of India, 1998
- c.U. Baxi, The Crisis of the Indian Legal System, 1982
- d.Duncan Derret, The State, Religion and Law in India, 1999
- e.H.M.Seervai, Constitutional Law of India, 1996





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PAPER-III

LLM 103 Legal Regulation of Economic Enterprises

Unit-I-Rational of Government Regulation

- Constitutional Perspective
- Regulation of Economic Activities
- Fairness in Competition
- The New Economic Policy- Industrial Policy Resolution, Declaration and Statements

Unit-II -Industrial Development

- Development and Regulation of Industrial Units
- Sick Industrial Undertakings
- Deregulation of Essential Commodities

Unit-III -Problems of Control and Accountability

- Large Scale Destruction and Environment Degradation
- Public Liability Insurance

Unit-IV -Legal Regulation

- Agreement for Technology Transfer
- Investment in India
- Legal Regulation of Selected Public Enterprise

Unit-V - Prevention of Money Laundering

- Economic Theory of Law, Genesis
- Prevention of Money Laundering
- Obligations of Banks and Financial Institutions
- Emerging issues and challenges before the Government
- International Response

Suggested Readings:

1. S. Aswani Kumar, The Law of Indian Trade Mark (2001), Commercial Law House, Delhi.
2. Industrial Policy Resolutions of 1948,1956, 1991
3. Industrial Licensing Policy 1970,1975
4. Industrial Policy Statements 1973,1977, 1980
5. Reports of Committees on Public Undertakings of Parliament.
6. Industries (Development and Regulation) Act, 1951



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PAPER-IV

LLM 104 Intellectual Property Law

Unit-I- IPR and International Perspective

- Trademarks and Consumer Protection (Study of UNCTAD Report on the Subject),
- United Nations Approaches (UNCTAD, UNCITRAL), EEC Approaches, Position in U.S.
- The Indian Situation

Unit-II- Biotechnology Patents

- Nature and Types of Biotechnology Patents,
- Patent over New Forms of Life: TRIPS Obligations,
- Plant Patenting, sui generis Protection for Plant Varieties (Sikkim Perspective).
- Multinational Ownership, Regulation of Environment and Health Hazards in Biotechnology Patents, Indian Policy and Position.
- European Patent Treaty, Patent Co-operation Treaty (PCT), Special Problems of Proof of Infringement: Need and Scope of Law Reforms.

Unit-III - Copyright, Patent and Trademark: New Regime

- Status of Computer Software in Copyright and Patent
- Digital Millennium Copyright Act (DMCA), Domain Name,
- Copyright and Museums in the Digital Age,
- Digital Rights Management,
- Role of WTO in Global digital trade.

Unit-IV - Patent Search and Special Problems of Proof of Infringement

- Patent Search
- Status of intellectual property in transit – TRIPS obligation- Indian Position
- The evidentiary problems in action of passing off
- The proof of non anticipation, novelty in inventions protected by patent law
- Evidentiary problems in piracy: TRIPS obligation – reversal of burden of proof in process patent.

Unit-V - Intellectual Properties and Human Rights

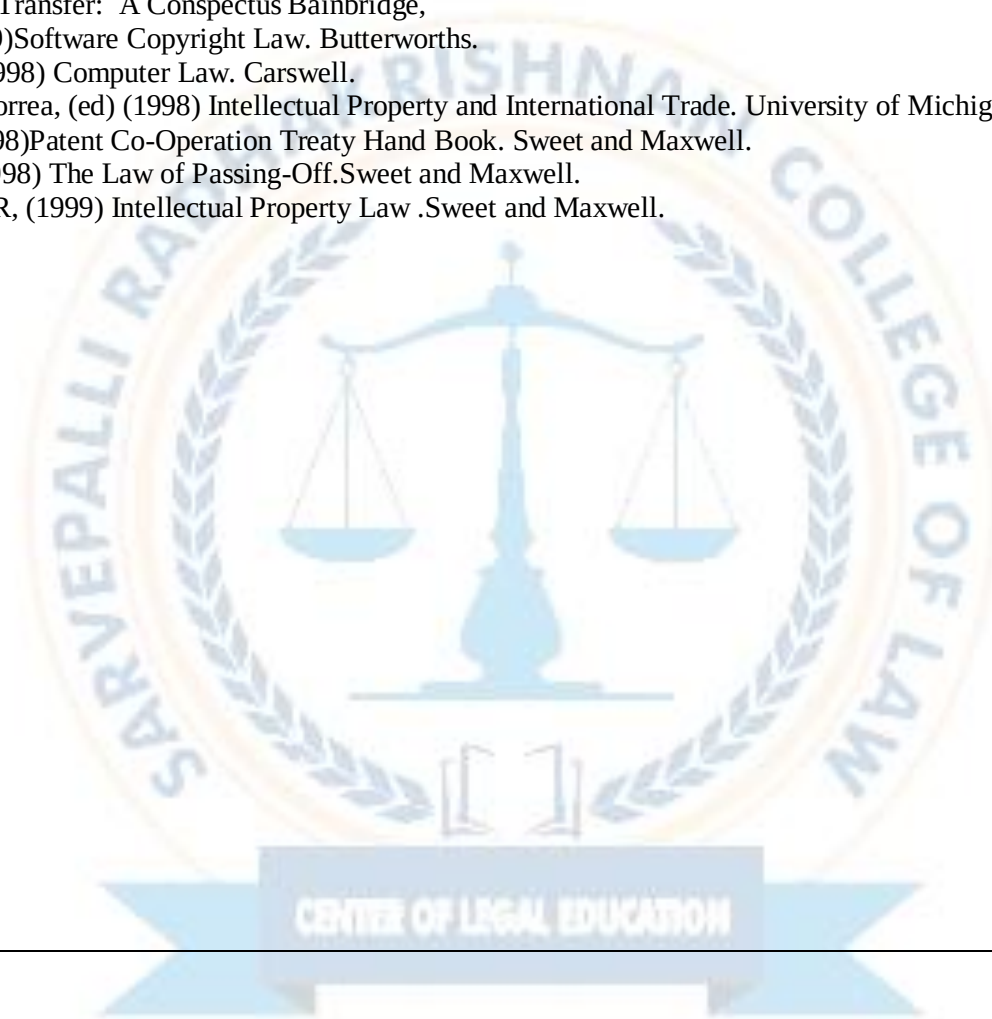
- Freedom of Speech and Expression as the Basis of the Regime of Intellectual Property
- Right- Copyright Protection on Internet - WCT (WIPO Copyright Treaty, (1996).
- Legal Status of Hazardous Research Protected by the Regime of Intellectual Property Law
- Human Right of the Impoverished Masses Intellectual Property Protection of New Products for Healthcare and Food Security
- Traditional Knowledge -Protection- Biodiversity Convention- Right of Indigenous People



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Suggested Readings:

1. B L Wadehra : Law Relating to Patents, Trademarks, Copyright, Designs and Geographical Indications.
2. G.V.G Krishnamurthy : The Law of Trademarks, Copyright, Patents And Design.
3. Satyawrat Ponkse : The Management of Intellectual Property.
4. S K Roy Chaudhary & H K Saharay : The Law of Trademarks, Copyright, Patents and Design Legal Aspects of Technology Transfer: A Conspectus Bainbridge,
5. David, (1999)Software Copyright Law. Butterworths.
6. Sookman,(1998) Computer Law. Carswell.
7. Carlos M. Correa, (ed) (1998) Intellectual Property and International Trade. University of Michigan Press.
8. Kluwer, (1998)Patent Co-Operation Treaty Hand Book. Sweet and Maxwell.
9. Wadlow, (1998) The Law of Passing-Off.Sweet and Maxwell.
10. Cornish, W.R, (1999) Intellectual Property Law .Sweet and Maxwell.





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Semester II

PAPER-I

LLM -201 JUDICIAL PROCESS

1. Nature of judicial process

1. Judicial process as an instrument of social ordering
2. Judicial process and creativity in law – common law model – Legal Reasoning and growth of law – change and stability
3. The tools and techniques of judicial creativity and precedent
4. Legal development and creativity through legal reasoning under statutory and codified systems

2. Special dimensions of Judicial Process in Constitutional Adjudications

1. Nations of judicial review
2. Role in constitutional adjunctions – various theories of judicial role
3. Tools and techniques in policy– making and creativity in constitutional adjunction
4. Varieties of judicial and justice activism
5. Problems of accountability and judicial law making

3. Judicial Process in India

1. Indian debate on the role of judges and on the nation of judicial review
2. The “Independence” of judiciary and the “Political” nature of judicial process
3. Judicial activism and creativity of the Supreme Court – the tools and techniques of creativity
4. Judicial process in pursuit of constitutional goals and values – new dimensions of judicial activism and structural challenges
5. Institutional liability of courts and judicial activism-scope and limits

4. The concepts of Justice

1. The concept of justice or Dharma in Indian thought
2. Dharma as the foundation of legal ordering in Indian thought
3. The concept and various theories of justice in the western thought
4. Various theoretical bases of justice: the liberal contractual tradition, the liberal utilitarian tradition and the liberal moral tradition

5. Relation between Law and Justice

1. Equivalence Theories – Justice as nothing as nothing more than the positive law of the stronger class
2. Dependency theories – for its realization justice depends on law, but justice is not the same as law
3. The independence of justice theories-means to end relationship of law and justice- the relationship in the context of the Indian constitutional ordering
4. Analysis of selected cases of the Supreme Court where the judicial process can be seen as influenced by theories of justice

Selected bibliography

1. Julius Store, The Province and Function of Law, Part II Chs. 1. 8-16 (2000), University New Delhi
2. Carzo, The Nature of Judicial Process (1995) Universal, New Delhi



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3. Henry J. Abraham, The judicial Process (1998), Oxford
4. J. Stone, Precedent and the Law: Dynamics of Common Law Growth (1985) Butterworths
5. W.Friedmann, Legal Theory(1960), Stevens, Landon
6. Bodenheimer, Jurisprudence-the Philosophy and Method of the Law (1997), Universal, Delhi
7. J. Stone, Legal System and Lawyers' Reasoning (1999), Universal Delhi
8. U. Baxi, The Indian Supreme Court of India – A Socio – Legal Critique of its Juristic Techniques (1977), Tripathi, Bombay
9. John Rawls, A Theory of Justice (2000), Universal, Delhi
10. Edward H. Levi, An Introduction to Legal Reasoning (1970), University of Chicago

2. Mergers and Acquisitions

- a. Types of mergers and acquisitions
- b. Legal and regulatory framework
- c. Due diligence and deal structuring

3. International Business Law

- a. International trade law and WTO
- b. Cross-border transactions and investments
- c. International dispute resolution

4. Securities Law and Regulation

- a. Securities offerings and listing
- b. Securities trading and market regulation
- c. Insider trading and market abuse





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PAPER-II

LLM 202 Law and Social Transformation

Unit-I- Law and social transformation theoretical analysis

- Models of social transformation
- Law as an instrument of social transformation
- Historical and social discourse
- Constitution's orientation and response to social transformation
- Democracy and social transformation
- Constitutionalism and social transformation

Unit-II - Language and the law

- Language as a divisive factor
- Constitutional recognition of linguistic pluralism
- Constitutional guarantees to linguistic minorities
- Non-discrimination on the ground of language

Unit-III - Community and the Law

- Caste as a divisive factor
- Non-discrimination on the ground of caste
- Protective discrimination
- Affirmative action
- Reservation

Unit-IV- Religion and Alternative Approaches to law

- Religion as a divisive factor
- Freedom of religion and non-discrimination on the basis of religion under Indian
- Constitution, Regionalism
- The Impact of multiculturalism and ethnicity
- Constitutional safeguards against regional barriers
- Equality in matters of employment
- The jurisprudence of Sarvodaya--- Gandhiji, VinobaBhave; Jayaprakash Narayan-Surrender of dacoits
- Concept of Gramanyayalayas.

Unit-V- Modernization and the Law

- Modernization as a value
- Modernization of social institutions through law
- Public interest litigation

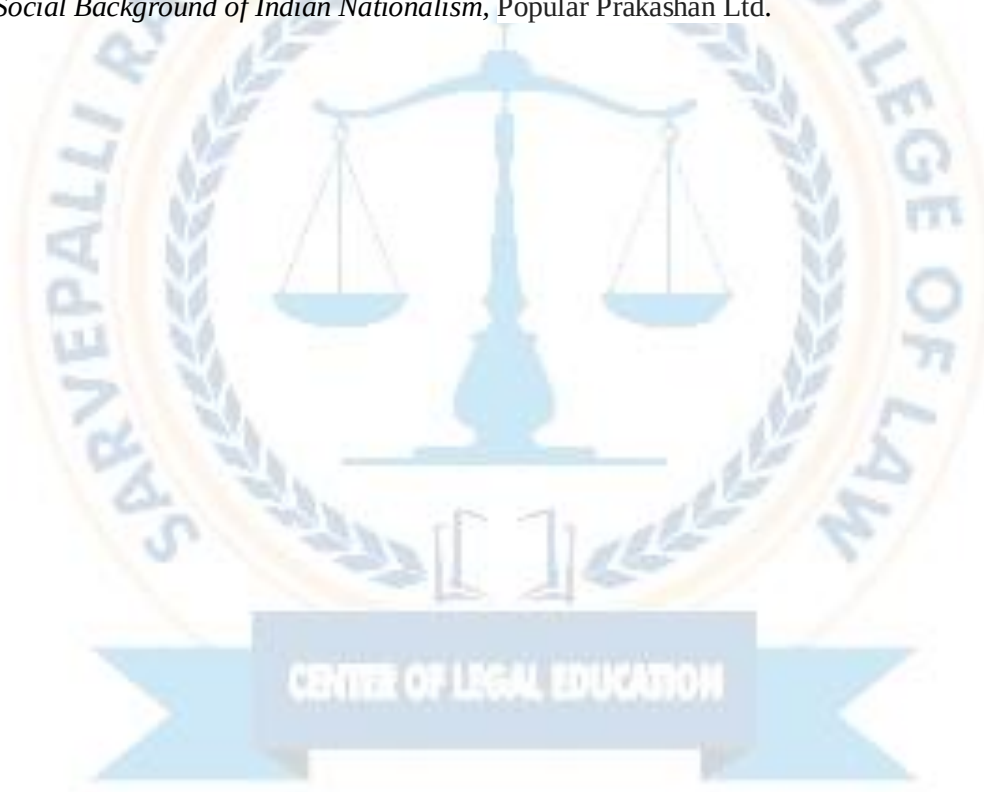


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- ADR system
- Lok Adalats
- Democratic decentralization and local self-government

Suggested Readings:

1. Kuppaswamy, B. and Kumar, B.V., *Social Change in India*, Konark Publisher Pvt Ltd, Delhi, 2006
2. Baxi, Upendra, 1985, *Towards a Sociology of Indian Law*, New Delhi, ICSSR/Satvahan Publications
3. Upendra, Baxi, *The Crisis of Indian Legal System*, New Delhi : Vikas, ©1982
4. Upendra, Baxi, *Law and Poverty: Critical Essays*, Bombay : N.M. Tripathi, 1988
5. Galanter, Marc, *Law and Society in Modern India*, OUP India, 1993
6. Friedman, W., *Law in Changing Society*, Sweet and Maxwell, South Asian Edition, 2nd Edition, 2016
7. Hunt, Allan, *Sociological Movement in Law*, Palgrave, September 30, 1978
8. Sinha, Balbir Sahai, *Law and Social Change in India*, Deep & Deep, 1983
9. Desai, A. R., *Social Background of Indian Nationalism*, Popular Prakashan Ltd.





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PAPER-III

LLM 203 Law Of Export & Import Regulations

Unit-I - Introduction

- State Control over Import and Export
- Impact of Regulation on Economy
- Goods, Services and Transportation

Unit-II - International Regime

- WTO
- Quota Restrictions and Anti-Dumping
- Quarantine Regulations

Unit-III- General Law on Control of Imports and Exports

- General Scheme and Legislative Control
- Central Government and RBI
- Control Under FEMA
- Export-Import Formulation: Guiding Features

Unit-IV - Control on Exports

- Quality Controls
- Regulation on Goods
- Conservation of Foreign Exchange

Unit-V - Regulation on Investment

- Borrowing and Lending of Money and Foreign Currency
- Issues of derivatives and Foreign Securities
- Investment in Indian Banks

Suggested Readings:

1. Bahinipati, Chandra Sekhar, (2012) Foreign Trade and Economic Growth of India since 1991. Lap Lambert Academic Publishing.
2. Bermann, George A. and Petros C Mavroidis, (2011) WTO Law and Developing Countries. Cambridge University Press: Cambridge.
3. Jain, Dr. Vijesh, (2015) Establishing Exports and Imports Business in India: Essential Reading for Anyone Wishing to Carry External Trade from India (International Trade Made Easy) (Volume 1). CreateSpace Independent Publishing Platform.
4. Jha, Raghendra, (ed) (2008) The Indian Economy Sixty Years after Independence. Houndmills, Basingstoke, Palgrave Macmillan, Hampshire.



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5. Khilnani, D. T., (2017) Foreign Exchange Management Manual (Volume-I) and FEMA Ready Reckoner (Volume-II). Snowwhite: Mumbai.
6. Lynch, Aidan B., (2011) Derivatives Reform and Regulation. Economic Issues, Problems and Perspectives. Nova Science Publishers: New York.
7. Mavroidis, Petros C, (2016) The Regulation of International Trade. The MIT Press: Massachusetts.
8. McMahon, Joseph A., and Melaku Geboye Desta, (eds.) (2013) Research Handbook on the WTO Agriculture Agreement: New and Emerging Issues in International Agricultural Trade Law. Research Handbooks on the WTO: Edward Elgar.
9. Prasad, Mahesh, (2011) India's Foreign Trade: From Antiquity to Date. Kalpaz Publications: Delhi.





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PAPER-IV

LLM 204- Banking Law

Unit-I - Introduction

- Nature and development of banking
- History of banking in India and elsewhere -indigenous banking
- Evolution of banking in India
- Different kinds of banks and their functions
- Multi-functional banks - growth and legal issues

Unit-II - Law Relating to Banking Companies in India

- Control by Government and Its Agencies
 - (a) on Management
 - (b) on Accounts and Audit Credit Policy
- Reconstruction and Reorganization Contract between Banker and Customer: Their Rights and Duties
- Nationalization vis-a-vis Privatization: Evaluation
- Nationalization and Disinvestment
- Priority Lending
- Promotion of Under Privileged Classes

Unit-III- Contract between banker and customer

- Legal Character of Contract between Banker and Customer Banker's Lien
 - Protection of Bankers Customers
- Nature and Type of Accounts
- Special Classes of Customers - Lunatics, Minor, Partnership, Corporations, Local Authorities, Lending By Banks

Unit-IV - Social Control over Banking

- Nationalization
- Evaluation: private ownership, Nationalisation and Disinvestment
- Protection of depositors
- Priority lending
- Promotion of under privileged classes

Unit-V - Recent Trends of Banking System in India

- Negotiable Instruments Act, 1881
- Information Technology Automation and Legal Aspects
- Automatic Teller Machine and Use of Internet and Smart Card
- Use of Expert System and Credit Cards
- Core Banking



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- Reforms in Indian Banking Law

Suggested Readings:

1. Ross Cranston, Principles of Banking Law (1997) Oxford.
2. L.C. Goyle, The Law of Banking and Bankers (1995) Eastern
3. M.L. Tannan, Tannan's Banking Law and Practice in India (1997) India Law House, New Delhi, 2 volumes
4. K.C. Shekhar, Banking Theoi'y and Practice (1998) UBS Publisher Distributors Ltd.
5. New Delhi. M. Dasse, S. saacs and G. Pen, E.C. Banking Law, (1994) Lloyds of London Press, London
6. V. Conti and Hamaul (eds.), Financial Markets Liberalization and the Role of Banks', Cambridge University Press, Cambridge, (1993).
7. J. Dermine (ed.), European Banking in the 1990s' (1993) Blackwell, Oxford.
8. C. Goodhart, The Central Bank and the Financial System (1 995) Macmillan, London
9. S. Chapman, The Rise of Merchant Banking (1984) Allen Unwin, London
10. K. Subrahmanyam, Banking Reforms am india (1997) Tata Maigraw Hill, New Delhi.
11. Subodh Markandeya and Chitra Markandeye, Law Relating to Foreign Trade in India; Being a Commentary on the Foreign Trade, (Development and Regulation) Act 1992,
12. Universal Law Publishing Co. Pvt. Ltd. Delhi.
13. R.S. Narayana, The Recovery of Debts due to Banks and Financial Institutions Act, 1993 (51 of 1993), Asia Law House, Hyderabad.
14. M.A. Mir, The Law Relating to Bank Guarantee in India (1992), Metropolitan Book, New Delhi.
15. Anthony Pierce, Demand Guarantees in International Trade (1993) Sweet & Maxwell,



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**Part-II
SEMESTER-III
PAPER-I**

LLM-301 Research Methodology

Unit I

- a. Socio-legal research.
- b. Doctrinal and non-doctrinal research.
- c. Computerized research.
- d. Relevance of empirical research.

Unit II

- a. Legislative research material.
- b. Decisional research material.
- c. Ratio decidendi and obiter dicta.
- d. Juristic writing.

Unit III

- a. Formulation of research problem.
Tools and techniques of data collection.
- b. Use of questionnaire and interview.
Use of case study.

Unit IV

- a. Sampling procedure-design of sample, types of sample to be adopted.
- b. Classification and tabulation of data.
- c. Analysis of data.
- d. Art of thesis writing.

Select Bibliography

1. William J. Grade and Paul K. Hatt, Methods in Social Research, London
2. H.M. Hyman, Interviewing in Social Research, 1965
3. Morris L Cohan, Legal Research in Nutshell, 1996
4. ILI Publication, Legal Research and Methodology



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PAPER-II

LLM 302 Insurance Law

Unit-I- Introduction

- Nature of insurance contract, various kinds of insurance, proposal, policy, parties, consideration, need for utmost good faith, insurable interest, indemnity
- Insurance policy, law of contract and law of torts-future of insurance: need, importance and place of insurance
- Constitutional perspective – The entries 24, 25, 29, 30, 47 of List-1 (Union List); 23, 24 of List III (Concurrent List)

Unit-II- General Principles of Law of Insurance

- Definition, nature and history
- The rise – commencement, attachment and duration
- Assignment and alteration
- Settlement of claim and subrogation
- Effect of war upon policies.

Unit-III - Life Insurance and Marine Insurance

- Nature and scope of Life Insurance
- Event insured against life insurance contract
- Circumstances affecting the risk
- Amounts recoverable under life policy
- Persons entitled to payment
- Settlement of claim and payment of money
- The Marine Insurance Act, 1963
- Classification of Marine policies

Unit-IV - Insurance Against Accidents

- The Motor Vehicles Act, 1988
- (i) Nature and Scope
- (ii) Effect of insolvency or death on claims of insolvency and death of parties, certificate of insurance
- (iii) Claims tribunal : constitution, function, application for compensation, procedure, powers and award
- Liability Insurance
 - (i) Nature and kinds of such insurance
 - (ii) Public liability insurance
 - (iii) Professional negligence insurance
- Miscellaneous Insurance Schemes : New Dimensions
 - a. Group life insurance
 - b. Mediclaim, sickness insurance

Unit-V - Insurance Against Third Party



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- The Fatal Accident Act, 1855
 - (i) Object and reasons
 - (ii) Assessment of compensation
 - (iii) Contributory negligence
 - (iv) Apportionment of compensation and liability
- The personal Injuries (compensation Insurance) Act 1963
 - (i) Compensation payable under the Act

Suggested Readings:

1. John Hanson and Christopals Henly, All Risks Property Insurance (1999), LLP Asia, Hongkong.
2. Peter Mac Donald Eggers and Patric Foss, Good Faith and Insurance Contracts (1998) LLP Asia, Hongkong
3. Banerjee, Law of Insurance (1994), Asia Law House, Hyderabad.
4. Mitra B.C, Law Relating to Marine Insurance (1997) Asia Law House, Hyderabad
5. JOB Gilmar and Mustifl, Arnold on the Law of Marine Insurance, (1981), Sweet & Maxwell
6. Birds, Modern Insurance Law (1997) Sweet & Maxwell Colinvaux's Law of Insurance (1997), Sweet & Maxwell
7. OMary on Marine Insurance (1993), Sweet & Maxwell.
8. International Labour Office, Administration Practice of social Insurance(1985)
9. ER. Hardy Ivamy, General Principles of insurance Law (1979)
10. Edwin W. Patterson, Cases and Materials on Law of insurance (1955)
11. M. N. Sreenivasan Law and the Life Insurance Contract (1914)





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PAPER-III

LLM-303 Corporate finance

Unit-I- Introduction

- Meaning, importance and scope of corporate finance
- Capital needs-capitalization working capital-securities borrowings-deposits debentures
- Objectives of corporation finance-profit maximization and wealth maximization
- Constitutional perspectives- the entries 37, 38, 43, 44, 45, 46, 47, 52, 82, 85 and 86 of List 1 Union List entry 24 of List 11- State List

Unit-II - Equity Finance

- Share Capital
- Prospectus information disclosure
- Issues and allotment
- Shares without monetary consideration
- Non-opting equity share

Unit-III - Debt Finance

- Debentures
- Nature, issue and class
- Deposits and acceptance
- Creation or charges
- Fixed and floating charges
- Mortgages
- Convertible debenture

Unit-IV - Protection of Creditors and Investor

- Rights in making company decisions affecting creditors interests
- Creditors self protection
- Incorporation of favourable terms in lending contracts
- Right to nominate directors
- Individual share holder right
- Corporate membership right
- Conversion, consolidation and re organizations of shares
- Transfer, and transmission of securities
- Dematerialization of securities

Unit-V- Administrative Regulation on Corporate Finance

- Inspection of accounts
- SEBI



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- Central government control
- Control of registrar of companies
- RBI control

Suggested Readings:

1. Alastair Hundson, The Law on Financial Derivatives (1998), Sweet & Maxwell Ell's Ferran, Company Law and Corporate FThance (1999), Oxford.
2. Jonathan Charkham, Fair shares: the Future of Shareholder Power and Responsibility (1999), Oxford.
3. Ramaiya A, Guide to the Companies Act (1998), Vol. I, II and III.
4. H.A.J. Ford and A.P. Austen, Fords' principle of Corporations Law (1999) Butterworths.
5. J.H. Farrar and B.M. Han niyan, Farrar's company Law (1998) Butterworths
6. Austen R.P., The Law of Public Company Finance (1986) LBC
7. R.M. Goode, Legal Problems of Credit and Security (1988) Sweet and Maxwell
8. Altman and Subrahmanyam, Recent Advnces in Corporate Finance (1985) LBC
9. Gilbert Harold, Corporation Finance (1956)
10. Henry E. Hoagland, Corporation Finance (1947)
11. Maryin M. Kristein, Corporate Finance (1975)
12. R.C. Osborn, Corporation Finance (1959)
13. S.C. Kuchhal Corporation finance: Principles and Problems (6th ed. 1966)
14. V.G. Kulkami, Corporate Finance (1961)
15. Y.D. Kulshreshta, Government Regulation of Financial management of Private Corporate Sector in India (1986)
16. Journals - Journal of Indian Law Institute, Journal of Business Law, Chartered Secretary, Company Law Journal, Law and Contemporary Problems.
17. Statutory Materials - Companies Act and laws relating SEBI, depositories, industrial financing and information technology.



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PAPER-IV

LLM 304 Business Dispute Resolution

Unit 1: Introduction to Business Dispute Resolution

- Overview of dispute resolution methods
- Importance of dispute resolution in business
- Principles of effective dispute resolution

Unit 2: Negotiation

- Negotiation strategies and tactics
- Effective communication in negotiation
- Cultural and psychological factors in negotiation

Unit 3: Mediation

- Mediation process and techniques
- Role of the mediator
- Mediation in commercial disputes

Unit 4: Arbitration

- Arbitration process and procedures
- Types of arbitration (ad hoc, institutional, etc.)
- Arbitration agreement and enforceability

Unit 5: Litigation

- Litigation process and procedures
- Pleading, discovery, and trial



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- Remedies and enforcement of judgments

Unit 6 : Alternative Dispute Resolution (ADR) Methods

- Mini-trials and summary jury trials
- Neutral evaluation and expert determination
- Online dispute resolution (ODR)

Books :-

1. "Business Law" by Dr. Avtar Singh (LexisNexis)
2. "Company Law" by Dr. K.R. Chandratre (Central Law Agency)
3. "Commercial Law" by Dr. S.S. Srivastava (Central Law Agency)
4. "Business Laws" by P.C. Tulsian (Tata McGraw-Hill)
5. "Company Law and Practice" by A.B. Srivastava (LexisNexis)
6. "Business Law and Practice" by S.K. Singh (PHI Learning)
7. "Commercial and Business Laws" by R.K. Bangia (Tata McGraw-Hill)
8. "Business Law and Corporate Governance" by Dr. R.C. Srivastava (LexisNexis)



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Semester IV

LLM-401

Dissertation and Viva voce

- Students will research and write a dissertation on a selected topic in business law under the supervision of a faculty member.

